

Studies in Irish History
1603-1649

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1603 - 1649

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Editor: R. Barry O'Brien

Contributor: S. A. Cox
James Donelan
Arthur Houston
Philip Wilson

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Studies in Irish History,
1603-1649

*Being a Course of Lectures
Delivered before the Irish Literary Society of London*

EDITED BY

R. BARRY O'BRIEN

SECOND SERIES

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THE PLANTATION OF ULSTER

BY THE REVEREND S. A. COX, M.A., T.C.D.

The Plantation of Ulster

“The truth is, they that gape after poor Irishmen’s lands do what they can to have a colour to beg them”—(*State Papers, Ireland*, 1610, p. 415).

THESE words were written in an appeal for justice, or even the formality of a trial, by one who was betrayed by the English whom he had served. Sir Donnell O’Cahan had left his own people to seek an English alliance, and was rewarded by an imprisonment of nineteen years, without ever being brought up for trial. He was goaded into a just indignation by rumours that reached him in the early days of his imprisonment in Dublin, of Lady O’Cahan’s destitution and insanity, but after a couple of years he was moved to the Tower of London, where he, and other noblemen who were confined because men hungered after their lands, languished away till death gave them release. It will not surprise most of our readers to know that his letters were intercepted and carefully studied with a view to finding something treasonable in them. Truly Ireland’s share in the privileges of Magna Carta has been a small one.

The opening of James I’s reign in Ireland was auspicious enough. The battle of Kinsale was an effort of an United Ireland, aided by Spanish troops, to meet and expel the English in the battle-field: it failed, and with it came to an end the hopes of the great Irish lords to do anything by open warfare. James found Ireland decimated by war and famine: some parts like the Ards in the County Down had been literally cleared of their inhabitants. ^[1] The chiefs were willing enough to submit, if submission meant that they were to become great Palatine lords, with no interference from the Crown in their relations with their vassals, or in the exercise of their religion. The once turbulent Anglo-Irish lords had nearly all conformed to the Protestant religion, and become loyal. The people, with the gaunt figures of famine and desolation that they remembered so well, would have been glad to have peace, if not “at any price,” at any rate at any price that might allow them to

remain in their own land and worship as their fathers had done. By his descent James had claims upon the loyalty of the Irish that could not have been urged for the Tudor line. And it looked at first as if a new era of prosperity was dawning upon Ireland.

James began by a policy of conciliation and toleration. He actually appointed a man as a bishop in 1603, because of his knowledge of the Irish language (this was Robert Draper, Rector of Trim, who was made Bishop of Kilmore and Ardagh).^[2] He accepted Tyrone's homage, and created Rory O'Donnell Earl of Tyrconnell. The public worship of the national religion, if not legalized, was at least tolerated: and the people hoped that his mother's son would continue to pursue a friendly policy. But a few short years showed how vain this idea was. Perhaps the king was really in terror from the Guy Fawkes conspiracy; perhaps he did really believe that Spain was still intriguing against England's power; perhaps he was in hopes that somehow the acquisition of Irish land might help him to make money to meet his financial needs. Whatever the real cause may have been, a wretched anonymous charge was levelled against the two Northern Earls, and they fled for their lives. This may look like weakness, but the memory of the sufferings endured by Tyrconnell's brother, Hugh Roe,^[3] in his imprisonment and his assassination in exile, would naturally make Irish leaders of that time very shy in placing themselves in English hands when a serious charge was made against them.

Juries of the time were pliable, or, if they showed signs of independence, there was a court of Castle Chamber, corresponding with the Star Chamber of English history, that could use means to bring them into line. That the two Earls were innocent of the plot alleged against them is a moral certainty. The fact that when they fled, it was not to Spain they went, seems strong evidence of this. Any evidence of a plot depends on the word of St. Lawrence, Lord Howth, whose character may be judged from what we read about him in the State Papers.^[4] There was an armed fight in 1609 between him and Sir Roger Jones, the son of the Lord Chancellor. Speaking of it Sir A. Chichester refers to the "wrongs done by the Earl of Howth to the Lord Chancellor"; while the latter writes to the king of "the murderous attack made by Howth and his cut-throat (sicariorum) retainers upon his son." Plowden gives the following quotations to show the unreality of the whole alleged conspiracy, and the base character of St. Lawrence. "Dr. Anderson

in his *Royal Genealogies* (p. 786), dedicated to the Prince of Wales in 1736, says: ‘Artful Cecil employed one St. Lawrence to entrap the Earls of Tyrone and Tyrconnell, the Lord Delvin, and other Irish chiefs into a sham plot, which had no evidence but his. But those chiefs being basely informed that witnesses were to be hired against them, foolishly fled from Dublin, and so taking guilt upon them, they were declared rebels, and six entire counties in Ulster were at once forfeited to the Crown, which was what their enemies wanted.’ That this St. Lawrence was a fit instrument for such a design is clear, from what Camden relates of him (Eliz. 741), viz., that he offered to murder Lord Grey de Wilton and Sir Thomas Gerald, to prevent their conveying reports of Essex to the Queen; which bloody service Essex rejected with indignation. No history whatever mentions any symptoms of rising in the North at this time.”^[5]

In the subsequent references to the flight of the Earls, even the king himself tacitly dropped the charge of conspiracy, and dwelt upon the disaffection they showed in quitting the kingdom without leave, which was treated in those days as a crime. Sir John Davies says that the Bill laid before the Grand Jury in Donegal was read in public in English and in Irish, “so as to discover a great deal of the evidence to all the hearers to the end that all the country might be satisfied that the State proceeded against them upon a most just ground, and that the people, knowing their treacherous practices, might rest assured that their guilty consciences and fear of losing their heads was the only cause of their running away, and not the allurements of any foreign prince.”^[6] Possibly the Earls may have had communications with Spain or Rome that they thought would compromise them. On their arrival in Rome they sent King James a statement of their grievances. These embraced arbitrary interference with their own rights and possessions; exactions of cattle and other goods levied on their tenants, who were miserably poor after the late war; pretended claims to church lands of enormous extent; and what, perhaps, are the worst things, in each case they showed that attempts were perpetually being made to have charges of treason supported against them, and also their free exercise of religion was interfered with. Tyrconnell gave an instance of one Owen M’Swyne who was to be executed. Sir Henry Folliott, with the authority of the Lord Deputy, sent privately promising him his life and large rewards if he would charge the Earl with some detestable crime. “Furthermore,” he says, writing in the third person, “the said Earl can justify by good proofs, that of twenty

and seven persons that were hanged in Connaught and Tyrconnell, there was not one but had the former promises, upon like conditions, made to them.” Of Chichester’s threat to Tyrconnell that he must attend church, the latter says, “For this only respect of not going to church, he resolved rather to abandon lands and living, yea, all the kingdoms of the earth, with the loss of his, than to be forced utterly against his conscience and the utter ruin of his soul to any such practice.” Tyrone wrote in a somewhat similar way.^[7] It speaks well for the loyalty of the peasantry to the Earls that the attempts to get up charges against them failed so completely. I shall have to refer later on to the unreality of the religion which the English party tried to introduce by bribes and threats into the land. It is plain that the leaders of Irish government knew of the unreliable character of Lord Howth, who admitted having gone to England looking for employment or pension from the king: but indeed there has never been a time in Ireland when the use of base means has not been practised.

However, the dreary record of the illegalities and confiscations inflicted upon a half-famished nation is somewhat relieved by the grotesque absurdities which the State Papers sometimes reveal. For example, Government stooped to accept the evidence of a professional beggar. This worthy’s name was Teig O’Falstaf, and he had gone to Spain simply to beg his way, and we find the Government solemnly accepting his evidence that he had heard the Irish priests in Spain cursing the Lord Deputy in public service.^[8] Salisbury’s espionage on Tyrone after his flight was a most elaborate affair: his pilot was a spy, and when he got to Rome another spy named Richardson was ever watching his movements to fix something treasonable upon him, and we have his instructions, endorsed by Salisbury himself, in which he is told of the roundabout way he is to send his information to England, writing as if to a Mr. James Brokesby: he is minutely instructed how he is to write, as if from one Catholic to another, and we have a specimen in a letter (endorsed by Salisbury) which gives an account of a canonization at Rome, conveying news of several religious Orders, enclosing a packet of Agnus Deis with apologies for not sending more, and sending Father Parson’s commendations.^[9] In a previous reign Mountjoy’s plots against Tyrone are recorded in Docwra’s *Narrative*.^[10] What did all this tissue of espionage before submission, after rendering homage, and in exile, succeed in proving? Nothing against Tyrone, but much against the persons who employed such unworthy methods. From

those days down to the forgery that *The Times* paraded against Parnell, and possibly even to a later date, England has been industriously cherishing everything that tends to lead her astray about Ireland, and forgetting the solid fact that, in the length and breadth of the Empire on which the sun never sets, there is not another of her colonies or dependencies that she could hold for a week if she applied the methods of Irish government to it.

The idea of colonization was not a new one. It had been tried officially and unofficially in various parts of Ireland. When done officially the attempts had been failures, but the private colonizations had occasionally been successful—from the colonists' point of view. Early in King James's reign Chichester had brought over a number of Englishmen from Devonshire and planted them in Carrickfergus and Malone, near Belfast, and it was undoubtedly this which led to the bold project of colonizing six whole counties in Ulster. If the matter had been left to Chichester it would have taken a milder form. But Sir John Davies began to take a lead in the project, and in the end he became the working agent of the whole affair. He was Irish Attorney-General. This was just the time for unscrupulous and cunning men to rise to power, for practically everything in the country was in a state of transition. It had been even suggested that the standing seat of the Deputy and the law should be translated from Dublin to Athlone, as being the centre of Ireland. The proposal was that the Deputy should have two presidents, one in Munster at Kilmalocke, the other in Ulster at Lyell (probably for Lyffer or Lifford).^[11] Such proposals as these show the feeling of powerlessness that marked the English councils, and when the idea of a plantation was put forward, it became more and more popular with the Government, increasing in the harshness of the method of plantation until in the end it became only a grotesque parody of what was put forward, a parody in fact so grotesque that it never worked and never would have worked. Salisbury and Chichester seem to have had some idea of humanity in their proposals, but Davies' suggestions were cunning, specious, and harsh. Salisbury proposed to Chichester to take natives as tenants of part of the lands, not giving too much to one planter. Sir Oliver St. John advised that no part of the land to be planted should be given away, but that it should be let to the natives at high and dear rates. Chichester though doubtless acquisitive in the extreme seems to have had some feeling for the sufferings of others; in a letter to Salisbury he says, "the word of removing and transplanting is as welcome to the natives as the sentence of death."^[12]

His proposal was to divide the land among the inhabitants, letting each have as much as he can manage by himself or his tenants; the rest of the land to be bestowed upon servitors and men of worth. This was the plan he preferred, but he felt the need of immediate action, because when he wrote in September, 1607, after the flight of the Earls, he said the people were gone to put on their arms, so he gave as an alternative, the plan to drive out the natives of Tyrone, Tyrconnell and Fermanagh, over the rivers of the Bande (Bann), Blackwater, and Lough Erne, there to inhabit the waste lands.^[13] Sir John Davies favoured the policy of rooting out the natives from their holdings, for their own good, of course! He says transplanting the natives is like moving a fruit tree, to make it bring forth better fruit, and not to destroy it. His plan was accepted.

Notwithstanding his learned lore about fruit trees, we shall see that there was no enthusiasm about the farming operations of the Davies clique in the subsequent enquiries and surveys of the plantation. To him was due the idea of excluding the Irish from the colonies.

But before the lands could be handed over to the English and Scotch adventurers, there was a little preliminary violation of a solemn pledge. Perhaps a Stuart's word never counted for very much, yet in passing we may as well record that after the flight of Tyrone and Tyrconnell, James solemnly declared that their vassals (for such they were rather than tenants) should be protected in their rights. There are no less than three proclamations to this effect, of the dates 7th September, 1st November, and 9th November, 1607. Let me quote the title of one. "Proclamation declaring that the King had taken into his hands all the lands and goods of the Earls of Tyrone and Tyrconnell, Cowconnaght Oge Magwir and their other fellow-fugitives, and that he would preserve in their estates and protect all the inhabitants of those counties who held under the persons who had thus forfeited."^[14] It would appear that the rising of Sir Cahir O'Dogherty, which was limited to Inishowen, a small portion of Tyrconnell, was made the excuse for violating the solemn pledges we have quoted, pledges which referred to the Celts of six counties. The fact was that after these proclamations were made, Davies the Irish Attorney-General and Bacon, then the English Solicitor-General, decided that the natives must be rooted out, and if O'Dogherty's rebellion had not occurred, some other convenient excuse would have been made. O'Dogherty's rising originated in the violent

and overbearing disposition of Sir George Paulett, the governor of the colony at Derry. Sir Richard Cox says,^[15] “Undoubtedly the Government well enough understood, that this rebellion was designed to be the most general that had ever been in Ireland; and that the Confederates had better assurance, or at least a stronger expectation of foreign aid, than in any rebellion heretofore.” These words can surely have no truth in them. There seems to have been a dispute concerning rent between O’Dogherty and Tyrone. Sir Cahir had been foreman of the Grand Jury of Donegal when the Commission met that was sent to inquire into the attainted estates of Tyrone and Tyrconnell.^[16] In fact until he resented the personal indignity put upon him by Paulett (who struck him) he had been a loyal and willing subject of the Crown, and there was naturally nothing in his previous career to make him a leader who could rally a large force of insurgents around him. Instead of showing a great organized revolt, the comparative success of his brief rising points to the deep detestation of the Ulster men against their English rulers, and their willingness to follow any leader who could assume the headship over them. The following is quoted from the Celtic Society’s *Miscellany*, a note on Docwra’s *Narration*^[17]: “It is not generally known that Sir Cahir O’Dogherty was knighted for his bravery in fighting against the O’Neills. Such, however, was the case, as is clear from our author’s text. He was as great an enemy to O’Domhnaill as was Niall Garbh, and his rebellion when too late had its origin in a personal insult.” In fact until he went out into open revolt, Sir Cahir and Lady O’Dogherty (and especially the latter) had always shown a preference for English society.^[18]

The rules for the Plantation of Ulster are to be found in MacNevin’s *Confiscation of Ulster*. The lands were to be divided into portions of 1,000, 1,500 and 2,000 acres. They were originally to have been given by lot, but this was afterwards abandoned. The rent for the English and Scotch adventurers was £5 6s. 8d. for 1,000 acres, or 1½d. per acre. Taking the value of money then at 12 or 13 times the present value, this was not a heavy charge. Any “meer Irish” who got grants of land had to pay double;^[19] besides, the rent for the English and Scotch was remitted for the first two years, but the natives were not excused, on the ground that they had no charges for transportation. The Plantation acre was invented to make up for any deficiency in the acreage caused by mountain and bog. The expressions ‘Fengal measure,’ and ‘great country measure,’ are also to be met with in the documents of the period: I do not know what their exact significations

are.^[20] Every undertaker was to build in proportion to his grant: the 2,000 acre man was within two years to build a castle, with a strong court or bawn around it. The 1,500 acre man a stone or brick house with a bawn about it; and the 1,000 acre undertaker to build at least a strong court or bawn. They were to have free timber for the two years. They were to have a store of arms. Thus in a grant to Lady Lambert it is specified that in the house she is to build at Cavan, they are “to keep therein 21 muskets and callivers, and 21 hand weapons as arms for 42 men, for defence against rebels and enemies; also 9 muskets and callivers, and 9 hand weapons, and also 12 muskets and callivers and 12 hand weapons, according to the instructions for the Plantation of Ulster.” A formidable little provision for arming 84 men in one house.^[21] Every undertaker to take the oath of Supremacy; not to demise any land to the meer Irish; not to leave the country for five years. Restrictions were put upon their demising the land within five years. They were not to create tenancies at will, but for a number of years, for life, in tail or in fee-simple. Irish systems of tenure were abolished. The undertakers were given special privileges in the remission of customs, both for the importation of manufactured goods, and the exportation of the produce of their lands. It would be a mistake to suppose from these insolent rules about the “meer Irish” that none of them got any land. The outside undertakers got the good grants, but the natives got their leavings. The mountainous slopes and remote lands and other parts that were not likely to be productive, were given to the native element. The plan was to concentrate the intruders into villages and towns, and to scatter the Irish as much as possible, putting the servitors (or English who had been in Ireland for some years in military service) near to the natives to keep them in awe. There was always some land that it was quite necessary to let the Irish get, if it was ever to be saved from becoming absolutely waste land. Sir R. Jacob (the Solicitor-General for Ireland) showed both humour and acuteness in a letter he wrote to Salisbury in 1609, in which he urged the safety of allowing the natives to keep some land, and also suggests that the very inferior parts might go to them, he says: “The arrantest knave of the Byrne’s answered Sir Henry Sydney, when accused of dwelling on the Archbishop’s lands without paying rent, ‘My Lord, if I dwelt not there, none but thieves and outlaws would.’ So he says civil men will not plant themselves in mountain, rocks or desert places, even if they have it for nothing.... The Irish had no leader and no arms; they had 20,000 fighting

men in Ulster if they had arms. O'Dogherty could not have made the progress he did, if he had not first lighted upon the king's storehouse so as to arm his men."^[22] Those natives who got grants of a substantial amount obtained them as a special reward for subserviency in some form or other: for instance, Art McBarron was given 2,000 acres in Orior to induce him to clear out of O'Neilan, Chichester considering that his removal would be a great help in getting other natives to go out. In that case the grant was only for the lives of Art McBarron and his wife.^[23] Similarly when Sir Tirlagh McHenry O'Neale was willing to be moved out of the Fewes, a request was made that orders be sent to the Lord Deputy to provide some convenient place in Cavan or elsewhere to settle him, in order to plant servitors in his country. Are we really so like sheep? There is yet to be told even a more absurd illustration than the case of McBarron to show how much our rulers in King James' day believed we played the game of "follow my leader." As a matter of fact, so far was this from being the case, that the native gentry who got grants of land became degraded in position, so that those who were gentry children in 1610 were in 1670 old men in frieze coats, farming small scraps of land. Few of the Irish who got somewhat liberal grants were able to retain them until the time of Pynnar's inspection in 1618-1620.

It is not clear that conforming to the Act of Supremacy was essential in the native grantees, though we may be sure from what we see about the encouragements given to Irishmen of position who conformed, that as much use as possible was made of the plan of bribing people into Protestantism. So we must seek for other reasons for the failure to keep their possessions: there was the requirement of an English or stone house to be built; the abolition of the old tribal land systems and introduction of another system that they did not understand; the depression resulting from the discovery that they were now become a part of the English garrison. To which we must remember to add, that the natives' grants of lands were in the most barren and rocky parts of Ulster. As a people we are mainly pastoral, and this was more conspicuously the case in the days of the Plantation, as everyone who has read Spenser's *View of Ireland* will remember. The only hope of doing much with nearly all of the land given to the natives lay in tillage, a thing which the Irish of that day had a very imperfect knowledge of. Hill mentions one case where the ownership of the land continued on all right: it was in the grant to Tirlagh Oge O'Neale's widow; and in that case the Irish custom was specially permitted by the Government grant.^[24] In his

Survey Pynnar says the English did not plough or use husbandry, being afraid to incur the risk, and that the Irish did not because they did not know when they might be moved. So the Scotch were the only ones who supplied food. The British lived on the heavy rents paid them by the Irish grazing tenants. If the Irish were to take away their cattle, he says, the British must either forsake their dwellings or endure great distress on the sudden. "Yet," he says, "the co-habitation of the Irish is dangerous." This report tells us there were most Irish on the London Company's lands; five proportions were not estated; it was more profitable to take Irish on them; seven proportions were leased for 61 years, and the lessees affirmed they were not bound to plant English on them. There were sixty natives in Tyrone who got small grants, generally of 60 acres each. They were all transplanted into portions of the barony of Dungannon which neither undertakers nor servitors would occupy.^[25] Here are some of the figures of natives grants. It is necessary to mention that it very often happens that one grant is made out for a number of persons.

Oriel, 4,080 acres in forty grants.

Dungannon, 4,080 acres in forty-nine grants.

Kilmacrenan, 13,752 acres in nineteen grants.

Clonemahowne, 3,587 acres in eight grants.

Tullagarvy, 6,012 acres in eight grants.

Clinawly, 6,208 acres in fifty-two grants.

Coole and Tircannada, 4,160 acres in five grants.

Tullaghah, Cavan, 4,900 acres in twenty-one grants.

Castle Rashin, 5,700 acres in eighteen grants.

Concerning the district among these in which the largest amount of land was assigned to the natives, Kilmacrenan, let us hear what its character was. After a mention of the commencement of some work having been made by Captain Will Stewart, in Kilmacrenan, we are told "the rest of the servitors have done nothing by reason of the wildness of the land, being the worst in all the country, insomuch that the natives are unwilling to come to dwell upon it until they be forced to remove."^[26]

Grants of refuse land having been assigned to a few hundred of the natives, what became of the others, the unfortunate people who found aliens suddenly planted upon the land of their fathers, and had no other provision made for them? Government provided that they should go. It does not seem to have been at all a worry to Government where they should go, as long as they went. The only thing needful was that they should be got away from the lands to be planted. Some were impressed into the service of the King of Sweden, some were transported to the newly-formed colony of Virginia, some went to the natives' parts, and some to work on the Bishops' or servitors' lands. The great thing was that they should go. The leading Irishmen were all killed; banished or imprisoned on frivolous charges, or occasionally on no charges at all. The most brilliant of them, Brian MacArt O'Neill, the son of Art McBarron, was accused on a false charge of slaying a man at a family party in the house of Turlough McHenry O'Neill of the Fewes, and was arrested and hanged. He had been the rising hope of the natives; it was thought he would proclaim himself "The O'Neill." His name is perpetuated near Belfast in MacArt's Fort, on the Cave Hill, Ballymacarrett, and O'Neill's Fort.^[27] Three men of high position, all bearing English titles, were imprisoned in the Tower by Chichester. Sir Donnell Ballagh O'Cahan was one of Tyrone's sons-in-law; he had left Tyrone in 1600 when Docwra landed at Derry with a large force. A promise was made him that he would be given a territory independent of Tyrone. Sir Henry Docwra honourably maintained this promise, but after the Queen's death it was repudiated by Chichester. O'Cahan spoke bitterly. He does not seem to have contemplated any violent step, but when he heard of the two Earls making for Derry, he hastened to join them, as if he wanted to quietly leave the land that was now cursed by the wiles and the falsehood of the strangers. But haste as he would, the poor man failed to join the two Earls, and then like a squeezed lemon, he was cast aside. He was imprisoned first in Dublin and then in the Tower. Never tried; he had committed no crime save that of Esau; for he wanted to escape from his responsibilities, and to leave his lands and his vassals to the possession of the race he could now trust no longer. For nineteen years in lonely imprisonment he lived to curse the day when he allowed himself to be overcome by English blandishments. Another person whose existence was inconvenient was Sir Cormac O'Neill, the brother of Tyrone. He brought to Dublin Castle the news of the flight of the Earls; he asked to be custodian of his brother's lands and premises till

his return; but lawyer Davies had already an eye to the plunder of the Ulster lands, so with grim humour he wrote, "We took a custodian of the knight himself." The third prisoner, Sir Neal Garve O'Donnell, had a claim to the chieftry of Tyrconnell, he was married to the Earl's sister, Nuala. It was impossible to get a jury to convict him.^[28] It was some consolation to Sir Neal in his imprisonment to know that his wife was not starving or insane like Sir Donnell O'Cahan's; for Lady O'Donnell went into exile with her brother, and soothed his dying hours. Many of the people preferred voluntary exile to remaining in Ireland under the altered conditions. The Earls and leaders were banished or in prison or dead. In 1611 Chichester revived a proclamation of 1605 for the banishment of priests; so many went of their own accord to Spain or the Netherlands.

Then with a thoughtful feeling for Irish prejudices, Government even provided some of the people with free passages out of the country; but in this case they were not sent to Spain, but into the service of the King of Sweden. When we remember that it was in the days of Gustavus Adolphus, "the Lion of the North, and the Champion of the Protestant Faith," it will be seen that this measure of emigration was eminently calculated to show the considerateness of our English rulers. The men who took the people to Sweden were Captains Sandford and Bingley. I shall quote the reference from the Calendar of Patent Rolls. "King's letter for a grant to Captain John Sandford, for ever, of all the mountain lands, bogs and woods in Ulster, escheated to the Crown, by the attainders of the Earls of Tyrone and Tierconnell, or any of their adherents, or any other traitors, or which otherwise belong to the Crown, and are not now in charge, to be holden under the conditions of the Plantation of Ulster, at a yearly rent of £10. This grant is to be made in consideration of Captain Sandford's absence, during the distribution of the escheated lands in Ulster, in consequence of which no portion was assigned to him, he being then engaged in conducting the loose kerne and swordsmen of that province to the service of the King of Sweden, disburthening the country by that means of many turbulent and disaffected persons who would otherwise have troubled the peace." (It will, perhaps, be satisfactory to learn that, in addition to this grant, Sandford secured lands in Donegal from Sir Richard and Sir Ralph Bingley, and Sir John Davies.) This Sweden business seems to have been eminently successful from the Government point of view. Sir R. Jacob wished that 1,000 more could be sent from each province; and hopes were expressed that the swordsmen, not

only of Ulster, but of Connaught, could be transmitted to Sweden or Virginia.^[29] We have the follow-my-leader theory again; for the Lords of the Council proposed to Chichester that native gentlemen should be sent to be leaders and heads for the troops who were transported into Gustavus Adolphus's service. The charges were £1 each for clothing, 5d. per day per man for thirty-one days, carriage 10s. per man, and a sum amounting to 10s. per man for fee for pressing them into a foreign service.

If the rules about the non-employment of natives, and not letting them get on the land, had been strictly observed, it would certainly have led to a complete turning out of the people, and perhaps have precipitated the rising of 1641. And it was from no want of will on the part of the intruders that the law was not rigidly followed. The truth was, English and Scotch settlers were difficult to get; so, however unwillingly, the undertakers admitted Irish tenants and labourers, who in their despair were willing to come to any terms. Chichester saw clearly all along that an impossible thing was being attempted. He wrote in 1610 strongly opposing any change of policy about the natives, and speaks of the folly of crowding large numbers of servitors and natives in half a barony (as in Tyrone),^[30] and says the natives will rather die than be removed to the small proportions assigned to them, or will seek a new dwelling in other counties. The Viceroy, as we see, was never in earnest in enforcing the laws for the expelling of natives; and so those laws were never fully carried out. The squatters required the Irish as hewers of wood and drawers of water. These restrictions were abolished before the end of James' reign, and in 1626 the original undertakers, having failed to comply with the Plantation rules preventing them having native tenants, and having thus rendered themselves liable to forfeiture under Charles I, were allowed to surrender their titles, and get a re-grant under new conditions, one of which was that one quarter of each proportion was to be let to native tenants.

Thus a period of less than two decades saw the final disappearance of the obnoxious parts of the Plantation system. But they had never had vitality, and indeed the agents of the Irish Society from the very beginning insisted on letting their lands to Irish tenants. When the representatives of the Londoners came over on a tour of inspection, the officials who met them were given strict injunctions to put everything in the best light, and one of their cares was to prevent the Londoners from having any unnecessary fears

of the Irish. In this they succeeded so well that they overshot the mark. The London Companies could get very few British tenants in O’Cahan’s country or Laughinsholin, where the people kept so many pikes, so they insisted on having Irish tenants. Hill says, “The Companies stoutly maintained the right of holding the Irish as their tenants, of preventing their expulsion; and to these Londoners we are indebted, more perhaps than to the servitors or Bishops, for the thriving and vigorous native population in Ulster at the present day. Indeed the whole business furnishes a curious illustration of the following words of the poet:—

The best laid schemes of mice and men,
Gang aft aglee,
And leave them naught but grief and pain
For promised joy.”[\[31\]](#)

In 1622 the king sent a charge to enforce the law requiring the natives to leave the planted land. In it he admits that the law has not been at all carefully complied with. He speaks of “the continual unconformity, as well of those natives as of the undertakers, upon whose portions they remain,” and concludes, “In this particular we were always resolved, and yet are, not to spare those undertakers and their tenants, until we have reformed them, but rather if they persist still in their ingratitude and disobedience, to use the advantages which our laws and their own manifold contempt have given us against them, in a more severe manner than hitherto we have done.”[\[32\]](#)

The treatment of the aged Eochaidh or Oghie O’Hanlon, the chieftain of Orior in County Armagh, seems to have been unnecessarily harsh, though I can hardly agree with the denunciations of the Rev. Geo. Hill on the meanness of it. This venerable man, who represented a race which had been supreme in Ulster ages before the O’Neills had any prominence, was uniformly loyal to the English connexion. He had a son who was a leading man in Sir Cahir O’Dogherty’s rising, and the aged father was guilty of the crime, if such it could be called, of giving his son shelter for a night in his castle at Tandragee during the revolt. This, of course, was treason, and the father might have been hanged. But he had often borne the standard of the Irish on the English side, so his penalty was commuted to the forfeiture of his estates, and he was offered £80 a year pension as compensation. He did not live to draw one quarter’s payment, for he was a broken-hearted old man, and died, literally of grief, on hearing that his son’s wife, who was a

sister of Sir Cahir O'Dogherty, had perished in the woods after having given birth to a child.^[33] Nowadays £80 is a small sum, but it would seem that three hundred years ago, it was worth about £1,000 of our money. So we can hardly agree with Mr. Hill's statement that there was meanness in giving O'Hanlon such a pension. O'Hanlon Junior kept up his guerilla warfare as the leader of a number of outlaws of the Robin Hood type, called woodkerne, and the trouble they gave was only brought to an end when they allowed themselves to be transported to Sweden, to fight for Gustavus Adolphus, a service which they hated, and took every opportunity of deserting to his opponent, the King of Spain.

It is only fair, too, to mention that the Lady Mary, Sir Cahir O'Dogherty's widow, was given an annual pension of £80,^[34] and that the widow of Sir Cowconnaght Macgwire received compensation for the lands she had to surrender in Fermanagh. I am not sure whether she got £100 or £200 a year. The legal documents first mention a surrender of her lands for an annuity of £100 a year, and then a pension of £100, and I do not know whether the two statements refer to one salary of £100 or two. Also that Tyrconnell's widow, Bridget, Countess of Tyrconnell, was given a yearly pension of £300. Compared with the posthumous savagery of Government to Pamela, Lord Edward Fitzgerald's widow, this was generosity indeed.

Now who were the planters in Ulster, and what rules were made about the distribution of the land? The new owners were formally divided into three classes, (i) English and Scottish, who were to plant their proportions with English and Scottish tenants; (2) Servitors in Ireland, who might take English or Irish tenants at their choice; (3) Natives of Ulster, who were to be freeholders. But in reality they included samples of a great many social grades. "Cook's son, duke's son," were to be found among them. English gentlemen of little or no property, Scotch lairds and noblemen with their innumerable clans of relations, soldiers and adventurers, royal grooms and servants. Shurley and Case were footmen when they received grants of land in Longford.^[35] Wray was a groom when he was appointed to the responsible task of seeing that the natives were cleared off the escheated lands; he was to levy fines on them and to keep the money. Then there were the London Companies. Then there were the true patriots; the men who at home had distinguished themselves by crime, or by debt, and found it desirable to leave their native land; these fulfilled the saying of the famous

Irish pickpocket, Barrington, in the prologue that he wrote for a play performed by convicts in Botany Bay:

True patriots we, for be it understood
We've left our country for our country's good.

Among these we should class the Graemes, who had been outlaws, cattle-lifters, and border-robbers on the banks of the Tweed. They had been transplanted in a body to Roscommon in Elizabeth's reign; but even the residence in the Land of Saints did not reform their ideas of property, so they were dispersed and scattered through Ulster in 1610. All were unanimous in one thing only, that they would make as much as they could out of the property, and then go. But, owing to the force of circumstances, the Scotchmen stuck with more pertinacity to their possessions than did most of the other settlers. The English undertakers were mainly from the Eastern counties, Norfolk and Suffolk. They brought no following with them. So they met with difficulty in getting workers and tenants, being forbidden to accept the natives. There were constant bickerings among the undertakers themselves, and with the Bishops about church rights, real or pretended. None of these things worried the canny North Britons, who looked upon Ulster as a veritable Eldorado. A ferry was established between Donaghadee and the Rynnes of Galloway or Portpatrick.^[36] Over it there poured such a ragged regiment as the Irish Sea has never witnessed before or since. Not singly they came, but in battalions; the Scotch Bishop of Raphoe (Montgomery, Bishop of Clogher, Derry and Raphoe, grand-uncle of William Montgomery of the Manuscripts) received permission at one grant for the denization of three hundred of his countrymen whom he should bring over. They had candidates for denization among all classes: younger brothers and sons-in-law and cousins to get grants of land, and workmen and farmers ready to settle down on industrial pursuits. As they did not absolutely rely on the offices of the State church for their religion, we find many ministers of the Presbyterian community coming over and being given licence of denization, and in course of time this third religion became a settled thing in the land. Oily and smooth-tongued these were; willing, with some canting expressions, to change over and become clergymen of the English Church if an opportunity of making anything by the change came in their way. The descriptions of the careers of some of

these men (in Reid's *Presbyterianism in Ulster*) are very amusing. Hamilton was ordained by the Protestant Bishop of Down (Echlin). Robert Blair left Glasgow where he had a professorship, because Dr. Cameron, who had been appointed Principal, with the view of bringing the college to approve of prelacy, had opposed Blair. The latter came to Ireland, and Lord Claneboy proposed he should be rector of Bangor, County Down. But about his opposition to prelacy? The Bishop said, "Will you not receive ordination from Mr. Cunningham and the adjacent brethren, and let me come in among them in no other relation than a presbyter?" So thus, hungering after the flesh-pots of prelacy, he entered into a church whose fundamental tenets he disagreed with.^[37]

The Scotch undertakers had previously been made acquainted with Ulster by the colonizations in Elizabeth's reign in Down and Antrim. They felt more at home in a land where their friends had gone previously. The geographical position was favourable to them. So they and their followers settled permanently in sufficient numbers to give the movement a thoroughly Scotch aspect. Yet for all that, Mr. Prendergast says,^[38] "Ulster continued to be the dangerous part of Ireland till after the war of the Revolution, when it was nearly colonized anew by the Scotch settlers and camp-followers of King William's foreign forces. Eighty thousand small Scotch adventurers came in between 1690 and 1698 into different parts of Ireland, but chiefly into Ulster."

Let me give a contemporary picture that is pleasant enough of a set of these Scotch settlers of James I's reign. They were the holders of land in the barony of Mountjoy, Co. Tyrone; they had fallen into a goodly possession, and the industry we see them all conspicuous for is not to be looked upon as typical of all the adventurers, but only of those who were favoured by circumstances and surroundings. The men were, Andrew Stewart, Lord O'Chiltree; he was of old Scottish descent, and the fourth Lord O'Chiltree. He had fallen into difficulties, and was obliged to sell his barony to Sir James Stewart; the title went with the barony, so it was only a courtesy title by which he was called; but the king, to encourage him and his son, conferred on the young man the title of Earl of Castle Stuart; Robert Stewart of Hilton, an Edinburgh man; Sir Robert Hepburn, a Scotch soldier; George Crayford or Crawford, Laird of Loughnorris, an Ayrshire man, belonging to an old family; Bernard and Robert Lindsay, who belonged to Leith; Robert

Stewart of Rotton, an uncle of Lord O'Chiltree, and finally a brother of Robert Stewart of Hilton. These two Stewarts of Edinburgh, and the two Lindsays were all servants or caterers in some fashion to the king. In 1611, a year after they had taken out their patents, Carew makes the following report^[39]: "Lord Ucheltrie, 3,000 acres; being stayed by contrary winds in Scotland, arrived in Ireland (at the time of our being in Armagh, upon our return home) accompanied with 33 followers, gents of sort [*i.e.*, gentlemen of position], a minister, some tenants, freeholders and artificers, unto whom he hath passed estates; he hath built for his present use three houses of oak timber, one of 50 feet long and 22 feet wide, and two of 40 feet long, within an old fort, about which he is building a bawne. There are two ploughs going on his demesne, with some fifty cows and three score young heifers landed at Island Magy in Clandeboy which are coming to his proportion, with some twelve working mares. Sir Robert Hepburn, Knight, 1,500 acres; sowed oats and barley the last year upon his land, and reaped this harvest 40 hogsheads of corn; is resident; hath 140 cows young and old, and 8 mares; is building a stone house 40 feet long and 20 feet wide, already a storey high; intends to have it three stories high, and to cover it, and the next spring to add another storey to it; good store of timber felled and squared, and providing materials to finish the work. The Laird Loughnorris, 1,000 acres; being deceased himself, as we are informed, had his agent here, Robert O'Rorke; hath timber felled and is preparing materials for building against the spring. Bernard and Robert Lindsay, 1,000 acres apiece; have taken possession personally in the summer, 1610, returned into Scotland's agent, Robert Cowties resident; a timber house is built on Robert Lindsey's proportion; hath eight mares, and eight cows with their calves, and five oxen, with swine and other small cattle, and a competent portion of arms. Robert Stewart of Haulton, 1,000 acres: hath appeared in person, and brought some people; timber felled, and preparing materials for building. Robert Stewart of Robstone, 1,000 acres, hath appeared in person, with tenants and cattle; timber felled and squared, and providing materials for building. The Castle of Mountjoy, upon Lough Chichester [Lough Neagh] beside the old fort, wherein are many inhabitants both English and Irish, together with Sir Francis Roe's foot company. Here is a fair castle of stone and brick, covered with slate and tile, begun in the late Queen's time, and finished by his Majesty. It is compassed about by a good strong rampier of earth, well ditched and flanked with bulwarks. In this Castle Sir Francis

Roe, the constable, and his family dwell.” This seems a happy sort of family; it represents the most industrious type of undertaker, who brings his family influence to bear in getting workers into the place. One would look upon them as intending to settle with their families for ever; but, alas for the good intentions of King James, when Pynnar’s survey was made in 1619 five of these proportions had passed to other hands, mostly by sale. Just as the young fellows who improve land now in Canada try to make something on it in a few years by sale, so a large number of the Ulster Plantation lands went the same way. Nearly all the king’s servants who obtained grants, sold them as soon as possible. Sir James Craig was clerk of the wardrobe and had probably begun life as a tailor. The brothers Achmootie were also servants of the king, and sold their lands.^[40] Their common greed for money was the distinguishing point of all these worthies. Some of them are specially worthy of note for their acquisitiveness. Touchet, Lord Audelay, and his clan, were amongst these. This nobleman came from Staffordshire, and had entirely failed as a planter in Munster. When the northern confiscations began, he made a modest request for 100,000 acres. I don’t know whether the word “land-grabber” was then in vogue, but at any rate his demand was rejected; but he and his interesting family got the barony of Omagh among them, which was set down as having 11,000 arable acres. Lord Audelay got 3,000 acres; Sir Marvin Audley, his son, 2,000; Sir Ferdinand Audley 2,000; Sir John Davies, his son-in-law, 2,000; Edward Blount, another son-in-law, 2,000. The old man was made Earl of Castlehaven, and Davies the lawyer became ancestor of the Earls of Huntingdon, by his daughter marrying a Mr. Hastings. Davies’ grants in all parts of Ulster were enormous; many of the properties were beyond his powers to manage, and he sold them. Here is a report of work done, the date is 1611. “Cavan Precinct of Loughtie. Sir John Davys, Kt., 2,000 acres, has made over his proportion to Mr. Richard Waldron, who passed the same to Mr. Regnold Home, who sold his estate to Sir Nicholas Lusher, Kt., nothing done.”^[41]

Davies got grants of land, confiscated properties and so forth, literally in every county in Ireland. He also received a grant of 100 marks for his services about the parliament. The grant just quoted in Omagh alone must have worked out for the family at nearly the 100,000 acres asked for. On Lord Audley’s death it was found that his property contained not only the 3,000 acres granted, but also 3,000 of meadow, 3,000 of pasture, 2,000 of

wood, 2,000 of briars and whins, and 200 of bog; thus extending his original 3,000 to 13,200, these additions having been thrown in as unprofitable or waste land. So greedy were these men that there was a special commission appointed to correct any blunders that had been made in the grants to the little family group. Davies, Touchet's son-in-law, the Irish Attorney-General, and the evil genius of the whole Plantation, was described by Tyrone as being more fitted to be a stage-player than a lawyer. In the case of this Audley crew, the enquiries showed that they neglected the land shamefully, and did not even reside.

Hamilton, the first Earl of Abercorn, and his crowd, were an example of the hungry Scotch lairds. James Hamilton was the head of this family party; he was grandson of the second Earl of Arran. He, his brother Sir Claud, his brother Sir George, his kinsman another George, his brother-in-law Sir Thomas Boyd, got out of O'Neill's property the greater part of the barony of Strabane. Sir George afterwards incurred Royal displeasure and lost his property by becoming a Roman Catholic, and his grandson was a general in the Jacobite army in Ireland.^[42] Sir Arthur Chichester got Inishowen as his plunder for having been viceroy, and especially for his subserviency in the Parliamentary dispute. He also got large tracts of country where Belfast now is. These three, the Chichesters, the Hamiltons, and the Touchets must have taken an enormous amount of land amongst them.

Then there were the London Companies. The city was very slow in taking up the idea of a settlement in Ireland, and when they did consent to the plan insisted on getting their own way, without any regard to the Plantation rules. As one looks back on the history of the Irish Society, and a chequered history it has been, the best we can say of it is that this gigantic system of absenteeism has not been as bad as one might have prophesied.

The grants and leases to the natives were of very small value, mostly 60 acres, and were only given to a small number. In a great number of cases they were limited either by being only given for one or two lives, with remainders to Englishmen, or by the possibility of forfeiture under the regime of a new landlord. The Derry see lands were at first let out thus; to English or Scotch on lease for sixty years; to Irish for twenty-one years or three lives, with power of revocation by the succeeding Bishop.^[43] Before eight years had elapsed we find that the tenants had been compelled to surrender their leases and take out new ones "on increased rents, by means

whereof the revenues were well increased, to the honour of Almighty God.” Occasionally a native appears with 1,000 acres opposite his name, but it is pretty rare. For example, “Only forty natives in the whole extensive County of Donegal obtained small grants in the dreary regions of Doe and Fanet, now Kilmacrenan. Several of them were representatives of noble Irish families, and the remainder belonged to the class of native gentry. The prevailing surnames amongst them were those of O’Donnell, MacSwyne, O’Gallagher, and O’Boyle. A few very old people got pretty liberal grants, but with remainders to Sir Ralph Bingley and Sir Richard Hansard.”^[44] Some of the conditions attached to grants in this reign are very striking:

Dowry to be forfeited on marrying an Irishman.

Not to take tenants nor employ anyone who could only speak Irish.

Not to destroy passes or bridges unless they led into the Irishmen’s land.

Not to take the names of O’Rourke, O’Mulloy, The Fox, McCoghlan, O’Doyle, The Great O’Ferrall, The Great O’Carroll.^[45]

It looks a little absurd when some Smith or Brown of an English county, or a Menzies or a Montgomery from Scotland, is enjoined so seriously that he must never take the name of The Fox, or The Great O’Carroll.

We must turn now to the religious ideals of the Plantation, and we all know King James was nothing if not religious. I shall try to approach the subject with a dispassioned candour, and speak as an Irishman who loves his country, and as a churchman who longs to see the day when the Protestant Church in Ireland shall become converted to Irish ideas in politics. That Church has been given ecclesiastical Home Rule, and has made full use of its privileges, for it treats theological matters in a way quite independent of English churchmanship. May we not hope for the day when politically it shall cease to allow itself to be dragged at the tail of one English political party? In the Plantation it was intended that the church by the State established should have an endowment in every place; the idea being that in every 1,000 acres sixty should be reserved for the support of the clergyman. And an additional endowment was given by the lands and the patronage of parishes handed over to Trinity College, Dublin. It was, doubtless, hoped that a settled and established Protestant ministry would lead the people all to turn over in time to that faith. And in the meantime,

Government was prepared to do all it could by fears and bribery to lead the people in the way it was wished they should go. For a native squire or peasant to conform was the passport to get a miserable patch of land. Lord Coursye was given a pension of £100 a year for good service, and it was continued and increased to £150 to his eldest son because he had become a Protestant. In another case, Sir James Dillon was made Lord Dillon and Baron of Kilkenny because his eldest son had conformed.^[46] Yet with all these brilliant prospects before them, the people did not flock in their thousands around the preachers of the Established Church. The reason of this was that there was practically no Protestant church in Ulster. It existed only on paper; it was a regular Army Corps. The ecclesiastical buildings were ruinous and desolate; the clergy, where such existed, were the offscourings of the English church, men of depraved life, or so ignorant that they could hardly perform their duties properly. From the bishops down, pluralities were the common and recognized thing; occasionally even we see a man actually holding an English living and a lot of Irish ones at the same time; thus the same man was Archdeacon of Dublin, Treasurer of Cashel Cathedral, Vicar of Galballydrome and Leighlin Macvoge, and Rector of Battersea in Surrey.^[47] John Todd, who seems to have been even below the average of the Irish clergy of that time, as we shall see presently, is found on his appointment as Bishop of Down in 1610 writing to Norton to ask him to intercede with Salisbury that he may not lose his right to the mastership of the Savoy. Even men of high character like Archbishop Usher themselves benefited by these abuses. The fines of the recusants—*i.e.*, the Catholics—were to go to pious purposes like the building of Protestant churches, or were impounded by the Archbishop of Armagh for charity, and no account given. The Ulster bishops were mostly ignorant and greedy Scotchmen, for ever quarrelling with all the other planters about their church possessions, and not always getting the best of the quarrels either. This is what we read in one place in the Patent Rolls: “King’s Letter to the Lord Deputy to confirm Andrew Moneypenny in the Archdeaconry of Connor by putting in force all the orders made by Lord Viscount Grandison against Nicholas Todd, a tailor by profession, an unlearned man, placed in that situation by his unworthy brother John Todd, late Bishop of Down and Connor, and deprived of said dignity for notorious causes, both of insufficiency of learning and corruption in manners.” Chichester as usual impresses us as seeing into these abuses in a clearer and more sensible way

than the rest of the Castle set of that time. We find him writing to the Lord Justice and Davies about religion, when he says all is confused and out of order, as if it were in a wilderness where neither Christianity nor religion was ever heard of. He says, "the Bishops claim too much land and have too little." He wishes the king would make a new allotment, as if in a new Plantation in America. The state of Munster was even worse, owing to the rapacity of the notorious Miler Magrath, who bled immense numbers of parishes for his children. In Mulloghny or Newchapel, County Tipperary, (where I was rector from 1895 to 1898) Miler's son Terence had got the profits of the prebend from the nominal incumbent, who was in such a wretched state that in 1607 Terence Magrath had to give him a cloak to present himself before the Commission that enquired into the abuses. The undertakers, not, I suppose, seeing that the Established Church was making much way, with its grasping Bishops and ruined churches, and absentee ministers, opposed the episcopal claims with all the ardour of Wee Free Kirkmen appealing to the House of Lords, and in a great many cases imported Presbyterian ministers from Scotland. So we can see that even if the native element had been willing to conform, there was practically no established religion for them to join. James began to recognise this when too late in the day, and there is an amusing State Paper in which we see a patent plan of his, that young natives should be caught up, and educated in Trinity College Dublin, to work as Protestant clergymen among the natives, and then if any livings of small value should become vacant, they should be appointed to them.

It was twenty-seven years since a Parliament had been held in Dublin, and when the Ulster Plantation was finished it was decided to convene one in 1613. The histories mostly say that it was called to give legal sanction to the Plantation; if so, it was a case of a late locking of the stable door. It seems more likely that the object, if any, of the Parliament was for the dominant English party to triumph over the fallen natives, and to pass Bills of a further intolerant character. We can see in its constitution, but in a more pronounced form than they would have dared to show in England, symptoms of the abuses and the arbitrary acts which culminated in the total overthrow of the Stuart dynasty. We shall follow the usual order of that period, to execute first, and judge afterwards; so first we shall look into the Parliament and its doings, and then take a brief survey of the subsequent enquiries into its constitution.

It was a most disorderly scene, especially in its earliest stage. Each party had hoped for a majority, but the numbers were slightly in favour of the English party. These latter proposed Davies as Speaker in the Lower House; whereupon Sir James Gough, Sir Christopher Nugent, and William Talbot, late Recorder of Dublin, proposed Sir John Everard, late a judge of the Queen's Bench, but displaced by King James on account of his religion. The affirmative (the supporters of Davies) went out to be numbered; the negative, as was the custom then, remaining behind. But instead of letting themselves be numbered, the Irish party proceeded as if they were the whole house, chose Everard, and put him in the chair. The Englishmen, coming in and finding they numbered 125 in a house of 226, knew they had a majority, and put Davies on Everard's lap. The English then began to remove Everard, by pulling at his legs, while the Irish held him in his place by the collar, Davies still sitting on his knees. Sir John Everard was old and infirm; he was got out of his place with only slight injuries to his leg, whereupon the Irish members withdrew altogether from the house. Then the Catholic lords wrote to the king, and the Irish commoners wrote to the Privy Council of England, both complaining of the business about the Speakership, and the legality of the new boroughs, the members of the Lower House also asking to be excused from attending. To the Lords' complaints answer was made that the Commons' business did not concern them, to which they replied that though not in the Lower House, they made yet but one body and one Parliament. Then the Lord Deputy commanded the Irish commoners to attend to pass the Act of recognition of the King's Title; upon which they sent him a petition recognizing the King's Title, but utterly refusing to sit in the house, unless their Speaker Everard was approved, and the new burgesses rejected. The Lords now acted similarly, and as the Irish element was strong in Dublin, Parliament was adjourned to the 27th of July, 1614.^[48]

Looking at the matter from the standpoint of mere legality, we are obliged to acknowledge that the Irish party were in the wrong more than once in these transactions. When they had been left together for the purpose simply of being numbered, they chose to ignore the other party, and would not let themselves be counted, but proceeded forcibly to put Everard in the chair. Then, of course, the Lords were interfering in a way that would not be allowed nowadays, when they declined to go on till the matters in the Commons had been settled. And finally, if there were any illegalities in the

new boroughs (and there were many, as we shall see), the correct thing, of course was for Parliament first to meet, and then for any errors in the returns to be dealt with. But we need not blame the Irish party for these little blunders. There had not been a meeting of Parliament for a generation, and they went there in a high state of tension and exasperation, first at the confiscations, and then at the conduct of the returning officers.

On the return of the Parliament, there was a controversy about the precedence of the Lord of Slane over the Lord of Kerry; this being ended, Parliament passed ten Acts: An Act of recognition of the King and his action in Ulster, stating with delicate irony, that James had established his government in the hearts of his people. One removing benefit of clergy in certain cases. Repeals of old Acts against admitting and associating with Scots, and against having commerce with the Irish enemies. An Act of General Pardon. An Attainder of Tyrone, Tyrconnell, Sir Cahir O'Dogherty and others. And a subsidy. Sir R. Cox, who was a violent Protestant, tells us, that on Chichester's being summoned to England, "Irish affairs were so well managed by the Lord Deputy, that the King was fully convinced of the seditious designs of the Irish."

When the recusant lords appealed to the king, his reply was insolent and silly; it was intended to drive them into further opposition. It is not worth quoting. He admits that two returns were proved false, and he foreshadowed the future failures of the Stuart race by such violent words as these, written to the noblemen: "You that are of contrary religion must not look to be the only law-makers. You that are but half-subjects should have but half privilege; you that have an eye to me one way and to the Pope another way."

Now let us turn to the Commission and its findings.^[49] They were directed not only to inquire into the disputes about the elections, but to find out if any of the elected members could not speak English, and to find out whether there were any combinations or conspiracies not to elect Protestants, and to see if any Jesuits or priests had any meddling in such matters. They also were directed to see if any general assessments and levies of money were made without authority, and to report if the priests and Jesuits were responsible; also to report generally on abuses in Ireland; and on the prospects of a Plantation in Wexford. The names of the Commissioners were, Lord Chichester, Sir Humphrey Winche, Sir Charles

Cornwallis, Sir Roger Wilbraham, and George Calvert. They found that: In Armagh an Irish freeholder and candidate was kept out by an armed man at the door, upon which he, Henry McShane O'Neale, withdrew with most of the Irish freeholders. That in Cavan, Captain Fleming, an Irish freeholder, had appealed to the sheriff for an adjournment of nominations, and had been given hopes of one, but, the sheriff not adjourning, the Irish were not represented at the election. In the King's County, the Irish candidates, one of whom could not speak English, had the greater number of names on their nomination paper, yet the under-sheriff returned the two English candidates. In this case two whose names were written down for the Irish candidates, disavowed their signatures, and another confessed to having put his name on the list after the election was done, and Sir Terence O'Dempsey gave his vote by proxy. In Limerick it was questioned whether the English or Irish candidates had the greater number of freeholder votes; the sheriff did not take the obvious course of numbering the freeholders, but returned the Englishmen. He denied that it was his duty to number the polls. In Fermanagh, neither of the Irish candidates responded to the Commissioners' invitation to be present, for good reasons: one could not speak English, and the other "indicted for treason, broke prison, and hath betaken himself to the woods." They found that at this election Captain Gower did not pull Brian McGuire's beard from his face, but only shook him by the beard. In Roscommon the Irish candidates' witnesses seem to have been rejected, because of their "speaking only the Irish language, and being men of mean condition, as they seemed to us." In passing we may mention that two of Sir John Everard's supporters in Parliament could only speak Irish. In Dublin, the Mayor being absent, the recusants duly elected two aldermen at the County Court; later the Mayor proclaimed an election at Hoggin, when two English candidates were nominated by the Mayor. To see which had a majority, he made the parties divide, and then, without counting the polls, he declared the Englishmen, his nominees, elected. In Trim there were two elections, as there did not seem to be any proper authority for fixing a date. In Kildare borough, the sovereign returned two, whom the Commission declared to be not elected, deciding that the Irish candidates were returned. In Wicklow there was a confusion between the reputed portriff and the deputy-constable about the proper date, and finally two English candidates were returned. In Cavan, the sovereign and inhabitants held an election, without waiting for the sheriff's permission,

and declared two natives elected. The Ulster men all resented the intrusion of the sheriffs upon them.^[50] Then the sheriff directed his warrant to the sovereign, and another election was held. The greater number voted for the natives, yet the sovereign declared the English candidates returned, though they had fewer voices. The Commission here says: "At this election Sir Oliver Lambert with a little walking-stick, did strike one George Brady, one of the inhabitants, for using towards him some rude behaviour, and giving him some unfitting speeches; and upon view by us, it did not appear to us, that his head had been broken."

They found there was a general combination against electing Protestants; the reason being, the natives believed laws would be propounded concerning religion and for banishment of priests. They found that the Roman Catholic knights of the shire and burgesses levied contributions to pay for sending their agents for their appeal to England. And the moneys obtained by the priests seem to have been dues of the most ordinary kind. In fact, the dragging in of the priests and Jesuits, first suggested in James's commands to the Commission, proved to be a perfect mare's nest. They found that two burgesses were returned from Clogher, which had never sent members before, and had no charter to do so. The Commission then went on to describe the disorderly scene at the meeting of Parliament. It appeared that several of the new corporations had no right to return members, their charters bearing date after the Commission for the holding of the Parliament, and some after the summons to the Parliament.

After that, they go into the general grievances of the country. Juries will not present recusants. "The small number, less sufficiency, and little residence of the ministers. The want and defect of churches, either wholly ruined, or so out of repair as to be unfit for the service of God." Remedy, to enforce the laws of conformity, and to do away with idle and scandalous ministers. The soldiers extort; officers take money not to cess; the provost-marshal's men extort. The people are afraid to make complaint for fear of worse impositions. The extortion of clerks and multiplying of new offices. The clearing out of Wexford for a new plantation; some old freeholders restored to their land or portion, but with some of the English party holding it in trust for them; while 390 freeholders, and 14,500 other people "may be removed at the will of the patentees, notwithstanding few are yet removed." For this plantation a jury was appointed and found "ignoramus" to the

King's title. They were bound over to appear again, and then eleven agreed to find for the title; but five, who refused, were committed to prison, and censured in the Castle Chamber. After that come figures about the Wexford Plantation and the rent reserved, which was £5 per 1,000 acres for the English, and £6 6s. 8d. for the natives.

Here ends the Commissioners' finding. It was worded with caution, but we can see they felt that the condition of Ireland was one of gross misgovernment. In fact, it would be impossible to feel anything else, if the subject were dealt with from the point of view of legality. Notice that no fault or crime was urged against the native population except those violations of the law which come from their adhesion to their own views in politics and religion. On the other hand, every constitutional law was being broken by the misgovernors of the land. How James could assert there were only illegalities in the cases of two members of Parliament, it is difficult to say. Even if the King's County case was doubtful, the Kildare case, the Cavan case, and the Clogher case, would clearly make six. Some of these findings, as about the military impositions, and the Wexford peasantry being tenants at will, must have been bitter reading for Sir John Davies, who had written so strongly against that sort of thing, and who, though rapacious and heartless, may be fairly described, in the writer's humble opinion, as the father of the Ulster custom.

The Commission, as far as it touched Parliamentary matters, dealt only with the House of Commons. The constitution of the House of Lords was as bad. On the eve of the meeting of the Parliament, on 31st March, 1613, a King's letter was issued to call to the Upper House by writ, Lord Abercorn, Lord Henry Brian, son of the Earl of Thomond, Lord Audley, Lord Ochiltree, and Lord Burleigh. The letter also said if the right of Lord Barry, Viscount Buttevant was questioned because he had an elder brother who is deaf and dumb, the question was to be silenced by the king's commandment, because of his dutiful behaviour, and because he had enjoyed the title for many years without contradiction. A letter in the Carew Papers shows that Lord Henry Brian or O'Brien was summoned because he was a Protestant, where we also read that Lord Athenrie, who was too poor to attend, was to be induced to give his proxy to some Protestant lord.^[51]

A good many of the intended mushroom boroughs came to nothing. Virginia was meant to be a borough, but was never incorporated.

Charlestown and Jamestown were intended to be the county towns respectively of the counties of Roscommon and Leitrim, but the ill-omened names have disappeared from our maps, though the village of Jamestown became a pocket borough, returning two members till the Union.^[52]

It may be necessary to mention that the colonization of Down and Antrim are quite separate matters. About the beginning of the fifteenth century, the MacDonnells, Lords of the Isles, came to Antrim, and in 1584 a thousand Scottish highlanders, called “Redshanks,” of the septs of the Cambiles, MacDonnells and Magalanes, led by Surleboy, a Scottish chieftain, invaded Ulster. And early in James’s reign some English from Devon were brought over by Chichester and settled in Carrickfergus and Malone, near Belfast. These formed the Planters of Antrim; and Down was colonized through the interference of a laird named Montgomery. Con O’Neill had got into trouble with the Government, and his wife (a lady of great abilities, and a sister of Brian MacArt and half-sister of Owen Roe MacArt) appealed to Montgomery to help him to secure his pardon. Montgomery did secure it; but with the result that the patent for his share of Con’s land specified that the lands should be planted by British undertakers, and that no grants of fee-farms should be given to any of Irish extraction.^[53] Then James Hamilton came in and got a share, Con, Hamilton and Montgomery having one-third each. In 1606 O’Neill had to part with his property, giving it up to Montgomery. The latter founded Newtown (or Newtownards), Donaghadee, Comber and Grey-Abbey; and Hamilton founded Bangor, Holywood, Killileagh, and Ballywalter. So these wily Scotchmen got practically the whole of the County Down; and the Scotch settlers who came over in hundreds filled up the land. The barony of Iveagh, which contained so much highlands, was held by the Magenises. They seem to have been astute enough. Though often law-breakers, they did not transgress politically, and when the barony was specially settled in 1617 they got most of the land in Iveagh, and they had only to pay twice as much as the English.^[54] Here is a brief contemporary description of the head of the family. “Sir Hugh McEnys was the civilest of all the Irishry of those parts. He was brought by Sir Nicholas Bagnall from the Bonaghe of the O’Neyles to contribute to the Queen. In this place only amongst the Irish of Ulster is the rude custom of tanistship put away. Maginis is able to make 60 horsemen and 80 footmen. Every festival day he wears English garments.”

Besides the Ulster counties, in this reign there were also plantations of King's County and Longford at a rent to the Crown of 2½d. per acre for pasture land, and ½d per acre for bog and wood, Wexford at rent 1¼d. per acre, Upper Ossory (Queen's County) at 3d. per acre. Westmeath and Cork. There were also grants in Meath and Louth; but, though large, they hardly professed to be the basis of a plantation.

Many continental immigrants became naturalized in Ireland in this reign; they hailed mostly from Antwerp and Brabant.^[55]

Now what has the introduction of the North Britons done for Ireland? It has added complications to the religious problems of the country, by adding a third element. To all who study the history of Ireland, it tends to increase the sense of injustice and wrong, to see how the North and its industries have always been pampered for the three centuries intervening. It has not tended to the consolidation of the Empire, for every Ulster so-called "Loyalist" is a Home Ruler of a type of his own, for he approaches all Imperial problems from a local point of view. In the troublous times when political convulsions come in Belfast, as in 1886 and 1892, the most hated class of men is found to be the body that is representative of law and order, the Royal Irish Constabulary. Ulster is loyal as long as she gets her own way. Her good temper is very like what Sir Antony Absolute says of himself, "You know I am compliance itself—when I am not thwarted; no one more easily led—when I have my own way." Her vices are worse than the traditional vices of the rest of the land. In morality the South and West of Ireland people are superior; while in temperance, it may at least be said they are not inferior. The virtues of Ulster are economy and industry and determination. They have an unreasoning decision, a blind enthusiasm, in political and religious matters that carries them along in a way that will never be copied by the more thoughtful and more depressed Southern. Ulster has shown the rest of Ireland that, however attractive the land may be, it is well to have trades and industries that do not depend, or only depend partly on the land. The crowning merit of James's work in Ulster is that there is one part of the country where landlord and tenant, squire and labourer, think very much alike in religion and politics, so that a good understanding should be looked for between the various parties. Had he left Tyrone and Tyrconnell and O'Dogherty with their vassals, the same result would have been arrived at, without all the unconstitutional things I have

referred to. Unconstitutional! We have seen the beginning of the Stuart rule; we know how it ended.

And in the struggles that intervened, Ulster was invariably against the Crown. To the English and Scotch squatters, and the Irish Society, were given arable and pasture lands, fishings, courts leet and baron, ferries, bishoprics and livings, mountain-lands and bogs, courts of pie-powder, exemptions, titles, licences to beg, recusants' fines, wardships and marriages of minors, charters of the staple, customs on tobacco-pipes, and monopolies of all kinds, and in a few score years the grandchildren of these favoured persons made themselves famous by their bitter opposition to James's grandson. Thus the whirligig of time brings its revenges.

Notes

- [1.](#) Tract by Sir Thomas Smith on the Colonisation of Ards, in Co. Down, 1572.
- [2.](#) *Patent Rolls*, 1 James I., lxx., 22, Dorso, p. 5.
- [3.](#) See *The Broken Sword of Ulster*, by R. Cuninghame.
- [4.](#) *State Papers, Ireland* (1609), p. 330, (1608), pp. 108, 109.
- [5.](#) Plowden's *History*, I., p. 341.
- [6.](#) *Calendar State Papers, Ireland* (1608-10), Preface.
- [7.](#) *Broken Sword of Ulster*, p. 153, &c. For the earlier plots of Mountjoy against Tyrone, see Docwra's *Narrative*, Celtic Society's *Miscellany*, Notes, p. 315.
- [8.](#) *State Papers, Ireland* (1608), p. 31.
- [9.](#) *State Papers, Ireland* (1608), Preface, p. xli.
- [10.](#) Celtic Society's *Miscellany*, Docwra's *Narrative*, Notes, p. 315.
- [11.](#) *Carew Papers*, "Discourse for the Reformation of Ireland" (1583). See also Sir J. Perrott's *Proposals*, same vol., II., p. 368; II., p. 415.
- [12.](#) Hill, *Plantation of Ulster*, p. 222.
- [13.](#) *State Papers, Ireland* (1607) Preface, p. lvii.
- [14.](#) *Enrolled Patent Rolls*, 16 James I., pp. 419, 420.
- [15.](#) *History*, Vol. II., p. 14.
- [16.](#) *Broken Sword of Ulster*, pp. 153, 168.
- [17.](#) P. 313. Note.
- [18.](#) *Broken Sword of Ulster*, p. 179.
- [19.](#) MacNevin (*Confiscation of Ulster*, p. 137, note) says the Irish had to pay £10 13s. 4d. for 60 acres. He does not state how he gets at this fact. The grants to the natives seem to have been at the rate of £1 1s. 4d. for 100 acres, which would work out at £10 13s. 4d. for 1,000. (See *Patent Rolls*, James I., *passim*.)
- [20.](#) Rev. George Hill, *Montgomery MS.*, p. 55, note. *Patent Rolls*, 14 James I., lxiii., 4, Dorso, and 15 James I., xli., 3, Dorso.
- [21.](#) *Patent Rolls, Ireland*, 19 James I., Part II., xvii., 41.

- [22.](#) *State Papers, Ireland* (1609), p. 196.
- [23.](#) Hill, *Plantation of Ulster*, pp. 220, 223.
- [24.](#) Hill, *Plantation Papers*, p. 77.
- [25.](#) *Plantation Papers*, p. 77.
- [26.](#) *Carew Papers*, p. 228.
- [27.](#) *Plantation Papers*, pp. 13, 14.
- [28.](#) Hill, *Plantation of Ulster*. See Sir J. Davies' letter to Salisbury, 27th June, 1609, about Sir Neale. When the jury were found to be favourable to him they were dismissed by a trick. Davies recommends to have him tried by a jury in Middlesex, or kept till the colonies of English or Scotch may be planted in Tyrconnell.
- [29.](#) *Patent Rolls*, II James I.; 5 lv., 31, p. 250. 14, March 10th. See pp. 257, 293. *Carew MS.*, pp. 49, 88; *State Papers, Ireland* (1609), pp. 264, 299; (1610), p. 416.
- [30.](#) *State Papers* (1610), pp. 502, 503.
- [31.](#) *Plantation Papers*, p. 96.
- [32.](#) *Patent Rolls*, 20 James I., Part III., lxii., 27 Dorso.
- [33.](#) *Plantation Papers*, p. 29. An early and unsuccessful attempt to plant had been made on Sir Oghie O'Hanlon's land in 1569; it had been taken from him and given to Captain Chatterton. Chatterton was killed, and as nobody would venture to plant the land, it was restored to O'Hanlon. An interesting proclamation of Carew's in 1603, on the subject of the rate of wages in the North of Ireland, is given in *Plantation Papers*, p. 79.
- [34.](#) *Patent Rolls*, 12 James I., I., viii., 2. Lady O'Dogherty was about to proceed to London in pursuit of relief, and as Chichester found that her marriage money had never been paid by her brother, Lord Gormanstown, he got the king to give her £40 a year during pleasure out of the rents of Inishowen. *State Papers* (1609), p. 216. *Patent Rolls*, 14 James I., lxxxii., 14 Dorso, Part I., and 14 James I., vi., 8, Part 2, Facie.
- [35.](#) *Patent Rolls*, James I., pp. 48, 443. *Plantation Papers*, pp. 19, 190, 119.
- [36.](#) *Patent Rolls*, James I., pp. 312, 314. *Plantation Papers*, pp. 19, 119, 190.
- [37.](#) Reid, *Presbyterianism in Ulster*, I., pp. 103, 104.
- [38.](#) Prendergast, *Ireland from the Restoration to the Revolution* (1660-1690), p. 98.
- [39.](#) Hill, *Plantation Papers*, p. 67, ff.
- [40.](#) *Plantation Papers*, pp. 26, 189.
- [41.](#) See *Patent Rolls*, passim; *Carew Papers*, p. 227; *Plantation Papers*, p. 52.
- [42.](#) Sir R. Cox, *History*, II., p. 29. *Plantation Papers*, p. 64.

- [43.](#) *Patent Rolls*, 14 James I., Part I., cvi., 27 Dorso.
- [44.](#) *Plantation Papers*, p. 146.
- [45.](#) See *Patent Rolls*, James I., pp. 492, 512, 532, &c.
- [46.](#) *Patent Rolls*, James I., pp. 455, 473.
- [47.](#) *Patent Rolls*, 11 James I., 5, cv., 17 Dorso; 18 James I., lxxxvii., 37 Dorso; pp. 314, 555. 22 James I., cxiv., 47 Dorso. *State Papers* (1610), pp. 31, 64, 391. See also the Inquiry into the state of Dioceses of Cashel and Emly and Waterford and Lismore in the *State Papers*. *Patent Rolls*, 18 James I., xxxiv., 6 Dorso.
- [48.](#) Sir R. Cox's *History*; *Plowden*; and the report of Commission mentioned below and printed in the *Patent Rolls*. The fullest account is by Cox, where the Acts of the Parliament and the King's letter to the remonstrant Lords are described.
- [49.](#) *Patent Rolls*, 16 James I., pp. 369-401.
- [50.](#) Camden's *Ireland*, pp. 123, 125.
- [51.](#) *Patent Rolls*, 11 James I., lxxv., 36 Facie. *Carew Papers*, p. 147.
- [52.](#) *Patent Rolls*, 10 James I., 1, v. 7 Facie. 20 James I., xlii., 11 Dorso. See Lewis's *Topographical Dictionary of Ireland*.
- [53.](#) *Patent Rolls*, James I., p. 236.
- [54.](#) *Patent Rolls*, 16 James I., xv., Dorso. *State Papers, Ireland* (1608), 10, Preface, p. xi.
- [55.](#) While these people were coming over from Belgium, it is of interest to note that as well as at Louvain, there was an Irish College at Tournai in 1607. *State Papers* (1607), p. 230.

STRAFFORD

PART I

THE GRACES

BY PHILIP WILSON

Strafford

PART I

THE GRACES

THE reign of James the First had been, if we except one petty and insignificant outbreak in Ulster, a period of tranquillity for Ireland; and, at the accession of his son, the prospects of the country might have seemed to a superficial observer more promising than they had yet been. But, in fact, the ostensibly pacific and constitutional measures of James had produced results more disastrous, and aroused animosities more enduring than even the exterminating policy of his predecessor. Henry Carey, Lord Falkland, who three years earlier had succeeded Grandison as Lord Deputy, was at this time confronted with two problems which have since taxed to the uttermost the abilities of many wiser and more resolute men than he. During the preceding reign the laws which prohibited the exercise of the Roman Catholic religion had been fitfully and spasmodically enforced. Minorities have often been dragooned into conformity; but it is not easy by such means to change the religion of an entire nation; and the dread of a rebellion in Ireland, no less than the necessity of maintaining friendly relations with foreign Catholic powers, repeatedly led the English Government to place a curb upon the frantic zeal of the ascendancy party at Dublin. The latter consideration had recently derived additional force from the marriage of Charles, then Prince of Wales, to a Catholic princess; and, on the accession of the young king, the co-religionists of his consort began, not unnaturally, to hope for something more than the precarious and extra-legal toleration which was all that they had hitherto enjoyed. On the other hand, the fact that the king was disposed to treat the Catholics with leniency was in itself enough to inflame the hostility of the Puritan party, which comprised the majority of the English middle class and had already obtained the ascendancy in at least the Lower House of Parliament. To satisfy the wishes

of the Irish without raising a storm in England was a task beyond the abilities of either Falkland or his master.

A still more serious source of discontent was to be found in the general sense of insecurity which pervaded the Irish gentry. During the last years of James's reign, the precedent which had been set in Ulster had been followed on a smaller scale in Leitrim, Longford, Wexford, and King's County. All those counties, or parts of them, had, at some time since the Norman invasion, been occupied by English colonists, who had afterwards been driven out by the original inhabitants. During many generations the latter had remained in undisturbed possession; but few of them had taken the trouble to obtain title-deeds which would be valid by English law—a science of whose mysteries they were profoundly ignorant. If in a few instances such documents had once existed, they had generally been lost or destroyed during the long period of anarchy and civil war. It was now decided that these gentlemen, being unable to produce satisfactory title-deeds, were intruders upon the estates of the Anglo-Norman adventurers who had despoiled their ancestors some centuries before; and, when the heirs of the latter were not forthcoming, the lands, in default of any other claimant, were adjudged to have lapsed to the Crown.^[56]

The alarm and indignation to which these proceedings naturally gave rise were especially great in the western province. During the last three reigns a series of confiscations had been carried out in Leinster, Munster and Ulster, but the Connaught landowners had hitherto escaped spoliation, and they had very lately obtained for their estates a security which, it might have been thought, would have proved a barrier against the rapacity of the most unscrupulous government. In 1585 Sir John Perrott, then Lord Deputy, had effected an arrangement, known as the "Composition of Connaught," by which the gentlemen of that province were secured in the possession of their estates; but, owing probably to the troubles which not long afterwards broke out in Ulster, the formalities necessary in order to give validity to this transaction were never carried out. In the thirteenth year of his reign, however, James consented, in consideration of a bribe of £3,000, to issue a commission remedying this defect. The Irish gentry loyally performed their part of the agreement; but, owing to some negligence, or, more probably, some trickery on the part of the officials of the Court of Chancery, the patents were incorrectly enrolled, and were afterwards pronounced by

interested and unscrupulous lawyers to be null and void. Shortly before the death of James it began to be rumoured that the Government intended to avail themselves of this technical irregularity in order to establish a Plantation in Connaught on the model of the Plantation of Ulster. The rumour, as might have been expected, excited the most painful apprehensions in Ireland; but no actual steps had been taken towards the Plantation when the king died.^[57]

Charles was not altogether indisposed to treat his Irish subjects with fairness; but his strongest desire, then as always, was to secure a revenue which would render him independent of the English Parliament. The Irish Catholics, on their side, were willing enough to contribute to the relief of the king's necessities, if by so doing they might obtain toleration for their religion and security for their estates. The first act of the young sovereign was admirably calculated to attract the popular goodwill. By a statute of the second year of Elizabeth, all mayors, sheriffs, and other municipal officers were required to take the Oath of Supremacy; but, owing to the scarcity of Protestants, the law, except in Ulster, had generally been a dead letter. In 1618, however, Sir Oliver St. John had procured the forfeiture of the charter of Waterford—a city which had persistently elected recusant magistrates.^[58] As an earnest of the royal favour this charter was now restored, and, to the scandal of zealous Protestants, a Roman Catholic mayor was once more installed in office.^[59]

A few days later, Falkland, acting under instructions received from England, convened an assembly of the Irish nobility and gentry to consider the measures to be taken to relieve the financial embarrassments of the Government, and to hear the concessions which the king was willing to make in return for their assistance.^[60] But an unexpected obstacle intervened. Justly conceiving that the proposed concessions would put an end to the monopoly hitherto enjoyed by their sect, the Protestant prelates, with Archbishop Usher at their head, drew up and published a “Judgment concerning toleration in religion,” which may be commended to the attention of those pious persons who are accustomed to declaim against the bigotry of the Vatican.

“The religion of the Papists is superstitious and idolatrous; their faith and doctrine erroneous and heretical; their Church, in respect of both, apostatical. To give them, therefore, a toleration, or to consent that they may

freely exercise their religion and profess their faith and doctrine is a grievous sin, and that in two respects. For,

“First. It is to make ourselves accessory, not only to their superstitious idolatries and heresies, and, in a word, to all the abominations of Popery, but also, which is a consequent of the former, to the perdition of the seduced people which perish in the deluge of the Catholic apostacy. Secondly. To grant them a toleration in respect of any money to be given, or contribution to be made by them, is to set religion to sale, and with it the souls of the people whom Christ our Saviour hath redeemed with His Most Precious Blood. And as it is a great sin, so it is also a matter of most dangerous consequence, the consideration whereof we commit to the wise and judicious, beseeching the God of truth to make them who are in authority zealous of God’s glory, and of the advancement of true religion: zealous, resolute and courageous against all Popery, superstition, and idolatry. Amen.”^[61]

A little later Downham, Bishop of Derry, preaching before the Lord Deputy, denounced toleration in still more unmeasured terms. These outbursts of episcopal intolerance aroused the sympathy of the English House of Commons, who passed a resolution: “That the Popish religion is publicly professed in every part of Ireland, and that monasteries and nunneries are there newly erected and replenished with votaries of both sexes, which will be of evil consequence unless seasonably repressed.”^[62]

The opposition of the Protestant bishops in Ireland and of their English sympathisers retarded for a considerable time the progress of the negotiations between the Government and the recusants; but in the spring of 1628 the agents of the latter had a personal interview with Charles at Whitehall, when an agreement was arrived at which, it was hoped, would prove satisfactory to all parties. In one important particular the concessions which were now promised were less liberal than those which in the preceding year the Catholics had been led to expect. Charles had then been willing to consent to the repeal of the Act which imposed a fine of one shilling on persons absent from the Protestant parish churches on Sundays. Out of deference, probably, to the protest of the episcopate, this concession was now withdrawn. But, in spite of this omission, “the Graces,” as they were called, were well calculated to redress the most serious grievances of the Irish. A new oath of a purely civil character was substituted for the Oath

of Supremacy, and recusants were thus enabled to sue their liveries and to practise at the bar without fear of molestation. An undisturbed occupancy of sixty years was to afford a prescriptive title against all older claims of the Crown. The deficiencies in the titles of the Connaught landowners were to be supplied by an Act of the Parliament which, it was expected, would be shortly summoned. Other grievances of a more general kind, which affected Protestants no less than Catholics, were also remedied. In return for these concessions the Irish agents undertook to raise a “voluntary contribution” of £120,000, to be paid in quarterly instalments ranging over three years.^[63]

It was arranged that the Irish Parliament should meet in November. The writs were issued, and some, at least, of the elections had actually taken place, when the English Council discovered that by summoning a Parliament without having first transmitted to England a statement of the Bills which it would have to consider, the Lord Deputy had been guilty of a technical violation of Poynings’ Act. The writs were accordingly cancelled, and the holding of the Parliament indefinitely postponed.^[64] In spite of this disappointment the Irish, who had not yet fathomed the duplicity of their sovereign, paid the first instalments of the contribution with punctuality and were rewarded with a less rigorous execution of the penal statutes.

Falkland did not long retain office after this humiliating rebuff. The embarrassments which Charles anticipated from the promise of concessions which he was already anxious to evade made him eager to entrust the government of Ireland to stronger and more resolute hands, and a popular pretext was soon found for the recall of the obnoxious Deputy. During the reign of James, Falkland, urged on by Sir William Parsons, afterwards the notorious Lord Justice, had attempted to despoil a sept named O’Byrne by the kind of legal jugglery which was then fashionable, but had met with unexpected opposition from the English Government, which was beginning to entertain doubts of the merits of the Plantation system. A few years later he discovered, or professed to have discovered, a formidable conspiracy in which the O’Byrnes were involved. Phelim O’Byrne, the head of the sept, and his six sons were arrested, tried by a jury composed partly of their hereditary enemies, and partly of persons who coveted their estates, convicted and imprisoned, and their lands divided among English adventurers. In this transaction Falkland had received the support of a majority of the council with Lord Cork at their head, but had been opposed

by a minority, among whom the Chancellor, Lord Loftus of Ely, and Sir Francis Annesley, afterwards Lord Mountnorris, were the most conspicuous. Neither Loftus nor Mountnorris were men of unblemished character, and their opposition to the Lord Deputy was probably due at least as much to personal jealousy as to any disinterested sympathy with his victims; but to whatever motives it is to be ascribed, there can be no doubt that their conduct was in this instance fully justified. In the autumn of 1628 these gentlemen induced Charles to institute an inquiry into the means by which the evidence against the O'Byrnes had been obtained. Falkland protested, but his protests were disregarded. It soon transpired that his Excellency had had good reason to desire concealment. The original accusers of the O'Byrnes turned out to have been criminals under sentence of death who had been released on undertaking to swear as the Lord Deputy desired. More respectable witnesses deposed that they had been compelled by torture to corroborate the evidence thus obtained. In consequence of this inquiry the O'Byrnes were released, but their lands were not restored to them.^[65]

This exposure effectually destroyed what little reputation Falkland had left. In January, 1629, it was decided to recall him; but it was not until the following August that he surrendered the sword, having a few months previously issued a proclamation declaring that "the late intermission of legal proceedings against Popish pretended or titular archbishops, bishops, abbots, deans, vicars-general, Jesuits, friars and others of that sort, that derive their pretended authority and orders from the see of Rome, hath bred such an extraordinary intolerance and presumption in them as that they have dared here of late not only to assemble themselves in public places to celebrate their superstitious services in all parts of this kingdom, but also have erected houses and buildings called public oratories, colleges, mass-houses, and convents of friars, monks and nuns in the eye and open view of the State, and, by colour of teaching and keeping schools in their pretended monasteries and colleges, do train up the youth of this kingdom in their superstitious religion, to the great degradation and contempt of his Majesty's regal power and authority"; and commanding them in his Majesty's name thenceforth to "forbear to preach, teach, or celebrate their service in any church, chapel, or other public oratory or place, or to teach any school in any place or places whatsoever within this kingdom."^[66]

After the dismissal of Falkland the administration of Irish affairs was entrusted to Lord Chancellor Loftus and to the Earl of Cork as Lords Justices. Adam Loftus, grandson and namesake of the first Protestant Archbishop of Dublin, brought to his high office an inherited instinct for speculation, which he transmitted in undiminished splendour to his descendants.^[67] His colleague was in every respect a more remarkable man. Born at Canterbury in 1566 Richard Boyle came to Ireland at an early age with twenty-seven pounds in his pocket; obtained, by means of letters of introduction which were afterwards discovered to have been forged, one of those subordinate posts in the government of which the direct emoluments were small, but which afforded boundless opportunities for illegitimate gain; and, in the confiscations which followed the Desmond war, acquired one of the largest estates in Munster. Like most of the Munster planters he was for a while ruined by Tyrone's rebellion, but more fortunate than many better men, eventually regained more than he had lost. In 1598 he was examined before the English Privy Council on a charge of holding treasonable correspondence with Spain; but, though his defence can scarcely be regarded as convincing, he succeeded, with his customary good fortune, not merely in outwitting his accusers but in recommending himself to the favour of his sovereign. During the reign of James, Boyle thrived rapidly, and not only rose to some of the highest places in the State but built up a colossal fortune, which his family motto ascribed to the providence of God, but which, in the general estimation of his contemporaries, might be traced to a very different source. His uniform severity towards the Catholics has won for him from a certain school of historians the praise of exemplary piety; but an impartial student of his political career will probably pronounce him an unscrupulous adventurer, whose zeal against Popery sprang in large measure from a desire to enrich himself at the expense of the Papists.^[68]

The Lord Chancellor was not less fanatical than his colleague; but, in spite of the identity of their political opinions, the personal feud between the two Lords Justices was so bitter that the king was obliged to send a special agent from England to compose it.^[69] The reconciliation thus effected was superficial, but the two noblemen cordially co-operated in repressive measures against the recusants. An incident which took place not long afterwards throws a curious light on the temper of the governing faction and the precarious position of the Catholics. In the autumn of 1629,

according to a contemporary Protestant writer, “the Romish Catholics began to rant it in Ireland, and to exercise their fancies called religion so publicly as if they had gained a toleration. For, whilst the Lords Justices were at church in Dublin on St. Stephen’s day, they were celebrating Mass, which the Lords Justices taking notice of, they sent the Archbishop of Dublin, the mayor, sheriffs and recorder of the town to apprehend them, which they did, taking away the crucifixes, chalices and paraments of the altar, the soldiers hewing down the image of St. Francis. The priests and friars were delivered into the hands of the pursuivants, at whom the people threw stones and rescued them. The Lords Justices, informed of this, sent a guard and delivered them, and clapt eight Popish aldermen by the heels for not attending their mayor. Upon the account of this presumption fifteen houses, by direction from the Lords of the Council here, were seized to the King’s use, and the friars and priests so persecuted as two hanged themselves in their own defence.”^[70] The persecution, which had begun in the capital, was rapidly extended throughout the country. During the next three years numerous monasteries and convents were dissolved. In the summer of 1630, a university which the Catholics, who were excluded from Trinity College by the Oath of Supremacy, had recently erected for their own use, was suppressed, and its revenues transferred to its Protestant rival. Two years later a shrine of St. Patrick in Lough Derg, which was much frequented by pilgrims, and was regarded by the people with a veneration no less national than religious, was, by order of the Lords Justices, dug up and destroyed.^[71]

These oppressive proceedings were, no doubt, acceptable to the English Council; but in other respects the administration of the Lords Justices could not be considered satisfactory. A Parliament was again promised, and again postponed. By the beginning of 1632 the revenue showed a deficit, the pay of the troops was in arrear, the coast was exposed to the attacks of Moorish pirates, and the public buildings—arsenals, churches, even Dublin Castle itself—were everywhere in decay. The voluntary contribution would soon be at an end, and it was unlikely that the Catholics, who had begun to suspect the king’s sincerity in the matter of the Graces, would consent to renew it. Their lordships could think of no means of meeting expenses except the enforcement of the shilling fines.^[72]

Such was the condition of affairs when Thomas Wentworth assumed the government of Ireland. His appointment bears date January, 1632, but it was not until the middle of the succeeding year that he proceeded to Dublin. ^[73] Before leaving England he had contrived with characteristic dexterity to relieve the financial embarrassments of the Government. Cork and Loftus had, as we have seen, been anxious to exact the recusancy fines. Wentworth took care that their wishes should be generally known. He then despatched an agent, himself a Catholic, to negotiate secretly with his co-religionists. This gentleman informed the leading recusants that the Lord Deputy was averse to persecution, but that, if no other means could be devised for the relief of the king's necessities, he would be compelled to act upon the Lords Justices' advice. Alarmed at this intimation and eager to conciliate one who might prove either a dangerous enemy or a most valuable friend, the Catholics agreed to levy an additional "voluntary contribution" of £20,000. The Protestants, who were wholly dependent on the Government, did not venture to resist. ^[74]

The sum thus obtained was sufficient for his immediate requirements; but, in order that the finances might be placed on a satisfactory basis, it was necessary that the Irish Parliament, which had not met for nearly twenty years, should be again summoned. The step was certain to be popular, and Wentworth was eager to take it; but it was difficult to convince Charles, whose experience of Parliamentary government in England had not been happy, of its wisdom. The Lord Deputy, who prided himself, not without reason, upon his powers of parliamentary management, explained with great frankness the course which he intended to adopt. As soon as the Houses met they were to be informed that business would be extended over two sessions; the first of which was to be devoted to the relief of the king's necessities, and the second to "the enacting of all such profitable and wholesome laws as a moderate and good people may expect from a wise and gracious king." With the hope of a ratification of the Graces thus dangled before them, the Commons might be relied upon to grant supplies for the next three years; and when the money had been voted the Government could fulfil as much or as little of their engagements as they found convenient. His Majesty had no reason to be afraid of any dangerous exhibition of Parliamentary independence. Apart from the restrictions imposed by Poynings' Act, which made the Irish Parliament a mere instrument for registering the decrees of the English Privy Council, that

body was so constituted as to be wholly at the mercy of the Castle. In the Upper House the bishops and the English adventurers who had been ennobled during the preceding reign gave the Government a permanent majority over the old national aristocracy. The management of the Lower House would be more difficult; but Wentworth undertook to secure a majority by tampering with the elections as Chichester had done. In one respect his task differed from Chichester's. In 1613 the entire body of the Protestants had been on the side of the Government, and the Lord Deputy had been able to make sure of a majority by multiplying boroughs wherever the colonists predominated. Since that date the breach between the court party and the Puritans had grown wider, and a large proportion of the new settlers were now scarcely less hostile to the administration than the Catholics. Wentworth had accordingly determined so to manage the elections "as that neither the recusants nor yet the Protestants shall appear considerably more one than the other, holding them as much as may be upon an equal balance"; and at the same time to procure the return from some of the smaller and more corrupt constituencies of "captains and officers, who, having immediate dependence upon the Crown, may sway the business betwixt the two parties which way they please."^[75] With many misgivings Charles consented to the experiment. "As to that hydra," he wrote, "take good heed, for you know I have here found it cunning as well as malicious." "I fear," he added, with an obvious recollection of his unlucky promises, "they have some ground to demand more than is fit for me to give."^[76]

In July, 1634, the Parliament met and the Lord Deputy's forecast was justified. The Catholic and Protestant parties were almost equal; the officers turned the scale in favour of the latter. The result had not been arrived at without some difficulty. The priests, who apprehended fresh penalties against their religion, had exerted themselves on behalf of the Catholic candidates. Wentworth put his foot down upon a policy which threatened to divide the country into a Catholic and a Protestant party, a thing, he wrote, "to be avoided as much as may be, unless our numbers were the greater." The sheriff of Dublin "carried himself mutinously," or, in plain English, refused to foist the Lord Deputy's nominees upon an unwilling constituency. The over-scrupulous official was dragged before the Castle Chamber, fined, and deprived of his office; a successor of more

accommodating principles was found, and his Excellency's protégés declared duly elected.^[77]

On the 15th the Lord Deputy addressed the Houses, warning them with characteristic arrogance against imitating the factious conduct of the late English Parliament. On the 16th his secretary, Wandesford, moved for a grant of six subsidies, which were immediately voted. On the 2nd of August the Houses petitioned for the introduction of the promised Bills, and were informed that they would be considered in the following session. On the 21st Parliament was prorogued.^[78]

It met again in November. During the recess Wentworth had submitted to his master his opinion of the course which it was expedient to adopt with reference to the Graces. Some were to be granted immediately, some others postponed; the two most important—that which established a prescriptive right against the claims of the Crown, and that which supplied the defects in the Connaught titles—were to be firmly and finally refused. If his Majesty was unwilling to incur the odium of so flagrant a breach of faith, the Lord Deputy was ready to take upon himself the responsibility of having intervened between the people and the royal favour.^[79] To this magnanimous proposal Charles assented with characteristic alacrity.^[80] On November 27th Wentworth announced the withdrawal of the expected concessions. The announcement provoked an outburst of indignation, which was the more formidable because, “by the negligence of the Protestant party,” the Government were for the moment in a minority. The Catholics, assisted by some discontented Protestants, notably by Sir Piers Crosby, a distinguished soldier and a member of the Privy Council, “rejected hand over head all that was offered them by his Majesty and the State. The Bill against bigamy they would not should be engrossed; the law for correction houses they absolutely cast out; the law against fraudulent conveyances and to secure purchasers against the practised cozenage of the natives here they would have none of; a law for the bailments tasted not with them; the burgesses that served for the new boroughs, being most of them Protestants, they questioned, as not having rights to sit there. The statutes of uses and wills we durst not adventure a reading unto, for fear some blemish might be put upon them by these men, that in all these things never gave or answered reason, but plainly let us see their wills were set together to refuse all, but to refute nothing.”

Wentworth acted with characteristic promptitude. Crosby was deprived of his place at the Privy Council, the absent members were ordered to resume their attendance, and a ministerial majority was again secured. Within little more than a fortnight the Bills which the Lord Deputy desired had been carried, and the Parliament was once more prorogued.

In the following year two other short sessions were held, and many wise and useful laws enacted with the general concurrence of all parties. The Lord Deputy was anxious that the Parliament should be continued. The House of Commons, he wrote, was “very well composed”; there was a Protestant majority “clearly and fully for the King,” and the recusants could be coerced into voting as the Government dictated by an intimation that the majority would otherwise be used “to pass upon them all the laws of England concerning religion.” If there was a dissolution it might not be possible again to manage the elections so successfully.^[81] Charles, however, in whose heart his English experience still rankled, was of opinion that, supplies once voted, the sooner a Parliament was sent about its business the better. “Parliaments,” he wrote, “are of the nature of cats, they ever grow curst with age, so that, if you will have good of them, put them off handsomely when they come to any age, for young ones are ever most tractable.”^[82] The Lord Deputy was obliged to submit, and the Parliament was dissolved.

As soon as the revenue had been placed on a satisfactory basis Wentworth began to turn his attention to the two great measures for which his Irish administration is chiefly famous—the Plantation of Connaught and the reform of the English Church in Ireland. It was to the latter subject that his attention was first directed. It was certainly high time that something should be done. It is difficult to say which stood in more urgent need of improvement—the material condition of the churches or the morals of the clergy. In a letter to Laud, Wentworth graphically sums up the situation: “An unlearned clergy, which have not so much as the outward form of churchmen to cover themselves with, nor their persons anyway revered or protected; the churches unbuilt; the parsonage and vicarage houses utterly ruined; the people untaught through the non-residency of the clergy, occasioned by the unlimited shameful numbers of spiritual promotions with cure of souls, which they hold by commendams; the rites and ceremonies of the Church run over without all decency of habit, order, or gravity, in the

course of their service; the possessions of the Church to a great proportion in lay hands; the bishops aliening their very principal houses and demesnes to their children, to strangers, farming out their jurisdiction to mean and unworthy persons; the Popish titulars exercising the whilst a foreign jurisdiction much greater than theirs; the schools, which might be a means to season the youth in virtue and religion, either ill-provided, ill-governed for the most part, or, which is worse, applied sometimes underhand to the maintenance of Popish school-masters: lands given to these charitable uses, and that in a bountiful proportion, especially by King James of ever-blessed memory, dissipated, leased forth for little or nothing, concealed, contrary to all conscience and the excellent purposes of the founder: the college here, which should be the seminary of arts and civility in the elder sort, extremely out of order, partly by means of their statutes, which must be amended, and partly under the government of a weak provost: all the monies raised for charitable uses converted to private benefices: many patronages unjustly and by practice gotten from the Crown.”^[83]

There is abundant evidence that this disgraceful picture was not in the least over-coloured. Bedell, writing to Laud four years previously, informed his correspondent that the parish churches were “all in a manner ruined and unroofed and unrepaired,” and that his diocese contained only “seven or eight ministers of good sufficiency, and which is no small cause of the continuance of the people in Popery still, English: which have not the tongue of the people, nor can perform any divine offices, or converse with them: and which hold, many of them, two, three, four or more vicarages apiece: even the clerkships themselves are in like manner conferred upon the English: and sometimes two or three or more upon one man, and ordinarily bought and sold, or let to farm.”^[84] Even in 1638, in spite of the vigorous efforts of the Lord Deputy, Leslie, Bishop of Down, found the clergy generally negligent and disorderly, and the churches “kept no better than hog-styes.”^[85]

But even these were not in Wentworth’s eyes the most serious of the abuses with which he had to deal. A Protestant Church established and maintained by the civil power in the midst of an intensely Catholic people inclined by an inevitable law towards an extreme and fanatical form of Protestantism. It is not, therefore, surprising that the Irish articles, which had been drawn up by Usher, then professor of divinity in Trinity College,

Dublin, and adopted by Convocation in 1615, should have been decidedly more puritanical in tone than the Thirty-nine Articles of the English Church.^[86] “I doubt much,” wrote Bramhall, “whether the clergy be very orthodox.”^[87] At the same time, a great number of benefices continued to be held by those whom the Lord Deputy and the English Primate regarded as schismatics. On the one hand the Catholic priesthood not only continued to exercise their functions in contempt of penalties which it was practically impossible to enforce, but remained in many places in possession of the churches.^[88] On the other hand, the Scotch settlers “brought with them,” in the words of an Anglican historian, “such a stock of Puritanism, such a contempt of bishops, such a neglect of the public liturgy and other divine offices of the Church, that there was nothing less to be found amongst them than the government and forms of worship established in the Church of England.”^[89] Ministers hostile to the doctrines and discipline of the Establishment had been frequently introduced into livings after an irregular ordination by the influence of lay patrons and the connivance of puritanical bishops, and threatened to give at least as much trouble to the ecclesiastical authorities as the Catholics.^[90] Attacked by Roman Catholics on the one hand and by Presbyterians on the other, the English Church in Ireland was still more cruelly despoiled by the rapacious oligarchy who yielded her a nominal allegiance. In the words of Bramhall’s biographer, there was not one diocese in the province of Cashel that had not “the marks of the sacrilegious paw upon it.”^[91] The ecclesiastical courts, whose duty it was to remedy these evils were in the hands of unprincipled officials, who did little save plunder Catholics and Protestants with complete impartiality. “Among all the impediments to the work of God amongst us,” Bedell wrote to Laud, “there is not any greater than the abuse of ecclesiastical jurisdiction.”^[92] Bedell himself waged an unsparing war upon abuses of all sorts; but he got little support from his brethren. Archbishop Usher sympathised, but was too timid to swim against the stream.^[93] The majority of the bishops thought of nothing but their pockets.^[94]

To this scandalous state of things Wentworth was fully determined to put an end. His efforts to abolish pluralities and absenteeism, to repair the churches, and to restore to the clergy the tithes which had been dishonestly appropriated by laymen deserve high praise. But he had another and less creditable object in view. He wished to drive both the Puritan settlers and the native Catholics into the pale of the Established Church, and at the same

time to force that Church itself into closer conformity to the English model. But if, in common with most, if not all, of his contemporaries, he had scant reverence for the rights of conscience, he was at least wise enough to see that the internal reform of the Establishment must precede the attempt to enforce conformity. It was idle, he told Laud, to inflict penalties for recusancy “where as yet there is scarcely a church to receive or an able minister to teach the people.”^[95]

At a very early period of his administration Wentworth’s zeal for ecclesiastical reform involved him in the first of those personal disputes with powerful and corrupt officials which contributed far more than his oppressive treatment of the native Irish to discredit his administration in England. Lord Cork, who never allowed his Protestant enthusiasm to interfere with strict attention to his pecuniary interests, had contrived to appropriate property belonging to the diocese of Lismore of the annual value of £1,600. He was summoned before the Castle Chamber, and not merely compelled to disgorge his ill-gotten gains, but sentenced to a heavy fine. Laud, with whom Wentworth kept up a constant correspondence on the affairs of the Church, expressed his satisfaction in very unepiscopal language.^[96]

A second quarrel between Cork and Wentworth arose, like the former, out of the ecclesiastical policy of the Lord Deputy. The earl had erected a stately tomb of black marble, containing the remains of his wife, in St. Patrick’s Cathedral, on the spot where the high altar had once stood, where, as Laud thought, it ought still to stand. To an English High Churchman such a proceeding seemed a wanton sacrilege. Urged on by the archbishop, and probably only too pleased at the opportunity of inflicting a fresh annoyance on his enemy, Wentworth caused the unsightly monument to be removed to a less sacred place.^[97] In both these cases the Lord Deputy’s action was in full accordance with the general principles of his policy; but the pertinacity with which Cork had opposed his measures in the Council had probably some share in exciting him to severity against that too acquisitive peer.

St. Patrick’s was not the only church with whose internal arrangements the Lord Deputy felt called upon to interfere. He laboured, not always successfully, to introduce into the public offices of the Church a decency and a solemnity which had been too seldom seen, and at the same time to force upon the clergy practices which would now be called ritualistic. He

was no fanatic; but he knew that uneducated men are more readily influenced by ceremonies which appeal to their imagination than by dogmas which they do not understand; and he probably thought that the difficulty of inducing the Catholics to conform to the established religion would be lessened if its form of worship did not perceptibly differ from that to which they had been previously accustomed.

But it is by his dealings with the Convocation of 1634 that Wentworth's ecclesiastical policy must be chiefly judged. In England it had been the custom from very early times for a Convocation of the clergy to be summoned simultaneously with Parliament. In Ireland for many centuries there had been no such custom. The division between the English and Irish clergy before the Reformation, the prevalence of recusancy among the priesthood since that epoch may perhaps account for this omission. In 1560, it is true, Sussex had received instructions from Elizabeth "signifying her pleasure for a general meeting of the clergy of Ireland and the establishment of the Protestant religion through the several dioceses of that kingdom."^[98] But it was not until the reign of James the First, when the reformed Church had been, nominally at least, extended through all parts of the island, that the first formal Convocation of the Irish clergy was held.^[99] The ecclesiastical assembly which was then convened was modelled upon the Convocation of Canterbury, with this difference, that, whereas the latter body represented only the clergy of a single province, the Irish Convocation contained delegates from all parts of the kingdom. It was by this body that the Irish Articles, to which allusion has already been made, had been adopted; and Wentworth now resolved to make use of the same machinery to procure their reform. In accordance with the precedent which had been set twenty years earlier, Convocation was again summoned simultaneously with Parliament. Before it assembled Wentworth informed Archbishop Usher, the compiler of the older formula, of the course which he intended to adopt. Out of respect for the character and station of the Archbishop, the Lord Deputy would not insist on the formal abrogation of the Irish Articles. He proposed instead that they should be tacitly but effectively superseded by the adoption of the Articles of the Church of England—a course for which the expediency of bringing the two Churches into closer harmony afforded a decent pretext. To this suggestion, Usher, who was not remarkable for moral courage, gave a reluctant assent.^[100] In November their reverences assembled, and were informed that it was the Lord

Deputy's pleasure that they should adopt not only the Articles, but the Canons of the English Church. The upper house, under the presidency of Usher, instantly complied. The representatives of the inferior clergy were less submissive. Instead of adopting the entire body of English Canons, as the Lord Deputy had desired, they referred them to a committee, who divided the Canons into two parts, expressing their approval of some, and setting others aside for further consideration. Into the first Canon, which required subscription to the Thirty-nine Articles, they inserted a clause declaring that these were not intended to supersede the Articles already in use. It was some time before Wentworth, whose attention was wholly engrossed by the management of the House of Commons, found leisure to enquire into their proceedings.^[101] When he was informed of the attitude which they had adopted his anger knew no bounds. How he dealt with the refractory clergy shall be related in his own words:—

“I instantly sent for Dean Andrews, that reverend clerk, who sat forsooth in the chair at this committee, requiring him to bring along the book of canons so noted in the margin, together with the draught he was to present that afternoon to the House. This he obeyed; but when I came to open the book and run over the deliberandums in the margin, I confess I was not so much moved since I came into Ireland. I told him certainly not a Dean of Limerick, but an Ananias, had sat in the chair of that committee; however, sure I was an Ananias had been there in spirit, if not in body, with all the fraternities and conventicles of Amsterdam; that I was ashamed and scandalised with it above measure. I therefore said he should leave the book and draught with me; and I did command him, upon his allegiance, that he should report nothing to the House from that committee till he heard again from me.

“Being thus nettled, I gave present directions for a meeting, and warned the Primate, the Bishops of Meath, Kilmore, Raphoe and Derry, together with Dean Leslie, the prolocutor, and all those who had been of the committee, to be with me the next morning.

“Then I publicly told them how unlike Churchmen, who owed canonical obedience to their superiors, they had proceeded in their committee; how unheard a part it was for a few petty clerks to presume to make Articles of Faith without the privy or consent of State or bishop; what a spirit of Brownism and contradiction I observed in their deliberandums, as if, indeed, they purposed at once to take away all government and order forth of the Church, and to leave every man to choose his own high place where liked him best. But these heady and arrogant courses they must know I was not to endure; nor, if they were disposed to be frantic in this dead and cold season of the year, would I suffer them either to be mad in the Convocation or in their pulpits.”

Terrified out of their wits by the language of the overbearing Deputy, the clergy made a hasty and ignominious submission, and accepted the English Articles without further discussion. To punish Dean Andrews, whom he regarded as mainly responsible for the opposition, Wentworth promoted

him to the See of Ferns, the emoluments of which were considerably less than those which he had enjoyed as Dean of Limerick.^[102]

At the same time the University of Dublin, which from the date of its foundation had been a hotbed of Puritanism, was made to feel the reforming vigour of the Lord Deputy. The “weak provost” already referred to—Robert Usher, a relative of the Primate—was, like Andrews, politely kicked upstairs; and his successor, Chappell, a man after Laud’s own heart, proceeded to remodel the college in accordance with the highest standard of Anglican orthodoxy.^[103]

One other innovation of a more serious character was made. Immediately after the dissolution—for the step was too unpopular to be taken while Parliament was sitting—Wentworth proceeded on his own authority to erect a court of high commission in Dublin similar to that already existing in England, “conceiving the use of it might be very great to countenance the despised state of the clergy, to support ecclesiastical courts and officers, to provide for the maintenance of the clergy and for their residence, either by themselves or able curates, to bring the people here to a conformity in religion, and, in the way of all these, to raise perhaps a good revenue to the Crown.”^[104]

Parliament and Convocation being both dissolved, Wentworth was at leisure to devote his energies to the great business of his administration—the establishment of an English colony in Connaught. It would be difficult to say which was the more scandalous, the pretext which the Lord Deputy put forward for this measure or the steps by which he attempted to carry it into effect. More than four hundred years earlier Henry the Third, with that princely generosity with which sovereigns have so often disposed of the property of their subjects, had granted the entire province to Richard de Burgh, with the exception of five cantreds about Athlone, which were reserved to the Crown. De Burgh had succeeded in making good his claim to a great part of the province, corresponding to the modern counties of Galway and Mayo; the rest continued in the possession of the aboriginal inhabitants. By the death of the last Earl of Ulster about a century afterwards the title to these lands passed to his daughter Elizabeth, then an infant; but the actual possession remained with his collateral heirs, the MacWilliams, ancestors of the Earls of Clanricarde and Mayo. By the marriage of Elizabeth de Burgh to Lionel, Duke of Clarence, the title to the

Connaught estates of her ancestors had descended lineally to Edward the Fourth; and the actual occupants, whether of native or Anglo-Norman descent, were pronounced by the Lord Deputy to be intruders on the possessions of the Crown. Neither the prescriptive right derived from an undisturbed occupation of centuries, nor the recent promises of James and Charles, were suffered to constitute a barrier against this monstrous claim. The Articles concluded with Perrott were pronounced invalid on the plea that that statesman had exceeded his instructions; the patents granted by James on the ground of the technical flaw already noticed.^[105]

Shortly after the dissolution a Royal Commission was issued “for inquiry into defective titles;” and in July the Lord Deputy set out for Connaught to superintend the work of robbery in person. The concurrence of the judges had already been ensured by promising their lordships a commission of four shillings in the pound upon the profits of the plantation; “which, upon observation,” Wentworth afterwards declared, “I find to be the best given that ever was. For now they do intend it with a care and diligence such as if it were their own private. And most certain, the gaining to themselves every four shillings once paid shall better your revenue ever after at least five pounds.”^[106] Great pains were taken to seek out jurors who “might give furtherance in finding a title for the King.” The sheriffs were instructed to select “gentlemen of the best estates and understanding,” whose verdict in favour of the royal title would carry the more weight, since they would be “as much concerned in their own particulars as any other;” while on the other hand they would be able to “answer the King a good round sum in the Castle Chamber if they should prevaricate.”

The Commission was first opened in Roscommon, where Wentworth addressed a jury, composed as he had directed, in a highly characteristic speech. His Majesty, he said, desired only to make them “a civil and rich people;” and a plantation was necessary in order to accomplish this benevolent purpose. He did not intend “to take from them anything that was justly theirs, but in truth to bestow amongst them a good part of that which was his own.” He “came not to sue them to find for him as needing any power of theirs to vindicate his own right, for without them, where his right is so plain, he could not in justice have been denied possession upon an information of intrusion. The Court in an ordinary way of Exchequer must have granted it on the first motion of the Attorney-General.” To the King,

therefore, their decision was a matter of indifference: with a verdict, or without it, he intended to take their property; “the path to his right lay elsewhere, open and fair before him.” But, as regarded their own interests, “as one that must ever wish prosperity to their nation, I desired them, first, to descend into their own consciences and take them to counsel, and there they should find the evidence for the Crown clear and conclusive. Next, to beware how they appeared resolved or obstinate against so manifest a truth, or how they let slip forth of their hands the means to weave themselves into the royal thoughts and care of his Majesty, through a cheerful and ready acknowledgment of his right and a due and full submission thereunto. So, then, if they would be inclined to truth and do best for themselves, they would undoubtedly find the title for the King. If they were passionately resolved to go over all bounds to their own will, and, without respects at all to their own good, to do that which were simply best for his Majesty, then I should advise them roughly and pertinaciously to deny to find any title at all. And there I left them to chant together, as they call it, over the evidence.”^[107]

Owing partly to this adroit mixture of chicanery and menace, partly, as it would seem, to private negotiations between the Lord Deputy and individual jurymen,^[108] a verdict acknowledging the royal title was returned. The juries of Sligo and Mayo were equally complacent; but in Galway, as Wentworth had anticipated, and indeed desired, considerable opposition was made. The county was the headquarters of the De Burghs; and the Earl of Clanricarde and his dependents were understood to be very hostile to the proposed plantation. “But whether it be so or not,” Wentworth wrote to Charles: “I could wish their county would stand out, for I am well assured it shall turn to your Majesty’s advantage if they do. For certain it is a county which lies out at a corner by itself, and all the inhabitants wholly natives and Papists, hardly an Englishman among them, whom they keep out with all the industry in the world; and therefore it would be a great security if they were thoroughly lined with English indeed.” His wishes were gratified. Although the royal title was made out in such manner as appeared “most just, honourable, and unquestionable to all equal-minded men,” the jury “obstinately and perversely refused” to find for the Crown. For this obstinacy, Wentworth offered three explanations. First, “there is scarce a Protestant freeholder to be found to serve his Majesty on this or any other occasion in this country, being in a manner altogether compounded of

Papists.” Secondly, “the counsellors at law, being all of them recusants, showed themselves over-busy even to faction, in this service against the King.” Lastly, the Earl of Clanricarde had exerted the influence derived from his “great estate” and “far-spread kindred” to frustrate the plantation. In support of this last assertion, Wentworth appealed to the following facts. First, John Donnellan, the Earl’s steward, had received messengers with letters from the Earl out of England; “and, whereas we were certainly informed that divers gentlemen were resolved to have acknowledged the King’s title, upon these men’s arrival they altered their resolutions, and since stand in opposition thereunto.” Secondly, Lord Clanmorris, a nephew of the Earl, “appeared openly before us to countenance the opposition of the country.” Thirdly, Richard Burke, of Derrymacoghlan, another nephew of the Earl and a member of the jury, had pulled a fellow juror by the sleeve, “labouring to divert the said juror from declaring that his conscience led him to find for his Majesty.” Fourthly, “the Earl’s principal servant and steward, John Donnellan, being one of the jury, we saw plainly that he guided the rest which way he pleased.” Fifthly and lastly, “most of the jurors are of the Earl’s kindred or near alliance, or his dependents.”

Wentworth was not the man to be deterred by an adverse verdict. He had warned the jury that, if they refused to find the verdict which he desired, it would be the worse for them, and he now showed that this had been no idle menace. D’Arcy, the Sheriff, whom the Lord Deputy held responsible for what he regarded as a gross miscarriage of justice, was imprisoned and fined £1,000 “for returning an insufficient and, as we conceived, a packed jury.” The jurors themselves were summoned before the Castle Chamber and fined £4,000 each. A proclamation was next issued, by which the other landowners of the county were recommended to disassociate themselves from the recalcitrant jurors, and save a portion of their estates by acknowledging the royal title. The Court of Exchequer, by Wentworth’s direction, issued an order “to seize for his Majesty the lands of the jurors, and of all that should not lay hold on his Majesty’s grace offered them by the proclamation.” With Clanricarde himself the Lord Deputy insisted that no terms would be made. The Earl and his son were at this time in London; and there Wentworth advised that they should be detained until the work of spoliation had been carried out. Wentworth further advised that the fortifications of Galway should be repaired, and that that city and Athenry

should be strongly garrisoned while the plantations were proceeding.^[109] Charles signified his concurrence.^[110]

And now comes the mysterious part of the business. The Commission sat in 1635; the Lord Deputy continued to hold office until the spring of 1641; yet the plantation was never carried out. No satisfactory explanation has yet been offered for this omission. It is certain that, so long as Wentworth lived, the scheme was never definitely abandoned.^[111] In all probability the task was found to be more difficult than had been anticipated. The settlement of Ulster had been a simple matter in comparison. In the northern province Mountjoy had prepared the way for the planters by exterminating the best part of the original inhabitants; and the flight of the earls had left the scanty remnant destitute of their natural leaders. In Connaught, which had been comparatively peaceful during the Elizabethan wars, there was a numerous and warlike population, not yet cowed by famine and massacre, to be reckoned with; and their leader, Lord Clanricarde, a great English noble as well as a great Irish chieftain, could exert more influence at the Court of England than any “mere Irishman” could have done. These considerations may have induced Wentworth to proceed slowly and with caution. During 1636 and the two following years the province continued to be strongly garrisoned, and a few English settlers seem to have been introduced; but they were very few, and Connaught was still almost wholly in Catholic hands when the troubles that broke out in Scotland compelled the Lord Deputy to turn his attention elsewhere.^[112]

During the next three years Wentworth devoted himself to securing for his master a revenue independent of Parliamentary control. With this object, inquisitions into defective titles were held not only in Connaught, but in every part of the island. No fresh plantations were made; but any landlord in whose title the smallest technical flaw could be discovered was compelled to pay heavily for a fresh patent. These exactions pressed hard upon natives and colonists alike. The former had generally inherited their lands according to some Irish custom not recognised by English lawyers; while many of the latter had neglected to fulfil the onerous and intricate conditions imposed upon them by the Articles of the plantations. The O’Byrnes of Wicklow, who had already been so harshly treated, were compelled to pay £15,000 before they recovered their estates.^[113] The London companies were prosecuted in the Star Chamber on a charge of

mismanaging their Ulster property, and condemned to forfeiture and a fine of £70,000.^[114]

At the same time the Lord Deputy exerted himself with characteristic energy to develop the material resources of the country. The extraordinary advances which Irish commerce made under his government have been acknowledged by historians the most hostile to his memory.^[115] In one respect, it is true, his commercial policy deserves severe blame. He found in Ireland, on his arrival, the beginnings of a flourishing woollen manufacture; and this manufacture, out of deference to the jealous fears of English traders, he promptly proceeded to destroy. The injury thus inflicted was more than compensated by the enormous development of the linen trade; a development which must be ascribed in large measure to the judicious and munificent patronage of Wentworth. He imported great quantities of flax from Holland at his own expense; introduced skilled workmen from France and the Low Countries; and did so much for the improvement of this industry that, although it had existed in Ireland at least as early as the fifteenth century, he is still spoken of in popular tradition as its founder.^[116]

In spite, however, of the increasing prosperity of the country, the Lord Deputy continued to be an object of aversion to every section of the community. His unpopularity was due in almost equal measure to the merits and to the faults of his administration. The more violent Protestants were indignant at the introduction of the English Articles, as well as at Wentworth's persistent refusal to exact the recusancy fines. The Catholics were kept in constant alarm by the inquiries into defective titles, and by the penal laws, which, though their execution was temporarily suspended, the Lord Deputy, as they were probably aware, was fully resolved to enforce, as soon as he should feel able to do so with impunity.^[117] At the same time a crowd of rapacious officials, who had enriched themselves under the government of his incompetent predecessor, were exasperated by his vigorous attempts to repress jobbery and extortion. For this at least must be acknowledged to Wentworth's honour, that, if he was a tyrant, he suffered no tyranny but his own.

The hostility of these men proved far more injurious to the Lord Deputy than the indignation of the native gentry. Of his quarrel with Lord Cork I have already spoken. His treatment of two other officials was made the subject of still harsher criticism. At the beginning of his administration

Wentworth had been opposed by a majority of the Irish Council, but supported by a minority led by Lord Chancellor Loftus and Lord Mountnorris, both conspicuous for their hostility to his predecessor.^[118] Within a very few years he had made both these men his bitter enemies. Mountnorris, when Wentworth took office, was Vice-Treasurer, and was believed by Lord Cork, then Treasurer, to have been guilty of gross mismanagement, if not of actual malversation.^[119] Wentworth was not as a rule disposed to pay much attention to Cork's statements; but misappropriation of public moneys was the last thing which he felt inclined to tolerate; and he instituted an inquiry which resulted in the conviction of Mountnorris, not, indeed, of personal corruption, but of scandalous negligence in tolerating the corruption of his subordinates.^[120] Although Mountnorris was not at once deprived of his office he evidently considered himself aggrieved, and thenceforth intrigued persistently against the Lord Deputy. In the spring of 1635 the quarrel came to a head. A younger brother of Mountnorris, an officer in Wentworth's own regiment, was guilty of some trivial breach of military discipline. He was rebuked by Wentworth, and answered with an impertinent gesture. The Lord Deputy, whose naturally choleric temper was at this time aggravated by an attack of gout, struck him lightly with his cane, telling him that, if the offence was repeated, "he would lay him over the pate." A few days later, at a levée at Dublin Castle, a gentleman-in-waiting, who was also related to Mountnorris, contrived to overturn a stool on the Lord Deputy's gouty foot. At a dinner party given not long afterwards by the Lord Chancellor, the occurrence was discussed, and Mountnorris hazarded an opinion that it had not been entirely accidental. "Perhaps," said he, "it was done in revenge of that public affront that the Lord Deputy had done me formerly. But," he added, "he has a brother who would not take such a revenge."^[121]

What Mountnorris may have meant it is impossible to say. In all probability he meant nothing, for the words were uttered after dinner, and he was not a man of abstemious habits. Be that as it may, he had soon reason to rue his imprudence. His words were repeated to the Lord Deputy, probably by Adam Loftus the younger, who was anxious to succeed him as Vice-Treasurer. Wentworth, who had previously been in communication with the king on the subject of Mountnorris's financial irregularities, now wrote to request his Majesty's permission to bring the Vice-Treasurer before a court-martial on the monstrous charge of inciting to a mutiny in the army.

The permission was granted in July,^[122] but it was not until six months later that the trial was held. The delay may have been due to the affairs of Connaught, which left the Lord Deputy little leisure to prosecute a personal quarrel; but it is also possible that Wentworth did not intend to proceed further in the matter unless fresh provocation was given. In the autumn, unfortunately for himself, Mountnorris engaged in an intrigue which kindled afresh the smouldering anger of the Lord Deputy. He proposed to the king an iniquitous scheme of taxation, which would, if it had been adopted, have increased his Majesty's revenue from £8,000 to £20,000.^[123] Wentworth, eager as he undoubtedly was "to raise a good revenue for the Crown," was wise enough to understand that there is a point beyond which taxation cannot advantageously be pushed. He also knew his master quite well enough to feel sure that the permanent interest of the country would have little weight with him against the prospect of an immediate pecuniary gain. He resolved to crush Mountnorris without delay.

On December 12th, the unfortunate officer was summoned to a council of war at Dublin Castle. On his arrival he found several other persons present, but no one could inform him of the purpose for which their attendance was required. Wentworth presently arrived and told the company that it would be their duty to hold a court-martial on Lord Mountnorris, whose language at the Lord Chancellor's dinner-party constituted a breach of two of the articles of war by which the army was governed. By the 41st article it was ordered that no man should "give any disgraceful words or commit any act to the disgrace of any person in the army or garrison, or any part thereof, upon pain of imprisonment, public disarming, and banishment from the army"; by the 13th that "no man should offer any violence, or contemptuously disobey his commander, or do any act or speak any words which are like to breed any mutiny in the army or garrison, or impeach the obeying of the general or principal officer's directions, upon pain of death." The words, "a brother who would not take such a revenge" were intended, according to the Lord Deputy's interpretation, as an instigation to young Annesley to revenge himself in some more violent fashion than by the mere dropping of a footstool.

Mountnorris was stunned by this unexpected blow. He could neither deny the words imputed to him, nor offer any plausible explanation of them. The court, after a short deliberation, returned a verdict of guilty; and

Mountnorris was sentenced “to be shot to death or to lose his head at the pleasure of the General.” Wentworth, who had been present at the proceedings but had taken no part in them, then addressed the prisoner and told him that he need be under no apprehensions so far as the capital sentence was concerned. “I had rather,” he said, “lose my hand than you should lose your head.” Mountnorris was kept for a short time in prison, deprived of his office of Vice-Treasurer, and dismissed from the army.^[124]

These oppressive proceedings added yet another to the numerous enemies of Wentworth. Lord Cork, who had been compelled to disgorge the plundered revenues of the Church, and Lord Wilmot, who had been disgraced for embezzling the property of the Crown,^[125] were already intriguing to procure his recall. With greater justice the De Burghs complained of his severity to the Galway jury. The Earl of Clanricarde was lately dead; and, though he was certainly an old man, his end was generally believed to have been hastened by vexation at the tyranny of the Lord Deputy.^[126] D’Arcy, the sheriff of Galway, had also died not long after his committal to prison; and his death too was laid at Wentworth’s door.^[127] By the beginning of the following year the outcry against him had become so loud that he found it advisable to proceed in person to London to justify himself before the king. He pointed with a not unjust pride to the undoubted reforms which he had effected in the government of Ireland. He had found the country on the verge of bankruptcy; he had established a large and rapidly-increasing revenue, and that without resorting to the dangerous and unpopular expedient of exacting the recusancy fines. He had transformed the Irish army from a disorderly rabble into a disciplined and efficient force; had suppressed piracy; and had developed the material resources of the island. He had set his foot upon the jobbery of the Dublin officials, and had done something, if not much, to improve the scandalous condition of the Established Church. His most arbitrary acts had been committed in his master’s interests, and were therefore such as that master was only too ready to condone. Charles signified his approval in the most gracious terms. After a few months’ absence Wentworth returned to Ireland with his enemies silenced and his position apparently impregnable.^[128]

Rather more than a year after the Mountnorris court-martial Wentworth became involved in a dispute with another official which brought upon him an even fiercer storm of obloquy. In his conflict with Cork he had had the

support of Mountnorris and Loftus; he had afterwards had the support of Loftus in his conflict with Mountnorris. The Chancellor himself was destined to be the next victim. In 1621, on the occasion of his son's marriage to the daughter of Sir Francis Raishe, his lordship had entered into an agreement to settle £300 a year on the bride, and £1,200 in land on her children. Fifteen years afterwards he attempted to evade his obligations, alleging some technical irregularity in the marriage contract. On the petition of Sir John Giffard, the legal representative of the lady's family, the affair was referred to the Privy Council. Loftus protested that the claim of the Privy Council to interfere was unconstitutional, and that the plaintiff ought to have filed a bill against him in his own court. He would then have been judge as well as defendant—an arrangement which promised obvious advantages to a litigant with a lax conscience and a bad case.^[129] But it is dangerous, the old proverb tells us, to prosecute Beelzebub in the court of Hell; and Giffard was no doubt of opinion that it would be equally imprudent to proceed against the Lord Chancellor in the Court of Chancery. The Privy Council decided against Loftus, who renewed his protests—protests which came with a singularly bad grace from one who had repeatedly sat upon the same tribunal upon occasions when there had been much less cogent reasons for a departure from the orthodox method of procedure. He was thereupon deprived of the seals and imprisoned for contempt; but subsequently released on acknowledging the jurisdiction of the court. It does not appear that he had any defence on the merits; but the exalted position of the delinquent and an abominable, but apparently groundless rumour that his daughter-in-law had been Wentworth's mistress, induced the enemies of the Lord Deputy to give the affair as much prominence as possible.^[130]

Notes

- [56.](#) In Harris's *Fiction Unmasked*, pp. 53-60, there is an excellent summary of the pretexts put forward for these plantations. The most important papers relating to the plantation of Leitrim will be found in *Desiderata Curiosa Hibernica*, II., 52-77. Miss Hickson (*Ireland in the Seventeenth Century*, II., 276-299) has printed some interesting papers relating to the plantations of Longford and Ely O'Carroll. For an Irish view of the plantations, see David Rothe's *Analecta Sacra*.
- [57.](#) For the Composition of Connaught compare Roderick O'Flaherty's *Chorographical Description of Iar-Connaught*, pp. 309-362, where the articles are given in full; *Government of Ireland under Sir John Perrott*, pp. 79-86; Rawlinson's *History of Sir John Perrott*, p. 149; Wentworth to Coke, August 25, 1635. (*Strafford Letters*, I., 450-454.) In the *Calendar of Irish State Papers*, 1615-1625, there are several letters containing suggestions for a plantation of Connaught.
- [58.](#) Docwra to —, March 3, 1618. (*Calendar*, 1615-1625, 399.)
- [59.](#) Falkland to Conway, September 11, 1626. (*Calendar*, 1625-1632, 438.) Falkland, however, had recommended this step even before the death of James. Falkland to the Privy Council, December 11, 1624. (*Calendar*, 1615-1625, 1324.)
- [60.](#) Diary of the Assembly. (*Calendar*, 1625-32, 713.)
- [61.](#) Elrington's *Life of Usher*, pp. 73-74.
- [62.](#) *A Remonstrance presented to his Majesty by the Parliament in June, 1628.*
- [63.](#) The Graces in their amended form are given in Wentworth's letter to Coke, October 6, 1634. (*Strafford Letters*, I., 312-328.) The earlier draft is printed in the *Calendar of State Papers*, 1625-1632, 446. The eighth article runs: "The fine of 12d. a Sunday and holiday for not going to church shall be remitted for recusants except in particular cases."
- [64.](#) Rushworth's *Historical Collections*, II., 19.
- [65.](#) These depositions, as well as the report of the Commissioners and Falkland's defence, are printed in Gilbert's *History of the Confederation and War in Ireland*, I., 167-217.
- [66.](#) Proclamation, April 1, 1629. (*Rushworth*, II., 21.) Similar proclamations had been issued in 1617, 1623, and 1624, but they had had very little effect.
- [67.](#) For the conduct of Archbishop Loftus, see Ware's *Bishops of Ireland* and Elrington's *Life of Usher*, pp. 6, 115, and for that of some later members of his family Lecky's *History of Ireland*, V. 295. With regard to the Chancellor himself, I have collected some evidence in a later part of this paper.
- [68.](#) Lord Cork was the author of an extremely mendacious autobiographical fragment, entitled *True Remembrances*, which is prefixed to the collected edition of his son's works. In Wright's

History of Ireland, Bk. V., ch. 21, this remarkable able paper is carefully analysed and its statements compared with the evidence of more trustworthy documents.

69. Charles to Wilmot, August 5, 1629. (*Calendar*, 1625-1632, 1449.) See also with regard to this quarrel the repeated and bitter attacks on Loftus in Lord Cork's Diary (*Lismore Papers*, 1st series). The quarrel seems to have originated in the refusal of the Chancellor to decide a lawsuit in Lord Cork's favour some years earlier.
70. Hammond L'Estrange, *Annals of the Reign of Charles the First*, p. 116. Compare *Foxes and Firebrands*, pt. 2, p. 71; Wilmot to Dorchester, January 6, 1629-30. (*Calendar*, 1625-1632, 1570.) "Tharchbishop of Dublin, and the Maior of Dublin, by the direction of vs, the Lords Justices, Ransackt the howse of f. fryer in Cook Street," Lord Cork's Diary, December 26, 1629.
71. The Catholic University seems to have given particular offence to the Protestant clergy. Thus Bedell, writing to Wentworth, complains that "his Holiness hath erected a new university at Dublin to confront his Majesty's college there." (*Strafford Letters*, I., 147.) The documents relating to the seizure of its property will be found in Mahaffy's *Epoch of Irish History*, ch. V.

For an account of St. Patrick's Purgatory see Richardson's *Folly of Pilgrimages*, p. 44, and for its destruction Lord Cork's Diary, September 8, 1632. In October, 1638, the Queen wrote to Wentworth begging him to allow it to be restored. He declined on the ground that it was "in the midst of the great Scottish plantation." (*Strafford Letters*, II., 221, 222.)
72. Lords Justices to Wentworth, February 26, 1631-2. (*Ibid.*, I., 67-70.)
73. Charles to the Lords Justices, January 12, 1631-2. (*Ibid.*, I., 62-63.) Miss Hickson has quoted a most significant entry from the MS. journal of an Anglo-Irish official: "July 23, 1633. The Lord Viscounte Wentworth came to Ireland to govern ye kingdom: manie men feare." (*Ireland in the Seventeenth Century*, I., 52.) Lord Cork expressed his dissatisfaction still more forcibly: "A moste cursed man to all Ireland and to me in particular." Diary, July 23, 1633.
74. Wentworth to Cottington, October 1, 1632. (*Strafford Letters*, I., 74-77.)
75. Wentworth to Charles, April 12, 1634. (*Ibid.*, I., 182-187.)
76. Charles to Wentworth, April 17, 1634. (*Ibid.*, I., 233.)
77. Wentworth to Coke, June 24, 1634. (*Ibid.*, I., 269, 270.)
78. Wentworth to Coke, August 18, 1634. (*Ibid.*, I., 276-282.)
79. Wentworth to Coke, October 6, 1634. (*Ibid.*, I., 304-328.)
80. "Your last public despatch has given me a great deal of contentment, and especially for keeping off the envy of a necessary negative from me of those unreasonable Graces that that people expected from me."—Charles to Wentworth, October 23, 1634. (*Ibid.*, I., 331.)
81. Wentworth to Coke, December 16, 1634. (*Ibid.*, I., 345-353.) For the proceedings of this Parliament I have also consulted the *Irish Commons' Journals*, I., pp. 59-119, but they add very little to our information. For its legislation see *Irish Statutes*, 10 and 11, Charles I.
82. Charles to Wentworth, January 22, 1634-5. (*Strafford Letters*, I., 365.)

- [83.](#) Wentworth to Laud, January 31, 1633-4. (*Ibid.*, I., 187-189.)
- [84.](#) Bedell to Laud, April I, 1630. (Burnet's *Life of Bedell*, pp. 35, 36.)
- [85.](#) *A full Confutation of the Covenant, lately sworn and subscribed by many in Scotland: delivered in a speech at the visitation of Down and Connor, September 26, 1638.* By Henry Leslie.
- [86.](#) The Irish articles are printed in Elrington's *Life of Usher*, Appendix, xxxiii.—L.
- [87.](#) Bramhall to Laud, August 10, 1633. (Collier's *Ecclesiastical History*, VIII., 72-75.)
- [88.](#) "Every parish hath its priest, and some two or three apiece; and so their mass-houses also; in some places mass is said in the churches." Bedell to Laud, April 1, 1630. Compare a report some years earlier on the ecclesiastical state of the province of Armagh, from which long extracts are printed in Mant's *History of the Church of Ireland*, I., 395-408.
- [89.](#) Heylin's *History of Presbyterianism*, p. 393.
- [90.](#) See the autobiographies of Robert Blair and John Livingston, two of the ministers who obtained benefices by these means; also Adair's *True Narrative of the Rise and Progress of the Presbyterian Church in Ireland*, 1623-1670; and Dr. Killen's preface.
- [91.](#) Vesey's *Life of Bramhall*.
- [92.](#) Bedell to Laud, August 7, 1630. (*Two Lives of William Bedell*, pp. 311-314.)
- [93.](#) Clogy's *Life of Bedell*, p. 118.
- [94.](#) See much evidence of this in Ware's *Bishops of Ireland*.
- [95.](#) Wentworth to Laud, December, 1633. (*Strafford Letters*, I., 171-173.)
- [96.](#) "My Lord, I did not take you to be so good a physician before as now I see you are; for the truth is, a great many Church cormorants have fed so full upon it that they are fallen into a fever; and for that no physic better than a vomit, if it be given in time; and therefore you have taken a very judicious course to administer one so early to my Lord of Cork. I hope it will do him good, though perchance he thinks not so, for if the fever hang long about him or the rest it will certainly shake either them or their estates in pieces."—Laud to Wentworth, November 15, 1633. (*Ibid.*, I., 155, 156.)
- [97.](#) Laud to Wentworth, March 11, 1634. (*Ibid.*, I., 211.) See also several letters in the *Lismore Papers*, 2nd series, and Mason's *History and Antiquities of the Collegiate and Cathedral Church of St. Patrick*, pp. liii., liv.
- [98.](#) Ware's *Annals of Ireland*, A.D. 1560.
- [99.](#) The best accounts of the Convocations of 1613-15 and 1634-35 are in Elrington's *Life of Usher*, pp. 39-49, and 165-187.
- [100.](#) Wentworth to Laud, August 23, 1634. (*Strafford Letters*, I., 298-301.)

- [101.](#) “The Popish party, growing extreme perverse in the Commons House, and the Parliament thereby in great danger to have been lost in a storm, had so taken up all my thoughts and endeavours that, for five or six days, it was not almost possible for me to take an account how business went among them of the clergy.”—Wentworth to Laud, December 16, 1634. (*Ibid.*, I., 342-345.)
- [102.](#) *Ibid.*
- [103.](#) Mahaffy’s *Epoch of Irish History*, ch. VI.
- [104.](#) Wentworth to Laud, January 31, 1633-34. (*Strafford Letters*, I., 187-189.)
- [105.](#) Brief of his Majesty’s title to Connaught. (*Ibid.*, I., 454-458.) For the history of the settlement of the De Burghs in Connaught compare Matthew Paris, *Historia*, p. 230, etc.; *Annals of Lough Cé*; preface to Lord Clanricarde’s *Memoirs*; The O’Conor Don’s *O’Conors of Connaught*, pp. 88-95.
- [106.](#) Wentworth to Charles, December 9, 1636. (*Strafford Letters*, II., 41.)
- [107.](#) Wentworth to Coke, July 14, 1635. (*Ibid.*, I., 442-444.)
- [108.](#) “Sir Lucas Dillon, the foreman of the jury, hath behaved himself with so much discretion and expressed all along so good affections, as I cannot choose but here to mention him, and hereafter to beseech his Majesty he may be remembered when upon the dividing of the lands his own particular come in question. In truth, he deserves to be extraordinarily well dealt withal.”—(*Ibid.*)
- [109.](#) Wentworth and the Commissioners to Coke, August 25, 1635, and enclosures. (*Ibid.*, I., 450-458.) For the fining of the jury we have Wentworth’s own admission; if his enemies may be believed, they were also “pilloried with loss of ears, bored through the tongue, and marked in the forehead with a hot iron, with other like infamous punishments.”—*Irish Commons’ Journals*.
- [110.](#) Coke to Wentworth, September 20, 1635. (*Strafford Letters*, I., 464-465.)
- [111.](#) It was finally abandoned in April, 1641. See Gardiner’s *History of England*, X., 45, where a letter of the Lords Justices is quoted.
- [112.](#) “The Plantations prove a most laborious work; I could not imagine their march had been so heavy.”—Wentworth to Charles, June 5, 1638. (*Strafford Letters*, II., 175.) In another letter he recommends that a body of cavalry should be sent into Connaught “as fit lookers-on whilst the plantations are settling.” Wentworth to Coke, August 10, 1638. (*Ibid.*, II., 197-201.) For the influence of Lord Clanricarde in preventing the plantation, see Wentworth to Coke, May 18 and July 9, to Charles, July 9 and August 13, 1639, (*Ibid.*, II., 340, 366-369, 381.)
- [113.](#) Wentworth to Charles, June 5, 1638. (*Ibid.*, II., 175-176.)
- [114.](#) Wentworth has been generally blamed for this sentence, which was one of the principal matters urged against him at his trial; but, though it is evident from several passages in his *Letters* that he regarded it with approval and was ready to turn it to the King’s advantage, the case had actually been pending for some years before he came to Ireland. See the correspondence

between Charles I and the Lords Justices in 1631. (*Concise View of the Irish Society*. Appendix, pp. 185-188.)

- [115.](#) Reid's *History of the Presbyterian Church in Ireland*, I., 213. Leland's *History of Ireland*, III., 40, 41.
- [116.](#) "There was little or no manufacture amongst them, but some small beginnings towards a clothing trade, which I had and so should still discourage all I could, unless otherwise directed by his Majesty and their lordships, in regard, it would trench not only upon the clothings of England, being our staple commodity, so as if they should manufacture their own wools, which grew to very great quantities, we should not only lose the profit we made now by indraping their wools, but his Majesty lose extremely by his Customs, and, in conclusion, it might be feared they would beat us out of the trade itself, by under-selling us, which they were well able to do."—Wentworth to Wandesford, July 25, 1636. (*Strafford Letters*, II., 13-23.) For his encouragement of the linen trade see the same letter.
- [117.](#) Wentworth to Coke, November 28, 1636. (*Ibid.*, II., 38-39.)
- [118.](#) Wentworth to Coke, August 3, 1633. (*Ibid.*, I., 97.)
- [119.](#) Townshend's *Life and Letters of the Great Earl of Cork*, pp. 180-181.
- [120.](#) Wentworth to Coke, March 25 and April 7, 1635 (*Strafford Letters*, I., 391, 392, 400-407.)
- [121.](#) Wentworth to Coke, December 15, 1635. (*Ibid.*, I., 497-501.) Rushworth's *Trial of the Earl of Strafford*. The account in Clarendon (*History of the Great Rebellion*, III., 111-114) is inaccurate.
- [122.](#) Charles to Wentworth, July 31, 1635. (*Strafford Letters*, I., 448.)
- [123.](#) Laud to Wentworth, January 2, 1635-6. (Laud's *Works*, VII., 216) and Wentworth's reply, March 9. (*Strafford Letters*, I., 517.)
- [124.](#) Wentworth to Coke, December 14 and 15, 1635. (*Ibid.*, I., 497-501.) Sentence on Lord Mountnorris, enclosed in the preceding. *Somers Tracts*, IV., 202-208. Rushworth's *Trial of the Earl of Strafford*, pp. 186-204.
- [125.](#) Coke to Wentworth, October 26, 1635, enclosing Lord Wilmot's submission. (*Strafford Letters*, I., 477.)
- [126.](#) "This last packet advertised the death of the Earl of St. Albans, and that it is reported my harsh usage broke his heart. God and your Majesty know my innocence; they might as well have imputed unto me for a crime his being three-score and ten years old."—Wentworth to Charles, December 5, 1635. (*Ibid.*, 491-493.)
- [127.](#) "I am full of belief they will lay the charge of D'Arcy the sheriff's death unto me; my arrows are cruel that wound so mortally; but I should be more sorry by much the King should lose his fine."—Wentworth to Wandesford, July 25, 1636. (*Ibid.*, II., 13-23.)
- [128.](#) Wentworth's own defence of his administration is contained in the letter to Wandesford quoted in the preceding note.

- [129.](#) “And, forasmuch as relief could only be sought for upon the said agreement in a course of equity, which was most proper to be had in the High Court of Chancery of this kingdom, where his lordship should become both judge and party; therefore, and to the intent justice might be done, he (Giffard) prayed that the said matter might be referred to the Lord Deputy and Council of Ireland to be by them heard and determined.”—Report by Arthur, Earl of Essex, August 18, 1674.
- [130.](#) Report by J. T. Gilbert on the MSS. of the Marquis of Drogheda. (*Historical MSS. Commission, 9th report*, pp. 293-330.) Clarendon’s *History of the Great Rebellion*, III., 115-117.

STRAFFORD

PART II

THE EVE OF “1641”

BY PHILIP WILSON

Strafford

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THE real or fancied grievances of Loftus and Mountnorris excited far more indignation in England than the wrongs of the native population; but it is not by his dealings with a few powerful and corrupt functionaries, but by his treatment of the mass of the Irish people that Wentworth's administration must be judged. Of his action in the matter of the Connaught plantation it is impossible to speak too severely. In other respects his government was just and equitable; too equitable, indeed, to secure the approbation of the colonists, who conceived that they had an inalienable right to trample upon the older inhabitants. On the subject of religious liberty his views, while by no means consonant to modern notions of justice, were, on the whole, in advance of those of his contemporaries.

Bacon, in the preceding reign, had recommended toleration, not as a thing desirable in itself, but as a temporary expedient which the peculiar circumstances of Ireland required.^[131] Wentworth's view was substantially the same as Bacon's. He undoubtedly looked forward to the ultimate suppression of every religion other than that legally established. But he was far too wise a man to have recourse to violent and indiscriminate coercion. "I am not ignorant," he wrote to Cottington, "how much every good Englishman ought, as well in reason of state as conscience, to desire that kingdom were well reduced to conformity of religion with us here, as indeed shutting up the postern gate to many a dangerous inconvenience and mischief. But," he added, "it is a great business, hath many a root lying deep and far within the ground, which would be first thoroughly opened before we judge what height it may shoot up into, when it shall feel itself once struck at, to be loosened and pulled up."^[132] "It were too much," he says in another letter, "at once to distemper them by bringing plantations

upon them and disturbing them in the exercise of their religion, so long as it be without scandal; and so indeed very inconsiderate, as I conceive, to move in this latter till that former be fully settled, and by that means the Protestant party become by much the stronger, which in truth as yet I do not conceive it to be.”^[133] Under his government, therefore, the priests performed their functions without interference; and this modified tolerance was afterwards made a prominent grievance by the Puritan party.^[134]

There was another section of the community which Wentworth was not disposed to treat with equal leniency. As has been already mentioned, a great number of the northern benefices were at this time filled by ministers who refused to conform to the established ritual. During the reign of James these persons had occupied an extremely anomalous position, being unmolested by the Government, but not enjoying a legal toleration. To Wentworth the sectaries, as they were called, were at least as odious as the Catholics; and the bishops whom he promoted exerted themselves for the suppression of irregularities at which their more tolerant predecessors had connived. Bramhall, who had accompanied the Lord Deputy to Ireland as his chaplain, and had subsequently been advanced to the see of Derry, and Henry Lesley, Bishop of Down and Connor, were especially active in the persecution of the Nonconformists.^[135] Clergymen who refused to subscribe the new canons were deprived of their cures, and, in many cases, driven from the country. Some fled to Scotland, others to New England. The majority made a pretence of submission, while secretly animating their flocks to resistance. After the riots which broke out in Edinburgh in 1637 the situation became still more critical. Of the inhabitants of Ulster a large majority were Scotchmen, and of the Scotchmen in Ulster at least nine in ten were Presbyterians. Between these men and their kindred in the western shires of Scotland a constant correspondence was maintained—partly by itinerant preachers, partly by persons engaged in trade, and partly by landowners who possessed estates in both countries. It is not, therefore, surprising that the success of the Scotch insurgents should have produced important results in Ireland. The Puritan party, who had lately cowered beneath the tyranny of the bishops, now adopted a firmer and more menacing attitude; openly proclaimed their sympathy with the Covenanters; and began to express a hope of obtaining concessions similar to those which the Government had been compelled to make in Scotland.^[136] In July, 1638, Charles, realising that a peaceful accommodation with the Scots was no

longer possible, despatched a secret agent to Wentworth to inquire what assistance he might expect from Ireland in the approaching struggle. The Lord Deputy's reply was not encouraging. During the past four years the Irish army had been greatly improved in quality; but it was still very inadequate in point of numbers. It amounted in all only to two thousand foot and six hundred horse, "which, in a time better secured, is rather too little than otherwise to ascertain the peace and tranquillity of this government and subject." The plantations in Connaught and other parts of the kingdom, were still unsettled, "and the people more apt, consequently, to stir upon so great an alteration as these will bring amongst them than at another time." There were also "great numbers of Scotch in Ulster, undoubtedly of the same affections your Majesty finds in Scotland, and by so much the more diligently to be attended, by how much the nearer they are to the mutual encouragement and succours they may communicate, the one to the other." Under these circumstances to withdraw any part of his small forces would be "a means to raise and spread the flame, to have the fire here also kindled, whilst they find us not in so full power to contain them, as now by God's blessing I conceive we are." He thought, however, that it would be possible to raise some additional levies, "whereof as many as may be to be English. For, howbeit the Irish might do very good service, being a people removed from the Scottish, as well in affections as religion; yet it is not safe to train them up more than needs must in the military way, which, the present occasion past, might arm their old affections to do us more mischief, and put new and dangerous thoughts into them after they are returned home again, as of necessity they must, without further employment or provision, than what they had of their own before." Meanwhile he intended to move the greater part of his present army into Ulster "as near Scotland as may be," both to reduce that province to obedience "and perchance cause some little diversion on the other side, by reason of our being so close upon them."^[137] In November, in response to a renewed appeal from his master, Wentworth agreed to send a body of five hundred picked men to the defence of Carlisle; the places of these troops being immediately supplied by new levies.^[138]

At the beginning of the following year the Lord Deputy, finding that the disturbances in Ulster still continued, and that a design had been formed to surprise the town of Carrickfergus, had recourse to an act of tyranny more outrageous than any upon which he had yet ventured. An oath, called by the

Presbyterians “the Black Oath,” was framed by the Irish Council and imposed upon all the inhabitants of Ulster above the age of sixteen years, “upon the holy evangelists, and that upon pain of his Majesty’s high displeasure, and the uttermost and most severe punishments which may be inflicted according to the laws of this realm on contemners of sovereign authority.” The oath ran as follows: “I do faithfully swear, profess and promise that I will honour and obey my sovereign lord King Charles, and will bear faith and true allegiance unto him, and defend and maintain his royal power and authority, and that I will not bear arms or do any rebellious or hostile act against him, or protest against any of his royal commands, but submit myself in all due obedience thereunto; and that I will not enter into any covenant, oath, or band of mutual defence and assistance against any persons whatsoever by force, without his Majesty’s sovereign and regal authority. And I do renounce and abjure all covenants, oaths and bands whatsoever, contrary to what I have herein sworn, professed, and promised. So help me God in Christ Jesus.”^[139]

“The generality,” says a Presbyterian historian, “did take it, who were not bound with a conscience; others hid themselves or fled, leaving their homes and goods; and divers were imprisoned and kept in divers gaols for a considerable time. This proved the hottest piece of persecution this poor infant church had met with, and the strongest wind to separate between the wheat and the chaff. However, God strengthened many to hazard all before they would swallow it. In the county of Down not only divers left their habitations and most of their goods, and followed to Scotland, but others were apprehended and imprisoned, and they were kept long in the prison, till thereafter Wentworth was executed in England. In the county of Antrim, likewise, many were necessitated to flee, wherein they sustained great loss in the goods they left behind them; and yet were provided for, and lived sparingly in Scotland under the Gospel; and those men who were fit for war were made use of in the levies of Scotland about that time. The like suffering befell those of the Scottish nation who were godly in the counties of Tyrone and Londonderry; fewer of them going at first to Scotland they were subject to the more suffering. Upon refusing the oath they had their names returned to Dublin, from whence pursuivants were sent to apprehend those who were refractory. Divers were apprehended and taken prisoners to Dublin; others, though sent for, yet by special and very remarkable providences escaped the pursuivants who were most earnest to apprehend

them. Thus that spirit raged amongst them before the rebellion, persecuting and imprisoning all who would not conform and take the Black Oath; amongst whom were divers women eminent in suffering with patience and constancy, which become the godly.”^[140]

It was by the common people that these oppressive proceedings, for which a petition signed by a handful of Episcopalian residents in Ulster was considered a sufficient pretext, were chiefly felt; but Wentworth was equally ready to strike at more exalted offenders. Among the refugees whom the tyranny of the Puritan party had driven from Scotland was a clergyman of considerable literary talents named John Corbet. In the summer of 1639 this gentleman fled to Dublin, where he published a pamphlet in which he inveighed against the proceedings of his countrymen with an acrimony which even the persecution which he had suffered cannot wholly excuse.^[141] This production recommended him to the favour of the Lord Deputy, who presented him to a valuable living in the diocese of Killala. The see of Killala was at this time filled by Archibald Adair, a Scotchman, who, in spite of his episcopal office, appears to have entertained a secret bias in favour of the Presbyterian discipline. Adair was imprudent enough to rebuke Corbet with some asperity for his hostility to the Covenant; the latter immediately complained to Wentworth; and the bishop was dragged before the High Commission Court and deprived of his bishopric. He was succeeded by John Maxwell, formerly Bishop of Ross, one of the prelates who had been driven from their sees during the recent ecclesiastical revolution in Scotland.^[142]

On March 18, 1640, Wentworth, now Earl of Strafford and Lord Lieutenant of Ireland, returned from England to Dublin, where a parliament met two days later. The financial embarrassments produced by the Scotch war had at length compelled Charles to summon a parliament in England; and Strafford, who had himself urged his master to have recourse to this most unpalatable expedient, thought it advisable that the Irish legislature should meet some weeks earlier. He believed that he would be able to extort from that body a sum which would not only prove extremely serviceable to his Majesty, but might have the effect of stimulating the liberality of his English subjects. Nor was his confidence altogether misplaced. Although the whole country was seething with discontent the Parliament professed the most extravagant loyalty. The Catholics, intensely as they resented the

plantations, dreaded the fanaticism of the Puritans even more than the tyranny of the Viceroy. The settlers had their own grievances, but, surrounded as they were by a hostile population, did not dare to come to an open rupture with the Government. Many of the smaller constituencies were represented by civil and military officials who voted at the dictation of the Lord Lieutenant. A grant of four subsidies was proposed, and carried with enthusiastic unanimity. A few days later a letter from the King was received, intimating that, if the rebellion in Scotland continued, even this enormous supply might not be sufficient. Two additional subsidies were proposed, and voted with equal alacrity. Not satisfied with these practical proofs of their loyalty, the Commons prefixed to their grant an elaborate panegyric on the Lord Lieutenant, and a declaration of their unswerving devotion to the royal person.^[143] Indeed the only incident which occurred to disturb their harmony had its origin in the intemperate zeal of the Upper House. The Lords were eager to concur in the loyal declarations of the Commons; and, at the suggestion of the Earl of Ormond, the zealous friend of the Lord Lieutenant, a resolution was carried congratulating the Commons on their liberality, and expressing a wish that the intended declaration might be made the joint act of both Houses. This well-meant proposal aroused unexpected indignation. The Commons claimed the exclusive right of taxation; they resented the action of the peers as an unconstitutional encroachment on their privileges, and peremptorily refused to unite with them in the proposed declaration. The Lords were compelled to rescind the obnoxious resolution and to content themselves with a separate declaration, which was duly entered in their own journals.^[144] On the 1st of April the Houses, having served the purpose for which they had been convened, were adjourned until the following June. Two days later the Lord Lieutenant sailed for England, having entrusted the civil government to Wandesford, and the command of the forces to the Earl of Ormond.

Strafford had resolved to devote the sums which were now at the disposal of the Government to the increase of the Irish army. During his absence the task devolved upon Ormond, who performed it with amazing rapidity. By the middle of the summer a body of eight thousand foot and one thousand horse was collected at Carrickfergus—the point whence they might be most easily employed for the invasion of Scotland. It is significant of the change which had taken place in Strafford's views during the past year that, whereas the old army had been exclusively composed of Protestants, the

new levies were mainly or entirely Roman Catholic.^[145] A few months earlier the Lord Lieutenant had been vehemently opposed to the enlistment of the native Irish. In July, 1638, Charles, who was then meditating the invasion of Scotland, had received an offer of assistance from an unexpected quarter. In the preceding century a number of clans from the Hebrides and the Western Highlands had established themselves upon the coast of Ulster, and had subsequently played an important part in the civil wars of the province, occasionally assisting the Government, but generally co-operating with the natives, whose language and customs did not materially differ from their own. Of these clans the Macdonnells were by far the most powerful.^[146] During the reign of Elizabeth, Sorley Boy Macdonnell, chief of the clan, had been engaged in frequent hostilities with successive governors. On the accession of James his son Randal had been confirmed in the possession of his estates, to which he had succeeded two years previously. This gentleman married a daughter of the Earl of Tyrone, and, after the flight of his father-in-law, appears to have become an object of suspicion to Chichester, then Lord Deputy. He speedily, however, made his peace with the Government, was raised to the peerage in 1618 as Viscount Dunluce, and, a few years later, created Earl of Antrim. His son, Randal, the second earl, married in 1635 the widow of the unfortunate Duke of Buckingham, by whose means he obtained a considerable influence at the court of England, where his fervid Catholicism secured for him the favour of Queen Henrietta Maria. When disturbances broke out in Scotland and it became known that the Covenanters had entrusted the principal command to the Earl of Argyle, the hereditary enemy of the Macdonnells, Antrim undertook to raise an army of Irish and Highland Catholics to assist the King in the reduction of the Scotch rebels. The offer was tempting, for the earl commanded an extensive following in both countries, and Charles was eager to avail himself of it; but Wentworth, who hated all Celts, and particularly detested Antrim, expressed his disapproval in the strongest terms. To Antrim himself, whom, in deference to the King's wishes, it was necessary to make a show of consulting, the Lord Deputy hinted that he had perhaps underrated the difficulty of the enterprise; that, while it would be easy to raise troops, it would be less easy to pay and feed them; that the cost of arms and transports would be enormous; that the hazards of the attempt would be great and the consequences, in the event of failure, serious. To his colleagues in the English council he explained his real objections with

greater frankness. The earl was the grandson of Tyrone, and therefore an object of distrust and aversion to the Englishry. Of the officers whom he proposed to employ, some had passed their lives in the Spanish service and were believed to retain Spanish sympathies. His troops would necessarily be recruited from amongst the native Irish, “children of habituated rebels,” from whom, if they were once armed, some sudden outrage might be apprehended. It would be a grave scandal if the King were to make use of a Roman Catholic army and a Roman Catholic general. It would afford the Scotch, who were very numerous in Ulster, a plausible pretext for arming to defend themselves, and thus the whole province might be thrown into a blaze. These arguments were pronounced by Windebank to be “very solid and unanswerable”; and, after some months spent in fruitless negotiations, the scheme was abandoned.^[147] In the spring of 1640, however, the hour for such scruples had gone by. It was necessary, if the Crown was to retain any vestige of authority, to raise an army in Ireland. It was impossible in their present temper to have any confidence in the loyalty of the Protestant settlers; and Strafford, who never hesitated to adapt his policy to circumstances, appealed to the native population. Perhaps no act of his administration contributed in so large a measure to bring upon him the vengeance of the English Parliament.

The Houses met again on the 1st of June. Although only two months had elapsed since the last session, the political situation had completely changed. The Covenanters were victorious in their own country, and were preparing to invade England. A Parliament had been held at Westminster in April, and, having refused to grant supplies, had been suddenly and ungraciously dismissed. This arbitrary act inflamed the popular discontent. The disaffected in Ireland—and there were few of any class or creed in Ireland who had not good grounds for disaffection—were encouraged by the disturbances in the sister kingdoms, and no longer cowed by the presence of the terrible viceroy. The officers, on whom Strafford had been wont to rely for the management of the House of Commons, were absent, detained by their military duties; and the Catholic and Puritan parties, whose mutual jealousies it had been a main object of his policy to foster, had agreed to suspend their former quarrels, and formed a close alliance for the purpose of embarrassing the Government. On many points the wishes of the two parties were irreconcilable; but there were two feelings which were shared in equal measure by both sections of the opposition—indignation at

the tyranny of the Lord Lieutenant, and hatred of the Established Church. A remonstrance denouncing the corruption of the ecclesiastical courts and the exorbitant fees demanded by the Anglican clergy was proposed and carried by a large majority. The Commons next complained that the supplies voted in the preceding session were excessive; and, without actually rescinding their recent grant, suggested an alteration in the manner of collecting the subsidies which would greatly reduce their value. Alarmed at their violence, Wandesford prorogued the Parliament until October, when he perhaps hoped that the Lord Lieutenant might be able to resume his duties.^[148]

In October, however, Strafford was still in England; and the ill-humour of the Houses had increased rather than diminished during the recess. The third session of the Irish Parliament was even more turbulent than the second. A number of unpopular laws had been enacted in the last Parliament: these laws were now declared to be grievances, and an address to the Lord Deputy was carried requiring him to suspend their execution. In June the Commons had resolved that the remaining subsidies should be collected “in a moderate parliamentary way;” they now explained their wishes more precisely, and insisted that no man should be taxed to more than the tenth part of his income. On both these points Wandesford was obliged to comply with their demands.^[149]

While the Irish Parliament were thus manifesting their implacable hostility to his government, the Lord Lieutenant, who appears to have been wholly ignorant of the change which had taken place in their temper, submitted to Sir George Radcliffe one of the most remarkable proposals which have ever proceeded from a British minister. The Ulster Scots were now the great objects of his animosity, and the severities hitherto employed had served rather to irritate than to intimidate them. As a last hope of preserving the tranquillity of the country Strafford now proposed that, with the assent of the Irish Parliament and the assistance of the native Catholics, the entire colony should be transported back to Scotland—a most significant comment on the advantages which the English monarchy is popularly supposed to have derived from the Plantation of Ulster. “It will be objected,” he wrote, “that the Scots are many in number, every ordinary fellow still carrying his sword and pistol; and therefore unsafe to be too far provoked. I answer—’tis more unsafe to deal with an enemy by halves; and that, I fear, will fall out to be our case, if resolutely this design be not put in

execution; for who sees not, if the now standing army be not able, without any manner of danger or difficulty, to give them the law, and send them forthwith packing—I say, who sees not that, upon Argyle’s landing and arming of them, we shall be exposed to a most assured scorn and certain ruin?” It is evident that Strafford, when he wrote these words, relied for the success of his project upon the servility of Protestant royalists and the traditional feud between the Catholic and Puritan parties; but Radcliffe, who had formed a juster estimate of the actual condition of the country, did not dare to communicate the proposal to the Irish Parliament.^[150]

That body was by no means satisfied with its recent triumphs. In the first week of November the Commons, acting, it is said, at the instigation of some members of the English Parliament, which had met a few days earlier, notably of Sir John Clotworthy, a Presbyterian landowner, who had been driven from Ulster by the tyranny of Strafford, and now represented the borough of Malden, drew up a remonstrance enumerating the principal grievances from which the kingdom had suffered under the administration of the Lord Lieutenant. The remonstrance was composed of sixteen articles, of which the first related to the general decay of trade, said to be due to new and illegal methods of taxation; the second and third to the arbitrary interference of the Lord Lieutenant and Council with private lawsuits; the fourth and fifth to the refusal of the Graces and the inquiries into defective titles, particularly in the province of Connaught; the sixth and seventh to monopolies, especially the monopoly of tobacco; the eighth to “the extreme and cruel usage of the inhabitants of the city and county of Londonderry”; the ninth to the tyranny of the High Commission Court; the tenth to the exactions of the Anglican clergy; the eleventh to the misappropriation of the revenue; the twelfth to a proclamation issued in 1635 prohibiting gentlemen to leave the kingdom without license; the thirteenth to the disfranchisement of certain ancient boroughs, by which the Parliament was said to have been deprived of the services of many good and useful members; the fourteenth to the intimidation practised by ministers in the House of Commons; the fifteenth to the exorbitant and illegal fees demanded by subordinate officials in the courts of justice; and the last to the impoverishment of merchants and other subjects owing to the intolerable rapacity of the tax-farmers. On the 11th the House appointed a committee of thirteen members, four from Leinster, and three from each of the other provinces, who were instructed to

proceed to London and present the remonstrance to the King. On the 12th the Parliament was once more prorogued.^[151]

The committee, meanwhile, had sailed for England, without waiting for the license of the Deputy. On their arrival in London they found the Earl of Strafford a prisoner, accused of high treason, and the leaders of the popular party busily employed in collecting evidence against him. Ireland had been the principal scene of the fallen minister's activity, and it was to his Irish administration that his accusers chiefly looked to furnish matter which might justify his impeachment. On the 6th of November, Pym had moved for a committee to enquire into the affairs of that kingdom; and the motion, which was seconded by Sir John Clotworthy, had been carried by a large majority. To this committee the Irish agents now addressed themselves. The remonstrance was laid before the House of Commons on the 20th, was made the subject of an exhaustive discussion, and was much used in the subsequent prosecution of the Lord Lieutenant.^[152]

In Ireland, meanwhile, all was chaos. Wandesford died suddenly at the beginning of December, broken-hearted at the calamities of his patron and the alarming condition of the country. After an interregnum of some weeks Charles was reluctantly compelled to entrust the government to two Lords Justices, who were understood to enjoy the confidence of the English Parliament; Sir William Parsons, Master of the Court of Wards, and Sir John Borlase, Master of the Ordnance.^[153] The first was an astute and rapacious official, who had amassed a vast fortune at the expense of the native proprietors; the second a rough soldier, inexperienced except in the business of his profession. The Houses met again in February and speedily gave fresh proofs of their unabated hostility to the Government. During the last session a remonstrance, identical with that voted in the House of Commons, had been proposed in the Lords, but had been defeated owing to the opposition of the Earl of Ormond. A few days after the prorogation, however, the principal Roman Catholic peers had at an informal meeting deputed three of their number to proceed to London and lay their grievances before the Parliament. These noblemen, with one other, were now authorized to act in the name of the entire body; to repeat the complaints of the Commons; and to adduce others relating to matters which particularly affected their own order.^[154]

While the Lords were thus manifesting their implacable animosity against the Earl of Strafford, the Commons were adopting even more violent measures. The remonstrance had placed a formidable weapon in the hands of the managers of the impeachment; but its effect was much diminished by the fulsome panegyric upon the Lord Lieutenant which had been prefixed to the act of supply voted in the preceding year. The Commons now declared that this panegyric had been fraudulently inserted in the Act by the earl or his creatures; protested that the matter of it was entirely false; and petitioned the King that it might be expunged from the records.^[155] A few days later a similar resolution was proposed in the Upper House, and carried in spite of the opposition of Ormond and other royalist peers.^[156] The two Houses next prepared a list of constitutional questions, which were submitted to the judges for consideration. To these questions, which related to the judicial powers claimed and exercised by the Lord Lieutenant, the validity of acts of State, the jurisdiction of the Castle Chamber and the High Commission Court, the exercise of martial law in time of peace, the punishment of jurors who refused to find for the Crown, the right of the judges to accept bribes, and some other matters of less importance, the judges declared themselves unable to return immediate answers. The questions were thereupon forwarded to the Irish committee in London, who were instructed to communicate them to the English Parliament.^[157] Finally, on the 27th of February, Audley Mervyn, the principal spokesman of the Puritan party, carried to the bar of the House of Lords articles of impeachment against Sir Richard Bolton, Lord Chancellor of Ireland, John, Bishop of Derry, Sir Gerald Lowther, Lord Chief Justice of the Common Pleas, and Sir George Radcliffe, Kt., all of whom were jointly and severally charged with having traitorously conspired with Thomas, Earl of Strafford, to introduce an arbitrary and tyrannical government and to subvert the liberties of Parliament and the fundamental laws of the realm.^[158]

These impeachments were among the last acts of the coalition. An alliance between parties who agreed in nothing save a common hatred was inevitably dissolved by the destruction of the common enemy. Even before the Act of Attainder had received the royal assent, the Catholic section of the opposition had had some reason to be alarmed at the conduct of their Puritan allies. In the last week of April a petition, described as proceeding from “some Protestant inhabitants of the counties of Antrim, Down, Derry,

Tyrone, and Armagh,” was presented to the House of Commons by Sir John Clotworthy. The petitioners complained that “partly by the cruel severity and arbitrary proceedings of the civil magistrate, but principally through the unblest way of the prelacy with their faction their souls were starved, their estates undone, their families impoverished, and many among them cut off and destroyed.”

Their chief grievance, however, appeared to consist in the laxity with which the laws against recusants were administered. Titular bishops were winked at. Mass priests were frequent and pretended a title to every parish in the kingdom. Masses were “publicly celebrated without controulment, to the great grief of God’s people, and increase of idolatry and superstition.” Friaries and nunneries were tolerated; and in many places Papists were permitted to keep schools, “unto some whereof such multitudes of children and young men do resort that they may be esteemed rather universities, teaching therein not only the tongues, but likewise the liberal arts and sciences.”^[159]

The fanatical tone of this petition, the favour with which it was received by the Parliament, and the persecution of the English Catholics completely alienated the Irish from the Puritan party. At the same time the fall of Strafford had removed the main obstacle to a reconciliation between the King and the recusants. Urged on by the Queen, and alarmed at the critical condition of his other kingdoms, Charles at length resolved to conciliate his Irish subjects. In May the Lords Justices received instructions to prepare a Bill for the limitation of the royal title, and another for securing the possessions of the Connaught gentry.^[160] These and some other less serious concessions effected a rapid change in the sentiments of the Catholic leaders, and the men who in the spring of 1641 had united with the Puritans to resist the tyranny of the Crown took arms in the autumn of the same year to defend the Crown against the encroachments of the Puritans.

Notes

- [131.](#) Considerations touching the Queen's service in Ireland. (*Cabala*, II., 52).
- [132.](#) Wentworth to Cottington, October 1, 1632. (*Strafford Letters*, I., 74.)
- [133.](#) Wentworth to Coke, November 28, 1636. (*Ibid.*, II., 38, 39.)
- [134.](#) "Certainly it is my duty to witness this truth for his Majesty, that, since I had the honour to be employed in this place, he hath not been pleased that the hair of any man's head should be touched for the free exercise of his conscience." Wentworth to Con, May 15, 1637. (*Ibid.*, II., 112.) Compare the charge made against him at his trial of showing favour to Catholics. Rushworth's *Trial of the Earl of Strafford*.
- [135.](#) Bramhall to Laud, February 23, 1638 (*Calendar of State Papers*, 181-183); Wentworth to Bramhall (*Rawdon Papers*, p. 43); Lesley to Wentworth, September 22 and October 18, 1638 (*Strafford Letters*, II., 219, 226, 227); Lesley's *Confutation of the Covenant*. Adair's *Narrative*, chap. III.
- [136.](#) Lesley to Wentworth, October 18, 1638. Laud to Wentworth, November 2, 1638. (*Strafford Letters*, II., 226, 227, 230, 231.)
- [137.](#) Wentworth to Charles, July 28, 1638. (*Ibid.*, II., 187-189.) For a detailed account of the condition of the Irish army at this time see Wentworth to Coke, August 10, 1638. (*Ibid.*, II., 197-201.)
- [138.](#) Wentworth to Charles, November 11, 1638. (*Ibid.*, II., 233-236.)
- [139.](#) Act of State by the Lord Deputy and Council, May 16, 1639. (*Ibid.*, 343-346.)
- [140.](#) Adair's *Narrative*, chap. IV.
- [141.](#) *The Epistle Congratulatory of Lysimachus Nicanor of the Society of Jesus to the Covenanters of Scotland*.
- [142.](#) Clogy's *Life of Bedell*, pp. 129-131. Compare *Lords' Journals*, I., 112.
- [143.](#) *Commons' Journals*, I., 141.
- [144.](#) *Lords' Journals*, I., 106.
- [145.](#) Rushworth's *Trial of the Earl of Strafford*, 517. This statement is confirmed by a Catholic pamphleteer who called himself Antonius Prodinus. "Thomas, comes Straffordiæ, Hiberniæ prorex, decem milia Catholicorum Hibernorum militum a multis ante mensibus in armis habuit in Ultonia." *Descriptio regni Hiberniæ*, p. 41. Carte, however, asserts that the officers and 1,000 of the private soldiers were Protestants. *Life of Ormond*, I., 132.

- [146.](#) For a full account of the Macdonnells of Antrim see *Clan Donald* by A. and A. Macdonald, vol. II., chap. 15.
- [147.](#) Antrim to Wentworth, July 17, December 31, 1638, April 11 and 12, May 16, 1639: Wentworth to Windebank, March 20, 1639, enclosing Antrim's propositions: to Vane, May 16, July 7, 1639: Windebank to Wentworth, April 13, 1639: to Antrim, April 13, 1639. (*Strafford Letters*, II., 184, 266, 300-305, 321-323, 339-340, 419-424, *et alibi*.)
- [148.](#) *Commons' Journals*, I., 141.
- [149.](#) *Ibid.*, 156-161.
- [150.](#) Wentworth to Radcliffe, October 8, 1640. This letter, which is not included in the *Strafford Letters*, is printed in Whittaker's *Life and Original Correspondence of Sir George Radcliffe*, pp. 209, 210. It is endorsed by Radcliffe, "Proposition, Scots, rejected by me and crossed."
- [151.](#) *Commons' Journals*, I., 165. Compare *Calendar of State Papers*, 252-256, where Radcliffe's answers are given.
- [152.](#) *Parliamentary History*, IX., 40.
- [153.](#) Charles to the Privy Council, December 15 and 30. *Calendar of State Papers*, 247-248.
- [154.](#) *Ibid.*, 261-262. *Lords' Journals*, I., 152.
- [155.](#) *Commons' Journals*, I., 176-177.
- [156.](#) *Lords' Journals*, I., 157.
- [157.](#) *Commons' Journals*, I., 174-175. *Lords' Journals*, I., 160. *Calendar of State Papers*, 333-337.
- [158.](#) Rushworth's *Historical Collections*, IV., 214.
- [159.](#) *A Sample of Jet Black Prelatic Calumny*, pp. 131, etc.
- [160.](#) Lords Justices to Vane, May 8, 1641. (*Calendar of State Papers*, 281-283.)

“1641”

BY ARTHUR HOUSTON, K.C., LL.D.

“1641”

“ON Friday, the 22nd of this month, after nine of the clock at night, this bearer, Owen Connolly, servant to Sir John Clotworthy, Knight, came to me, the Lord Justice Parsons, to my house, and in great secrecy (as indeed the case did require) discovered unto me a most wicked and damnable conspiracy, plotted and contrived, and intended to be acted, by some evil affected Irish Papists here.”

With these words begins the historic letter written on the 25th of October, 1641, by the Lords Justices, Sir William Parsons and Sir John Borlase, and thirteen members of the Irish Privy Council, to the Earl of Leicester, the absentee Lord Lieutenant of Ireland.

The objects which those who planned this conspiracy had in view, the means by which they were to be accomplished, and the conduct of those who took part in the insurrection which resulted from it, are among the most controverted questions of Irish history. Those who have taken sides against the rebels represent the rising as an ebullition of blind hatred against the English and Protestant inhabitants of Ireland, entertained by the native and Catholic population, who were resolved on expropriating and exterminating them, and setting up a government independent of the Crown of England, and establishing the Catholic Church in Ireland. Those who have sided with the rebels argue that the conspiracy and the insurrection were the result of legitimate grievances, for the redress of which insurrection afforded the only means; that the insurgents were loyal to the Crown, sought, not religious ascendancy, but religious freedom; that, while it is true that one of the objects of the conspirators was the recovery of property of which they or their ancestors had been violently and unjustly deprived, they were averse to the unnecessary effusion of blood, and had no design of harming, much less murdering, their English and Protestant fellow-countrymen. As to the conduct of those who took part in the

rebellion, English and Anglo-Irish writers have made charges of wholesale massacre and shocking cruelty against them. These charges have been not only repelled, but retorted on the Irish Government, and the officers and soldiers who acted under their orders.

In addition to sketching briefly the main incidents of the rebellion, I propose in this paper, so far as its necessary limitations will permit, to discuss these different questions, and to see if it be not possible, with the materials in our possession, to come to a conclusion upon them.

As a preliminary step it will be necessary to endeavour to place ourselves in the position of a native Irish Catholic in the year 1641, so as to see what was his lot, and of what, if any, grievances he had just cause to complain. A short historical retrospect will help to an understanding of this matter.

In the beginning of the reign of Elizabeth the Acts of Supremacy and Uniformity had been passed. By these statutes Catholics were liable to a fine for not attending church; while those who failed to take the Oath of Supremacy could not obtain a university degree, practise at the Bar, hold the office of a magistrate, or sue out the livery of their lands.

The legal fine for not attending church was, indeed, only twelve pence, and was intended to go to the relief of the poor. But much more was exacted by clerks and officers for fees, and the proceeds of the tax were diverted from its statutory destination, the relief of the poor, on the pretext, as explained by Sir Arthur Chichester, the Lord Deputy, that the poor of the parishes were not fit to receive the money, being Catholics themselves; and therefore ought to pay the like penalty. Towards the close of the reign of James the First, the Catholics put forth a remonstrance in which their position is summarized in these words:—"That their children were not allowed to study in foreign universities; that all the Catholics of noble birth were excluded from offices and honours, and even from the magistracy of their respective counties; that Catholic citizens and burgesses were removed from all situations of power and profit in different corporations; that Catholic barristers were not permitted to plead in the courts of law; and that the inferior classes were burdened with fines, distresses, excommunications and other punishments, which reduced them to the lowest degree of poverty."

From this it will be seen that the grievances under which the Catholics of Ireland, as such, laboured at the accession of Charles the First, were not confined to any rank or class, but were suffered by the highest as well as the lowest.

The same observation is equally true of another grievance to which I am about to refer, a grievance that had not ostensibly any connection with the race or the religious belief of those who complained of it, but at the same time in fact pressed almost exclusively upon the native Irish, and those who professed the Catholic faith. This grievance may be briefly described as insecurity of land tenure.

In the reign of James the First the great case, reported by Sir John Davies, under the name of the Case of Tanistry, decided that lands should descend, not according to the native custom by which the Tanist succeeded to a limited interest in the property, the estate itself being vested in the tribe, but should descend according to the law of England. In consequence of this decision, the owners or those who claimed to be owners, in order to obtain what they believed would be an indefeasible title, surrendered their estates to the Crown and took a new grant, on payment of certain fines and the expenses of the letters patent, and on the terms of paying a fixed quit rent. Unfortunately astute lawyers were able to pick holes in the patents. Sometimes the officer whose duty it was to enrol them had neglected to do so. Sometimes the lands were wrongly or insufficiently described. Sometimes they had been valued too low, or even too high. In any of these cases, and in many others, the letters patent, if impeached, would turn out worthless. I need not remind you, as you have recently had the advantage of hearing a learned discourse on Strafford's government in Ireland, what use he had made of these flaws, for the purpose of confiscating the properties of the owners of land in Connaught and Clare, in order to procure money for his master, and land for the English plantation. You will remember that among the graces which Charles promised the Irish in return for £120,000, which they gave him, were one for freedom of worship, one for confirmation of titles, and one for limiting the right of the Crown to recover lands to a period of sixty years, after an uninterrupted and undisputed possession, and how basely Charles and Strafford behaved when the money had been paid over.

Such was the posture of affairs in Ireland when Strafford, broken in health, was summoned to England to take command of the army fighting against the Scots. This army having been defeated at Newcastle, he returned to London, there to meet his accusers, to be condemned to death, and to be sacrificed by the King who had promised that “the Parliament should not touch one hair of his head.”

Strafford's successor was Sir Christopher Wandesford. The Irish Parliament met in June, 1640, in a very different temper from that displayed in their last preceding session. They had caught something of the spirit of their brethren in England, with whom they had been brought into touch by the proceedings against Strafford. The Commons drew up a Remonstrance of Grievances, and appointed a committee of sixteen, including four members of the Lords, to lay it before the King. In it they remind him of their liberality in contributing to his necessities, and of the fact that in them, the Catholic people, lay the strength of his revenue, and proceed to complain of their wrongs: the arbitrary decision of causes and controversies before the chief governor, the perversion of law by the judges in order to gratify the Court, the cruel punishments employed to repress freedom of speech and writing, the extended powers of the High Court of Commission, the increase of monopolies, the exorbitant fees exacted by the clergy, the denial of the Graces, and other grievances.

This committee did not receive the final answer from the King until he was on the point of setting out for Scotland. They returned to Ireland three weeks after the Parliament had been prorogued, bringing back the answer, with all the Bills which had been transmitted to England for the approbation of the Council there before being passed. Among these were the Bill for Limitation, which protected from the claims of the Crown all estates that had been enjoyed without claim for sixty years; the Bill for relinquishing the title of the Crown to the four Connaught counties, the county of Clare, and large tracts of land in Tipperary and Limerick, the title of which had been found for the King by several inquisitions, and which were ready to be disposed of on survey to British undertakers. These Bills were all to be passed when the two Houses met, and meanwhile care was to be taken to notify them to the whole nation.

These concessions, though, if intended to be honestly carried out, which might well be doubted, they might satisfy the Lords and Commons by

whom they were obtained, failed to satisfy the native chiefs, and the Catholic population. The Ulster plantators of James, and the Munster plantators of Elizabeth, and the Leix and Offaly plantators of Mary, and the Wicklow plantators, who were enjoying the lands of the Byrnes, were all to remain in undisturbed possession of their estates. The Catholic religion was still to be under a ban, and those who professed it were to pay their twelve pence for every Sunday and holiday that they did not attend the parish church, and were to be exposed to the disabilities imposed by the Act of Supremacy on those that failed to take the Oath. Besides this there were sinister rumours in circulation. Sir William Parsons was reported to have said at a public entertainment in Dublin, "that within a twelvemonth no Catholic should be seen in Ireland." A letter was intercepted coming from Scotland to a person named Freeman, in Antrim, stating that a covenanting army under the command of General Lesley was coming to extirpate the Roman Catholics of Ulster, and leave the Scots the sole possessors of the province. The English House of Commons had passed a vote that no toleration of the Romish religion should be allowed in Ireland, and they had shown their intolerance by having eight Catholic priests arrested for saying Mass in London, and having seven of them executed. Sir John Clotworthy, the employer of Connolly, the informer already mentioned, and a man well acquainted with the designs of the faction that governed the English House of Commons, was reported to have declared there in a speech "that the conversion of the Papists in Ireland was only to be effected by the Bible in one hand and the sword in the other."

The consequence was that a genuine and general alarm spread among the Catholics of all ranks throughout Ireland. At the same time the circumstances were favourable for striking a blow for religious liberty. The Scots, who had far less to complain of than the native Irish, had obtained religious liberty by taking up arms. Why should not the Irish, more especially seeing that the troubles in the sister isle made their attempt all the easier?

Roger O'More, commonly called Rory O'More, was descended from the chief branch of the O'Mores of Leix, whose lands had been confiscated for the benefit of the English colony planted there. He was connected by intermarriage with considerable families of English blood. He was handsome, courteous, and able, a man of high character, and the idol of the

Irish, who celebrated him in their songs, and relied so much upon him that they used to say: "God and our Lady be our help, and Roger O'More." He it was that, in connection with the son of the great Tyrone, contrived the rebellion.

As early as February, 1641, O'More had secured the adhesion of the best gentlemen of quality of Leinster, and of a great part of Connaught, subject to his getting the adhesion of the gentry of Ulster. In order to obtain their adhesion he, in February, 1641, approached Lord Maguire, Baron Enniskillen. Lord Maguire consented to join, and a meeting was held next day to which all the Ulster gentlemen then in town were invited. They readily engaged in the plot. It was desired to obtain the adhesion of the Lords of the Pale, who, though English in blood, and possessed of estates that had been the property of the native Irish, were Catholics, and smarting under the affronts put upon their religion, and apprehensive of further severities. Colonel Plunket, who was one of the first to join the conspiracy, and had, as he affirmed, broached the subject to Lord Gormanstown, and got his approval, undertook to win them over. But he effected nothing. By and by we shall see how they were forced to join.

It was ultimately arranged that the rising should take place on the 23rd of October. Every man had his place assigned to him. The Ulster gentry under Sir Phelim O'Neill, were to seize Derry; O'More, Colonel Byrne, Lord Maguire, and Bryan O'Neale were to lead the attack on Dublin Castle, which was to be made by two hundred men, to be provided equally out of each province by the principal conspirators. The secret of the plot had been kept with extraordinary success. It had been communicated to as few persons as possible, and those only who were leaders. The conspirators felt assured that the common people would unhesitatingly follow their native chieftains in any enterprise against the Saxon intruder, and in this, as the event proved, they were not mistaken. There was this disadvantage, however, in not taking the people into their confidence, that the latter were left in ignorance of the objects which their leaders had in view, and the means by which those objects were to be obtained. Apparently the people were allowed to form their own opinions on these subjects, and it may be that they thought, and that they proclaimed that amongst those objects was the erection of Ireland into an independent kingdom, and the establishment of the supremacy of the Catholic Church, and that among the means to be

adopted for effecting those objects was the extirpation and expropriation of the English and Protestants.

Owen Connolly was a Protestant, and Sir John Clotworthy, his master, was bitterly anti-Irish and anti-Catholic. How the secret came to be disclosed to him as it was by Oge O'Neill on the night of the 22nd, is a mystery; but it was, with the result that the attempt on Dublin Castle was forestalled.

Some fresh light has been thrown upon the events of this period of Irish history by the recently published volume, issued by the Historical Manuscripts Commission, containing the manuscripts of the Marquess of Ormond, preserved at Kilkenny Castle, the second of which gives at full length the whole of the letters from the Irish Lords Justices to the King, the Earl of Leicester, Lenthall, Speaker of the House of Commons, Sir Henry Vane, Sir Edward Nicholas, Lord Falkland, Secretary of State, and His Majesty's Commissioners for the affairs of Ireland. This correspondence commences with the famous letter of October 25th, 1641, already quoted, and continues without interruption down to the 15th of January, 1644, when a letter is written to Sir Edward Nicholas. This is the first complete series of these despatches ever published. The originals were destroyed in a fire in Dublin Castle.

Whatever justification there may be for the charges of neglect of duty made by Carte against the Lords Justices, in not taking precautions against a rising as to which they had warnings, there can, I think, be no doubt but that from the time when at nine on the night of the 22nd of October, 1641, Owen Connolly made his disclosures to Lord Justice Parsons, down to the date when these letters cease, the Council, according to their lights, left no stone unturned to crush the rebellion. Parsons and Borlase have been accused of postponing the suppression of the rebellion in order to promote the confiscation of Irish estates. But both of these continued to attend the meetings of the Council, and to sign the letters, down to the end of June, 1643, and Borlase continued to attend and sign the letters to the very end. The letters afford a continuous record of the measures taken by the Lords Justices and Council for stamping out the rebellion.

Parsons immediately on receiving Owen Connolly's communication repaired to Borlase, and they at once summoned a meeting of the Council,

which sat all that night and all the next day. They caused the Castle to be strengthened with armed men, and the city to be guarded, and proceeded to have such of the insurgents as they could lay hands on apprehended. The first was Hugh MacMahon, whom they examined, and who, to use their own words, when he saw they “laid it home to him, confessed enough to destroy himself and impeach some others.” Calling to mind a letter they had received from Sir William Cole on the 11th of October, they determined to secure Lord Maguire immediately, and succeeded in arresting him in a cockloft in an obscure house far away from his lodging. He was also examined, and admitted knowledge of the conspiracy, and ultimately made and delivered to the Lord of the Tower the written statement to which I shall refer hereafter.

When the hour approached for surprising the Castle a large number of strangers were observed to come to town in great parties several ways, who, not finding admittance at the gates, stayed in the suburbs. The Council issued a proclamation commanding all men, not dwellers in the city or suburbs, to depart within an hour on pain of death, and making it alike penal in those who should harbour them. This had the desired effect. The concourse departed. On the following day the Council sent into all parts of the country another proclamation giving information of the failure of the plot to seize the Castle, so as to dishearten the insurgents, and to encourage the friends of the Government.

Meantime the rebellion had broken out in various places throughout the country. The Council did not know whether to believe MacMahon’s statement that all the counties in the kingdom were in the plot; but if it were so they say, “Then indeed we shall be in high extremity and the kingdom in the greatest danger it ever underwent, considering our want of men, money, and arms to enable us to encounter such great multitudes as they can make if all should come against us.”

It was no wonder that the Lords Justices and Council contemplated a general rising with dismay. “The army we have,” they say in their letter of October 25th, “consisting of but two thousand foot and one thousand horse, are so dispersed in garrisons in several parts of the four provinces, for the security of these parts ... as, if they be sent for to be all drawn together, not only the places whence they are to be drawn ... must be by their absence distressed, but also the companies themselves coming in so small numbers,

may be in danger to be cut off in their marches, nor indeed have we money to pay the soldiers to enable them to march.”

The Council soon had reason to know that the insurrection was general. Lord Blaney came to Dublin at twelve o'clock on the night of October 23rd, with news of the seizure of his house at Castleblaney, and of a house of the Earl of Essex at Carrickmacross. At three o'clock on the morning of the 24th they learned that the store of arms and ammunition at Newry had been seized. In a postscript to the letter of October 25th they write: “As we were making up these our letters the Sheriff of the county of Monaghan and Dr. Teate having fled, came to us and informed us of much more spoil committed by the rebels in the counties of Monaghan and Cavan, and that the sheriff of the county of Cavan joins with the rebels, being a Papist and a prime man of the Irish.” On the 5th of November they write that the rebels had seized the houses and estates of almost all the English in Monaghan, Cavan, Fermanagh, Armagh, Tyrone, Donegal, Leitrim, Longford, and a great part of Down, and were beginning to threaten the English plantations in the King's County and Queen's County, that Dundalk had surrendered to them without a blow, and that they were marching on Drogheda. On the 13th of November they announce that the Byrnes and others had risen in Wicklow; on the 22nd that some other parts of Leinster had joined; on the 25th that the whole county of Louth, both gentry and others, had joined; that some of the Wicklow rebels had come to within four miles of the city of Dublin, and that the cattle and houses of all the English in both Wicklow and Wexford were in the hands of the insurgents; on the 30th that several other counties had risen, and on the 14th of December that the defection then appeared to be universal throughout the whole four provinces.

The burden of these letters, which are steeped in the gall of bitterness towards the Irish Papist and his religious teachers is principally, in the first place, a wholesale charge of acts of barbarity against the rebels, and in the second place, frantic appeals for help in men and money and material of war.

Now with regard to those charges it is to be observed first, that much weight is not to be attached to accusations made in general terms; and, second, that charges of this kind were very useful as excuses for barbarities committed by the Government troops, and as stimulants to the English Parliament and people to send over the required supplies, and therefore very

likely to be greatly exaggerated; and third, that the writers of these letters may have more readily given credence to reports of such excesses having been perpetrated, because, if their first letter is to be believed, Owen Connolly had told them that it was part of the design “that all the Protestants and English throughout the whole kingdom that would not join with them should be cut off, and so those Papists should then become possessed of the Government and kingdom at the same moment.”

It is of importance, therefore, to see what were the actual objects which the organizers of the rebellion had in view. Presumably they would include two, namely, religious liberty, and the restoration of the confiscated lands. Now, we have documents which will throw great light on this question. One is the oath which, as mentioned in the letter of the Council to Leicester, of November 25th, 1641, was administered to all who joined the rebels; another is the written statement made by Lord Maguire and delivered by him, about 1642, to Sir John Conyers, the Lieutenant of the Tower. The oath was to maintain and defend the public and free exercise of the Catholic religion, to bear faith and allegiance to King Charles, his heirs and successors, and to support them against anyone who should attempt anything against their persons or estates, or endeavour to suppress their prerogatives, or do any act contrary to regal government, as also the power and privileges of Parliament, the lawful rights and privileges of the subjects. This oath, it will be observed, asserts:—

1. Religious liberty.
2. Loyalty to the Crown.
3. The power and privileges of Parliament.
4. Rights and privileges of the subject.

Speaking of Lord Maguire’s statement, Carte, Book iii., § II., says, “It carries with it an intrinsic evidence sufficient to merit belief, and hath accordingly been universally allowed to be a just and faithful account of that affair.” We may therefore, I think, rest satisfied that this statement contains an authentic account of the objects that the conspirators had in view, and the method by which they proposed to accomplish them. So far as it relates to the matter in hand it is to this effect:—Roger O’More approached Lord Maguire, and after representing in general the many

grievances of the natives, especially the old Irish, who upon several plantations were turned out of their ancestors' estates, and the favourable opportunity which the insurrection of the Scots and the disturbances in England afforded the gentry of Ireland to free the nation from like grievances in future, to get good conditions for themselves, and to regain the whole, or at least good part of their ancestors' possessions, obtained from Maguire an oath of secrecy, and then disclosed to him the project for an insurrection, urging it as the only method of recovering his lordship's vast estates and the power of his ancestors, and as being absolutely necessary for maintaining the Catholic religion which undoubtedly, he said, the Parliament of England resolved to suppress. Here, then, we have plainly stated the objects the conspirators had in view, namely, the restoration of the lands which had been 'planted,' and the preservation of the Catholic religion, which was threatened with extinction. It will be observed that in the design thus disclosed there is no mention of erecting Ireland into an independent kingdom, the establishment of Catholic ascendancy, or the extermination of persons of the English race or of the Protestant faith. So far from the last-mentioned being one of the objects in view, "there was," says Maguire, "a fear of the Scots conceived, that they would presumably oppose themselves, and that would make the matter more difficult; to avoid which danger it was resolved not to meddle with them or anything belonging to them, and to demean ourselves toward them as if they were of us, which we thought would pacify them; and if the Scots would not accept that offer, we were in good hope to cause a stir in Scotland that might divert them from us."

Lord Maguire and the northern gentry generally consented to join in the plot on the strength of these representations, and at a meeting of the leaders, including Sir Phelim O'Neill, and Lord Maguire, held on the 5th of October, 1641, at Loughrosse, county Armagh, final arrangements were made for a general rising to take place on the 23rd, "all forts and arms should be seized, all the gentry made prisoners for their own better security against any adverse fortune or disappointment, and that none should be killed, especially of the gentry; but when of necessity they should be forced thereto by opposition, a rule to be observed likewise by those appointed for seizing the Castle of Dublin."

Furthermore, there is the “Remonstrance of the Gentry and Commonalty of Cavan of their Grievances, common with other parts of this Kingdom of Ireland,” addressed to the Lords Justices and Council in the early part of November, 1641, which was drawn up by Bishop Bedell. In this they complain of the oppression of governors who “respected more the advancement of their own private fortunes than the honour of his Majesty or the welfare of his subjects,” of finding themselves “of late threatened with far greater and more grievous vexations, either with captivity or utter expulsion from their native seats.” They further declare “that ... we harbour not the least thought of hostility towards His Majesty, or purpose any hurt to His Majesty’s subjects in their possessions, goods, or liberty; only we desire that your lordships will be pleased to make remonstrances to His Majesty for us of all our grievances and just fears, that they may be removed, and such a course settled, by the advice of the Parliament of Ireland whereby the liberty of our consciences may be secured unto us, and we may be eased of other burdens in civil government.” The Remonstrance then proceeds thus:—“As for the mischief and inconveniences that have already happened through the disorder of the common sort of people against the English inhabitants, or any other, we, with the nobility and gentlemen and such others of the several counties of this kingdom as are most ready and willing to use our and their best endeavours in causing restitution and satisfaction to be made, as in part we have already done.” The Remonstrance winds up by a request for a speedy answer so as to avoid “the inconvenience of the barbarousness and incivility of the commonalty, who have committed many outrages without order, consenting, or privity of ours.”

We have thus in black and white an account of the aims and objects of the leaders of the rebels, and of the means by which they hoped to succeed, and neither Catholic ascendancy, nor disloyalty, nor racial or religious antipathy, to be gratified by massacre, finds a place in their programme or plan of campaign. To do violence to any person on account of his religion is, indeed, a thing wholly averse to the Irish nature. No Protestant ever suffered persecution at the hands of the native Irish in Ireland, for his faith; and when Protestants fled from persecution, in the reign of Queen Mary, to Ireland, they were harboured and protected by the Irish Catholics. Nevertheless, the massacres of Protestants alleged to have taken place in this rebellion have ever since been cast in the teeth of the Irish Catholics,

and made the excuse for organized oppression and persecution. The butcheries of Cromwell were justified on the ground that they were a just punishment for such barbarities, though the people that he butchered were never shown to have had, and in many cases could not have had, hand, act, or part in them.

I have gone carefully through all the letters and documents penned by the Lords Justices and Council, and while general charges of murder and cruelty are made and repeated again and again, and though the writers can be specific in their statements as to all other matters, in two cases only do they give any details by which the accuracy of their statements can be tested; one is the case of the killing of Lord Caulfield, who was undoubtedly shot dead while a prisoner on the 1st of March, 1642; the other is the case of Huibarts, who held the island of Lambay, and may have been killed while resisting an attack.

If the Lords Justices and Council confined themselves to general charges of massacre and barbarity, the English pamphleteers were, in all conscience, sufficiently precise. It is needless to say that the news of the rebellion caused a great commotion in England. Leicester received the letter of the 25th of October on the night of Sunday the 1st of November. He at once caused the Council to be summoned, and they resolved to go to the House of Commons the next day as soon as it sat, which they did, notice being first given to the House "that the Lords of the Council had some matters of importance to impart to them"; whereupon chairs were set in the House for them to repose themselves, and the Sergeant sent to conduct them. Clarendon describes the scene. "As soon as they entered the House the Speaker desired them to sit down, and, then being covered, Littleton told the Speaker that the Lord Lieutenant of Ireland, having received letters from the Lords Justices and Council there, had communicated them to the Council, and since the House of Peers was not sitting, they had thought fit, for the importance of the letters, to impart them to that House," and so referred the business to the Lord Lieutenant, who, without any enlargement, only read the letters he had received, and so the Lords departed from the House. "There was," says Clarendon, "a deep silence in the House, and a kind of consternation; most men's heads having been intoxicated from their first meeting in Parliament with the instigators of plots and treasonable designs through the three kingdoms."

The King, who was then in Scotland, received letters from Ulster telling him of the outbreak there. These he sent on to the Parliament, with a letter saying that he was satisfied that it was no rash insurrection, but a formed rebellion, which must be prosecuted with a sharp war, the conducting and prosecuting of which he wholly committed to their care and wisdom, and depended upon them for carrying it on. This exactly fitted in with their wishes, as up to the time they got this letter they had no authority to levy troops or make war. They appointed a committee of both Houses for the consideration of the affairs of Ireland, and providing for the supply of men, arms and money for the suppressing of that rebellion. The Lord Lieutenant was a member of the Committee, which sat every morning, and he communicated to them all the letters he received, to be consulted upon and to be then reported to the two Houses, which thus acquired a great accession of power and patronage.

Soon after the news of the rebellion was spread in England, the Press began to pour forth a stream of pamphlets. Some of these were devoted to advocating the plan adopted by the English Parliament for raising the necessary funds for prosecuting the campaign against the rebels, by giving grants of land that should be forfeited to those who advanced money for the purpose. In 1642 they decreed the confiscation of 2½ millions of acres in Ireland, and undertook to allot them to those who made advances, on the following scale: 2,000 acres in Leinster to anyone who advanced £600; and the same quantity in Munster, Connaught, and Ulster respectively, to those who advanced £450, £300, and £200 respectively. Others of those pamphlets were devoted to thrilling descriptions of massacres and atrocities said to have been committed by the Irish rebels. These were, Ormond says, “received as oracles,” and the extirpation of the Irish “preached as gospel.” As I said before, they were not open to the imputation of being wanting in details. They were most circumstantial. They describe the doings of such well-known rebel leaders as the Earl of Clare, whose portrait is given in one of the pamphlets, the great Lord MacDavo, Lord Matquess, Don Luce, Limbrey, Cargena and others, in such well-known counties, Monno otherwise Conno, and Warthedeflowr, and in such well-known towns as Rockcall, six miles from Dublin, Lognall, Toyhull, Kilwood, Kilmouth, Tormoy, and Cormack. The collection of these pamphlets made by Thorpe, and now in the Library of the Royal Irish Academy, as well as those in the British Museum, enable one to judge of the way in which the ear of

England was poisoned for the purpose of exasperation against the Irish Catholics.

Two months after the outbreak the Government issued a commission to seven Protestant ministers to take evidence upon oath as to the amount of the loss sustained by the British and Protestants that had been “separated from their habitations,” or “deprived of their goods,” the names of the robbers, and what traitorous speeches were uttered by the robbers or others. It is to be observed that in this Commission there is no mention of murder or violence. By a supplemental commission of the 18th of January, 1642, it was extended so as to include an inquiry as to “what violence was done by the robbers, and how often and what number have been murdered or perished afterwards on the way to Dublin or elsewhere.” This addition was an afterthought, and the fact is very significant, as pointed out by Prendergast, *Cromwellian Settlement*, p. 60. A mass of such depositions was taken, and are now in the Library of Trinity College, Dublin. I have not perused them, but every historian who has done so, and has formed an impartial judgment upon them, has pronounced them to be practically worthless as evidence against the rebels. In the first place they were *ex parte* statements, made in the absence of those whose conduct they impugned. Secondly, they were very largely hearsay, and not the evidence of eye witnesses. Thirdly, many of them are not made on oath. Fourthly, they were to a great extent made by persons intending to make claims for restitution and compensation, and may therefore be expected to be exaggerated, if not unfounded. Fifthly, they bear internal evidence of untruth, many of them deposing to apparitions and other supernatural phenomena. Sixthly, they in many instances gave evidence of the deaths of people who long survived the rebellion. Seventhly, many of the deponents were illiterate. Lastly, they afford no safe basis for a calculation of the numbers stated to have been killed, for the same alleged outrage is obviously referred to in different depositions.

The calculations made by English writers of the numbers slaughtered by the Irish are curiously conflicting. Milton, in his observations on the “Articles of Peace between the Earl of Ormond and the Irish,” set down the number “assassinated and cut to pieces by those Irish barbarians” at 200,000, which was about the total Protestant population of Ireland, inclusive of soldiers in garrison and officials in Dublin. The Lords Justices

and Council in their despatch to the King, dated March, 1642-3, in opposition to any accommodation with the rebels, upon an alleged acknowledgment “by their priests appointed to collect the numbers,” set the number down at 154,000 “before the end of March last, ... besides many thousand others since that time.” Temple, whose object also was to obstruct the peace, says that in the first two months of the rebellion 150,000 had been massacred, and that “there were 300,000 Protestants murdered in cold blood or destroyed in some other way, or expelled from their habitations from the 23rd of October, 1641, to the cessation made on the 16th of September, 1643.” Petty fixes the number at 37,000, Walsh at 20,000. The Rev. Dr. Warner, a Fellow of Trinity College, Dublin, who describes many of the depositions as “incredible,” “ridiculous,” and “contradictory,” carefully examined the thirty-two closely written volumes which are in the library of Trinity College, with the result that he concluded that “the number of people killed upon *positive* evidence collected in two years after the rebellion broke out, adding them all together, amounts to only 2,109, on *the reports of other Protestants*, 1,619 more, and on *the reports of some of the rebels* a further number of 300, the whole making 4,028. Besides these numbers there is in the same collection evidence *on the report of others* of 8,000 killed by ill-usage.” These numbers he considered were the utmost to which “the cruelties of the Irish out of war” could be extended, though, having regard to the nature of several of the depositions, he could not in his conscience charge them with such a number of murders. In corroboration of his figures he quotes a letter which he copied from the Council books in Dublin written on the 5th of May, 1652, from the Parliament Commissioners in Ireland to the English Parliament, in which the Commissioners tell them that it appears “besides 848 families there were killed, hanged, burned, and drowned 6,062.”

That the rebellion at its first outbreak was not accompanied by any massacre, or even by considerable effusion of blood, appears from documents now extant. Lord Chichester wrote to the King from Belfast on October 24th, 1641, “The Irish in the northern parts of your kingdom of Ireland two nights last past did rise with force and have taken Charlemont, Dungannon, Tonragee, and Newry, with your Majesty’s stores there ... and *have slain only one man*.” The letter of the Lords Justices to Leicester of October 25th, does not make mention of a single case of violence to the person. The Remonstrance of the Gentry and Commonalty of Cavan already

referred to, issued in the early part of November, 1641, speaks not of massacres or murders, which the Remonstrants would undoubtedly have deemed worthy of condign punishment, but of acts which would be proper subjects of restitution and satisfaction. The first instance of homicide committed by the rebels given by the Lords Justices in their correspondence is in a letter to Leicester of December 3rd, 1641, in which they announce the death of Mr. Huibarts. It is not until the 14th of December that any massacre is mentioned, when they state, in a letter of that date to Leicester, that the garrison of Longford had been massacred.

Your attention has already been called to the pregnant fact that in the first commission of inquiry issued by the Lords Justices and Council, which is dated December 23rd, 1641, no reference is made to murder or personal violence.

It thus becomes abundantly clear that during the first two months of the rebellion, not only was there no general massacre by the rebels, but there was little bloodshed. Indeed the Lords Justices, in their proclamation of February 8th, 1642, assert that the design of a general massacre had failed.

A period of several months elapsed between the end of December, 1641, and the organisation of the rebels under the Confederates. During this period, no doubt, it was that the serious cruelties were committed by the insurgents, for the proceedings of the Confederates were characterised by humanity, and the Supreme Council would not have tolerated murder under any circumstances, or under any provocation. Among the propositions they made to the King in March, 1644, was the following:—"Forasmuch as your Majesty's Catholic subjects have been taxed with many inhuman cruelties which they never committed, your Majesty's said supplicants, therefore, for their vindication, and to manifest to all the world to have such heinous offences punished, and the offenders brought to justice, do desire that in the next Parliament all inhuman murders, breaches of quarter, and inhuman cruelties committed on either side may be questioned in the said Parliament (if your Majesty so think fit), and such as shall appear to be guilty exempted out of the Act of Oblivion and punished according to their deserts." This principle was embodied in the fifteenth article of the first treaty between the King and the Confederates, signed on the 28th of March, 1646, and in the last treaty signed on the 17th of January, 1648-9.

If we wanted further proof of the scrupulous humanity of the Confederates, the following facts would supply it. The delegates of the Confederates in 1644, in an official communication made to the Marquis of Ormond as representative of the King, declared that one of the results that they most earnestly desired in connection with the removal of their grievances was that when the condition of Catholics and Protestants had been equalised they might all “be united more than ever before,” and neither party “have occasion to envy or oppress the other.” These aspirations were met in the following month by an ordinance made by the Parliament at Westminster, by which the Lords and Commons declared “that no quarter shall be given hereafter to any Irishman or any Papist whatsoever born in Ireland, who shall be taken in hostility against the English Parliament, either upon the sea or within this kingdom or dominion of Wales,” and they followed this barbarous declaration by a decree for carrying it out. In pursuance of this enactment many Irish sailors were brutally murdered, being tied back to back and thrown overboard, and in one instance seventeen Irish soldiers, fighting in the King’s army, when made prisoners, were hanged. Prince Rupert promptly hanged an equal number of his prisoners, at which the English Parliament was greatly shocked, and remonstrated with the Prince, threatening to retaliate, and justifying the butchery of the Irish. Rupert does not appear to have taken any notice of this amazing document, and probably would have hanged or shot a prisoner of English or Scottish blood for every one of Irish blood or the Catholic religion that the Parliamentarians had murdered. But the Confederates were too humane to countenance such atrocities; and they refrained from defiling the records of their assembly by any declaration or ordinance such as that which the pious champions of civil and religious liberty in England, to their eternal infamy, had placed upon their rolls.

What murders were committed at sea under this ordinance never will be known. But Bulstrode Whitelocke, a member of the Long Parliament, under date of May, 1644, records the following significant incident: “At the taking of Carmarthen by Captain Swanley, many Irish rebels were thrown into the sea.” Under date June, 1644, he records that “Captain Swanley was called into the House of Commons and had thanks from them for his good services, and a chain of gold two hundred pounds value.”

It is not to be denied, however, that in the earlier stages of the rebellion murders, and possibly outrages, were committed by the insurgents. It was, of course, necessary that if resistance was offered to the seizure of strongholds or arms, it should be overpowered by force, even to the extent of taking life; and what are described as massacres were probably, in many instances, homicides committed unavoidably in cases of such resistance. But apart from such occurrences, no doubt, lives were taken by the rebels. According to a declaration made under hand and seal by the Rev. John Ker, Dean of Ardagh, given by Nalson, vol. ii., p. 528, Phelim O'Neill, in the course of his trial, at which the Dean was present, said that there were several outrages committed by officers and soldiers, his aiders and abettors in the management of the war, contrary to his intention, which now pressed his conscience very much, and the Dean adds, that he heard several murders and robberies proved at the trial to have been committed by him, and that he had nothing to plead in his defence. This is probably true. It was hardly in human nature, even Irish human nature, to refrain from taking a signal and sanguinary vengeance on those by whom, or for whom, they were oppressed and plundered. Besides, there can, I think, be little doubt but that the massacres began with the butchery, possibly in the beginning of November, 1641, but not later than the beginning of January, 1642, of innocent persons, men, women and children, inhabitants of Island Magee, by the garrison of Carrickfergus; and the murders committed by the rebels in Ulster may not unfairly be attributed in a great measure to reprisals for this horrible carnage. Whatever massacres there were must have been practically confined to Ulster, for there were but few English or Protestants elsewhere, and as the Irish carefully avoided molesting the Scots in Ulster, who were by far the majority of the Ulster population, the numbers slain cannot have been large. There is no doubt, too, but that O'More was strongly opposed to all unnecessary violence, and when we remember that the generals of the Federation, which commenced its session at Kilkenny in October, 1642, were directed by their commission to protect the husbandmen, victuallers, and all other subjects of his Majesty from the extortions, violences, and abuses of the soldiers, we may be pretty sure that little or no blood was unnecessarily shed after the eminent men who led the troops of the Confederation took up their commands.

It is needless to refer to the measures taken by the rebel leaders to check the outburst of pillage which marked the struggle before the Confederation

was formed, and to protect the Protestants and the English from molestation. The well-known instance of Bishop Bedell, whose house was the asylum of numerous refugees, and who was himself treated with marked respect while he lived, and buried with all possible honour when he died, is only one example out of many of the conspicuous humanity of the men who were responsible for the insurrection.

But let us look at the reverse of the picture. That the Irish “Papist” was regarded by the English as a creature outside the pale of humanity is evidenced by the ordinance excluding him from quarter already quoted. That the Scotch concurred in this estimate appears from the fact that they adopted this ordinance. That he was to be exterminated was, as Ormond wrote to Clanricarde, “preached as gospel.” That such a gospel was not to be a dead letter appears from documents under the hands of the Lords Justices and Council. “We have hitherto,” they write on the 7th of June, 1642, to the Lords Commissioners for Irish Affairs, “where we came against the rebels, their adherents, aiders, and abettors, proceeded with fire and sword, the soldiers sometimes not sparing the women, and sometimes not children, many women being manifestly very deep in the guilt of this rebellion, and as we are informed, very forward to stir up their husbands, friends and kindred to side therein, and exciting them to cruelty against the English, acting therein and in their spoils even with rage and fury with their own hands.” We have also the directions given by the Lords Justices and Council to Colonel Crawford for his expedition to County Wicklow, and to Colonel Gibson for his expedition to County Kildare. These were to go to these counties and remain there as long as they could find provision for their men, and in their journey to kill, slay, and destroy all rebels; to destroy by fire and sword all their goods, houses, and corn. It is easy to understand how these orders would be interpreted. They meant the extermination of the people by fire and sword, or by famine; for, so long as there was food for the soldiery, the soldiery were to remain; when they left there would be food for no one.

In their despatch to the King in opposition to an accommodation with the rebels, already quoted, the Lords Justices and Council admit the policy of extermination, but only *partial* extermination, be it observed. “And howsoever it be true,” they write on the 16th of March, 1642-3, “that all the peril and damage we undergo, and all the arms we desired to have used and

borne here, is but (by God's blessing) to bring on a safe and lasting peace, yet we can no way apprehend that it can be done *till the sword have abated these rebels in numbers* and power, yet not to the utter extirpation of the native which is far from our thoughts (though some to render us the more odious report so of us)."

A characteristic example of the methods of the Lords Justices and their troops is given in their letter of June 7th, 1642, to the Lord Lieutenant, describing the capture of Baldungan Castle, situated twelve miles from Dublin. Colonel Crawford took it by storm, and found therein to the number of 120 rebels, whom immediately his men put to the sword, saving a popish priest, whom Colonel Crawford brought to Dublin, and whom the Provost Marshal hanged. "This sharpness," they write, "held with them when they maintain castles against us, will doubtless discourage them from presuming to keep castles against us hereafter, when they still find just vengeance thus taken on them for their boldness therein. There was then found in that castle an English gentleman whom the rebels had taken prisoner a few days before, and whom our men now released."

This despatch would do credit to Cromwell. There is a touch of unconscious irony in the contrast between the treatment of the one English gentleman captured by the rebels, and the 120 rebels captured by the English.

The letters reek with such incidents. Ormond takes a priest at Ballymacur, Westmeath, "who was then immediately hanged." Monck, on his way to join Ormond, captures a castle at Knock, near Trim, "killed four score men which had maintained it against him, and took some prisoners, who were instantly hanged." Monck, again, took at the castles of Rathcoffey and Clongowes Wood, in Kildare, "three score and ten prisoners, and amongst the rest some priests, whom with the rest he brought hither to be proceeded with as we should think fit, which was all the quarter he gave them, and we have appointed them to be executed by martial law." "We lately sent abroad two parties of the army, one towards Catherlagh, thirty-two miles from this city, and the other towards Arklow, thirty-six miles from hence, with direction to burn and spoil all the way, as they went and came, which they did accordingly." Lord Inchiquin in Cork took fifty prisoners, "divers of them men of quality, and most of them officers in the army of the rebels, which fifty prisoners Lord Inchiquin caused to be

hanged the next morning, saving only Colonel Butler, son of the traitor Lord Viscount Ikerrin, and one Purgett, Commissary General of the rebel army, which two still remain prisoners.” Lord Lisle’s performances are thus described: “Lord Lisle hath now caused that house”—Lord Fingall’s house near Virginia—“and all the villages and towns adjoining to be burnt, as also all the corn, hay, and turf in all that country round about them. He still proceeds in burning, wasting, spoiling, and destroying all the country about him, and all the rebels’ corn, hay and turf, and in depriving the rebels of all the cattle he can ... so as by that time he returns thence he will, by God’s assistance, have all that country in such a condition as that the rebels shall have neither house to lodge, nor food, nor fire, which course also we have begun, and God willing, shall hold in other places, as we shall be enabled by supply of provisions, and we have hoped (by the blessing of God upon our endeavours) if we be strengthened from thence, as we expect, suddenly to drive the rebels into such extremities as many thousands of them and their foreign aids (if they should arrive) must perish and starve through hunger and cold.”

This, of course, was a sentence of death on every man, woman, and child in the districts thus condemned to desolation.

In their letter to the Lord Lieutenant, of December 28th, 1641, the Lords Justices make two damning admissions. First they say that Sir Charles Coote, on his return from raising the siege of the Castle of Wicklow, had a skirmish with a numerous body of the rebels, slew some of them, and in that journey slew and caused to be hanged others of them, and amongst others one woman that had been active in robbing and spoiling the English, and had about her at her apprehension some of the clothes of the English she had robbed.

Now, this is merely an ingenious device to endeavour to mix up punishment inflicted on rebels in arms, with what is evidently a massacre of unarmed peasantry perpetrated during “that journey,” in which women, and probably children, were butchered at the instance of the notorious Sir Charles Coote.

The second admission is that four people were murdered at Santry, which they make light of, observing that therein “only four persons were slain, whereas they might have slain many more if they had intended a massacre.”

The heads of the victims of this butchery were brought in triumph to Dublin, on poles, and there exhibited. One of them turned out to be a Protestant. This incident had momentous consequences, as we shall see.

O'Connell was quite justified in saying, as he did to O'Neill Daunt, when speaking of the rebellion of 1641: "History has been so completely falsified, that not only is the truth unknown, but the foulest falsehoods have passed current as gospel truths; the characters of the two contending parties have been quite reversed."

But I must hasten to sketch the leading events of the insurrection.

I have already referred to the murders at Santry. The neighbouring gentry were alarmed at this occurrence. It seemed a precursor of what they might expect themselves, and they held a meeting and assembled their followers. The gentry of the Pale had been placed in a very difficult position. Being Catholics, they were distrusted by the Lords Justices. Being English, they distrusted the rebels. The Lords Justices ordered all persons not ordinarily resident in Dublin to return to their homes. The gentry of the Pale requested to be furnished with arms sufficient to enable them to defend themselves when they were thus surrounded by the rebels. This was at first granted to a limited extent, but when troops were promised from England, the arms supplied were largely withdrawn. The gentry were thus left defenceless. An attack was made by the Government troops on the house at Clontarf of one of them, named King, who owned the village of Clontarf, on the pretext that the fishermen of the village had plundered a bark that lay off the coast there, and that some of the booty was found in his house. The consequence of all this was that the gentry came to the conclusion that their only course was to join the rebels, who thus obtained a considerable accession of strength, both in numbers and weight, though the Lords Justices made light of the matter in their letters. This occurred in December, 1641.

In March, 1642, a Synod of the Ulster clergy met, and it was there suggested that an assembly of clergy and laity should be held to organize the national movement. This proposal was adopted, and the General Assembly of the Confederate Catholics was held at Kilkenny in the following October. They at once proceeded to organize the country, appointing a Supreme Council, and provincial Councils, and commanders of the armies in the four provinces. They made provisions for the

administration of justice in the districts under their control, the levy of contributions, and the machinery of government generally. Their seal bore on it the legend: "Pro deo, pro rege et patria, unanimes," their coins, "floreat rex." The oath to be taken by the Confederates was similar in terms to that already mentioned.

The Confederates addressed a petition to the King, through Ormond, praying his Majesty, "with heads lower than our knees," "to assign a place where with safety we may express our grievances." In this they complain of the condition whereunto the misrepresentation of his ministers in Ireland, united with the malignant party in England, had reduced them, and of the resolution taken by some malevolent persons in England, "to supplant their nation and religion," and they disclaim any intention of disturbing his Majesty's Government, or invading any of his prerogatives, or oppressing any of his British subjects, of what religion soever, that did not labour to suppress them. They refer to the petition which they had addressed to the Lords Justices, "but therein," they say, "we found, instead of a salve to our wounds, oil poured into the fire of our discontent, which occasioned that intemperance in the commonalty that they acted some unwarrantable cruelties upon the puritans, or others suspected of puritanism, which we really detest, have punished in part, and desire to punish with fulness of severity, in all the actors of them, when time shall enable us to it, though the measure offered to the Catholic natives here, in the inhuman murdering of old, decrepit, people in their beds, women in the straw, and children eight days old, burning of houses, and robbing of all kinds of persons without distinction of friend from foe, and digging up of graves, and then burning the dead bodies of our ancestors, in time of cessation, and in breach of public faith, have not deserved that justice from us."

The King refused to receive delegates from the Confederates, but granted a commission to Ormond, Clanrickard, and others to hear what the delegates had to say. "Albeit His Majesty has not thought fit to admit any of them to his presence who have been ... actors or abettors in so odious a rebellion," as the Commission expressed it. This passage went near to wrecking the project, for in the safe-conduct sent to the delegates these words were used, and the Confederates were highly incensed at being accused of rebellion. However, they ultimately consented to attend at Drogheda, and the meeting took place on the 17th of March, 1643.

The first result of these negotiations was a truce or “cessation” as it was called, which was originally for a short period, but afterwards renewed from time to time.

Ostensibly Ormond was the King’s mouth-piece in this affair, and he was authorized to make certain concessions, in return for which the Confederates were to furnish the King with 10,000 men for service against the English rebels. But Charles, who never could act straight, granted a secret commission to Lord Glamorgan, not under the Great Seal, empowering him to make further concessions. He accordingly concluded secret articles with the Confederates on August 25th, 1645. But the secret leaked out. Glamorgan was brought before the Castle Chamber on a charge of treason, on the 26th of December, 1645, and committed. He was examined on the following day, and released on the 30th from *close* custody, but still kept under a certain restraint. The fatal battle of Naseby had been fought on the 18th of June previous. Charles was in dire straits, and, as might be expected, he repudiated Glamorgan’s authority, in a statement given on the 24th of January, 1646, at Oxford, which was to be communicated by the Speaker of the House of Lords to both Houses. In it he says that Glamorgan had only a commission to raise forces, and concluding by asking for a safe-conduct, in blank, to be sent “for a messenger to be immediately dispatched into Ireland to prevent any accident that may happen to hinder his Majesty’s resolution of leaving the managing of the business of Ireland wholly to the two Houses, and to make no peace there but with their consent, which, in case it shall please God to bless his endeavour in the Treaty with success, his Majesty hereby engages himself to do.”

The “treaty” here referred to is a treaty with his rebellious English subjects. If such were made, the King was prepared to hand over his loyal Irish subjects to the tender mercies of the English puritans.

But the negotiations for the treaty with the Confederates went on meantime, and the treaty itself was signed on the 28th of March, 1646. It consisted of thirty articles, and dealt substantially with all the grievances complained of. Collateral with it there was an agreement that the Confederates should furnish the King with 10,000 men, of which 6,000 were to sail on or before April 1st, and 4,000 on or before May 1st. The treaty was to be conditional on the fulfilment of this agreement, and it was

deposited in duplicate in the hands of Lord Clanricarde to be held by him as what lawyers call an “escrow,” until the agreement had been fulfilled. It was found, however, that the position of the King’s affairs was such that it was not practicable to carry it out, and that it would be more for his Majesty’s interest that the men should remain in Ireland. The condition was therefore waived.

Everything now appeared to be arranged, when one of these incidents occurred to mar the prospects of Irish nationality, of which the history of Ireland is so full.

The Confederates had been obliged to rely very largely on support from abroad, and among those who contributed most liberally was the Pope. Unfortunately, he not only contributed material support and moral support, but he sent a Nuncio with instructions placing the full establishment of the Catholic religion in Ireland above and before reforms in the political government.

The presence of the Pope’s representative imparted great strength to the Confederates; it was also productive of unexpected consequences. The Nuncio, Rinuccini, was not satisfied with the treaty. He did not think it conceded enough. In February, 1646, in anticipation of the conclusion of peace, he had a protest against the treaty drawn up and signed by several of the prelates, based on the principle that those who entered into it, or supported or favoured it, violated their oath. The peace was proclaimed by Ormond in Dublin on the 30th of July, 1646, and the Confederates ordered its proclamation on the 3rd August. A meeting of the congregation of the clergy was to be held at Waterford on the 12th of August. An attempt made to proclaim the peace there on the 9th failed, as the Mayor and Corporation refused to allow the function to take place. It was then proclaimed at Kilkenny, and the herald and pursuivant proceeded to Limerick, but the attempt at a proclamation provoked a riot, in which they were severely mauled. Finally, the bishops and clergy denounced the peace at Waterford on the 12th, and further efforts to proclaim it were abandoned. On the 1st of September, Rinuccini directed the clergy to publish to their flocks at High Mass, and otherwise, that they were not to adhere to the treaty on pain of excommunication.

Efforts were made to compose the dispute. The Confederation answered the Nuncio and the ecclesiastics; the latter replied, and stated that they would agree to nothing until a new General Assembly was called; and they formed a new government, called "The Council and Congregation," which was to hold office until the meeting of a General Assembly, to be held on the 11th of January, 1646-7.

The Assembly was held accordingly, and debated the matter at great length, and with great heat. Bellings, who had been the Secretary from the foundation of the Confederation, contrasts the proceedings with the quiet and dignity with which those of the previous assemblies had been conducted. A bishop whom he mentions, could always, he says, get a shout of applause by merely waiving his hat. After a powerful speech by Colonel Walter Bagnall in favour of the treaty, which produced a great impression, the treaty was rejected on the 2nd of February, by a majority of votes. A new oath was then framed containing further clauses for the advantage of the Catholic religion.

The clergy thus won a disastrous triumph. Up to this the arms of the Confederates had been successful. In the previous June, Owen Roe O'Neill had won his famous victory over Monroe at Benburb. But now all went wrong. The Leinster army was defeated at Dungan Hill. The Munster army, under Lord Taaffe, was defeated at Kanturk on the 13th of November, 1647, and these reverses were followed in rapid succession by other defeats. Everywhere there was confusion and disunion. Owen Roe O'Neill sided with the Nuncio. The General and officers of the Leinster army at first took the other side, and only abandoned it when the General found that his men were not "excommunication proof." The bishops were divided, and so were the convents and monasteries. No doubt, the laity, especially the common people, were bewildered. The Council revoked O'Neill's patent for the command in Ulster. He threw the letters directed to him and to his officers into the fire, and he and his officers published a sharp declaration against the Council's proceedings, to which they replied with equal asperity. The Assembly met in September, 1648, and accused the Nuncio. He embarked from Galway on the 23rd of February, 1649, and, needless to say, never returned.

Meantime, efforts had been made to conclude another peace. Ormond, after he had been obliged to surrender Dublin to the English Parliament, had

left Ireland; but Clanricarde, who had, in conjunction with Colonel Jones, won the battle of Kanturk, began to distrust the Parliamentarians, and made overtures to the Confederates. Ormond returned to Ireland in October, 1648, and concluded a peace with the Confederates on the 17th of January, 1649.

But it was too late. Events had marched with fatal rapidity in England. On the 5th of May, 1646, the King had surrendered himself to the Scots, to be by them handed over to the English Parliament. His head fell on the scaffold on the 30th of January, 1649. Cromwell landed in Ireland on the 15th of August, to find that Ormond had been defeated by Colonel Jones in the battle of Rathmines. We know what followed. Those who have listened to, or have read, the brilliant lecture on Cromwell, delivered before this Society, by Sir William Butler, need not be reminded of the tragic occurrences of that dark time. But in any case they are beyond the scope of this paper. The “Rebellion” of 1641 ended with the treaty of 1649.

THE CONFEDERATION OF KILKENNY

BY JAMES DONELAN, M.CH., M.B.,

Chevalier of the Crown of Italy

The Confederation of Kilkenny

THE period we are about to deal with is one of the most important, perhaps the most important of modern Irish history, as the events of that time influenced the destinies of Ireland more profoundly than anything that went before, and by their effects, continue to profoundly influence them even in our own times. It is also the most confused, not to say confusing, period of the history of Ireland or any other country that a student can attempt to deal with. Carlyle, rarely just to Ireland, in this instance describes it with both force and faithfulness, when due allowance is made for his prejudices. "The history of it," he says, "does not form itself into a picture, but remains only as a huge blot, an indiscriminate blackness, which the human memory cannot willingly charge itself with! There are Parties on the back of Parties, at war with the world and with each other. There are Catholics of the Pale, demanding freedom of religion under my Lord this and my Lord that. There are Old-Irish Catholics under Pope's Nuncios under Abbas O'Teague of the excommunications and Owen Roe O'Neill demanding, not religious freedom only, but what we now call 'Repeal of the Union,' and unable to agree with the Catholics of the English Pale. Then there are Ormond Royalists of the Episcopalian and mixed creeds, strong for King without Covenant; Ulster and other Presbyterians, strong for King and Covenant; lastly, Michael Jones, and the Commonwealth of England, who want neither King nor Covenant. All these plunging and tumbling for the last eight years, have made of Ireland and its affairs, the black unutterable blot we speak of." The object of this paper is to remove some of the blackness, and attempt to set forth clearly, if possible within the limits allowed, the relations and interactions of these various parties.

A brief reference to the rebellion of 1641 in Ulster gives us the most convenient starting-point. The dispossessed Clansmen, availing of the

troubles between Charles I and the English Parliament, suddenly seized on their ancestral lands and drove out the settlers. Much has been written of the cruelties of both sides in a keen struggle for existence in a semi-barbarous age. The insurgents have been charged with a massacre of Protestants, the number of slain, according to some accounts, being greater than that of the whole English population of the island, as if the outbreak were one undertaken from religious motives. Religion had nothing to do with it. It was the eternal Land Question in its original and most crude form—nothing more. It was unfortunate as furnishing a valuable pretext that was readily availed of for a general confiscation by the Puritan Parliament that the settlers were Scotch and English Protestants, but it cannot be doubted that, had they been Spaniards or Italians with an Archbishop at their head, they would have fared in precisely the same manner. From the point of view of the great mass of the Irish proprietors both Old-Irish and Anglo-Irish, it was an enormous tactical blunder.

A detail of the rebellion which had serious consequences, was the use of a forged Commission from Charles I, whereby some chiefs and others of the old proprietors who were hanging back, were induced to come out. Charles was in Edinburgh collecting evidence against the Invited at the time of the outbreak, but was unwilling to leave until he had finished. Seeing, however, the use that would be made of any hesitation on his part in putting down a rebellion alleged to have been organized under his Commission, he ordered the Parliament to arrange for sending an Army into Ireland. That Assembly strung to the highest pitch of fanatical fury by the grossly exaggerated accounts of the Lords Justices and others interested in future forfeitures in February, 1642, passed an Act whereby 2,500,000 acres of Irish land in parts not concerned in the rebellion, were offered as security to whomsoever should subscribe towards the raising of the army.

On the 8th April, 1642, the King offered to go to Ireland and take command of the English garrison against the rebels, but the Parliament, believing he intended only to bring those troops into England, told him if he went, it would be looked on as an act of abdication. It can easily be seen that the rebellion was a great advantage to the Parliament, since the King could not withdraw his troops from Ireland without giving support to the story circulated by the Parliament, “that he and his Popish Queen had authorized the rising.” But, apart from the loss of popularity suffered by the

King, the most important gain to the Parliament was the power to raise money and troops under the Act of Confiscation. The subscriptions obtained from the adventurers, or, as we should now call them, shareholders, were not to be paid into the Royal Exchequer, but to a Committee composed of Members of the House of Commons and Adventurers, and these were to appoint the Commander and Officers, the King being allowed only to sign the Commissions. The lands of the Irish were not to be set out to the adventurers until Parliament should declare the war at an end. The King was also deprived of the power to pardon the insurgents, for the effect of pardons would be to deprive the adventurers of their security. In this way, the mass of the Irish proprietors would be forced into rebellion, while for that reason the King would be prevented from entering into any terms with them, whereby he might call the English garrison in Ireland to his assistance in the coming struggle with the Parliament, or receive help from the insurgents.

In considering the attitude of the Parliament and the English people in all these matters, it must not be forgotten that they were then about to be forced into a life and death struggle against an autocracy. They knew that Strafford had, but a short time before, declared the King's Government to be as autocratic in Ireland as that of any absolute monarch in Europe, and that both he and the King had lively hopes of bringing about the end of parliamentary government in England. They had an acute dread that the King's power in Ireland might be greater than it really was, and that it would be used to crush their liberties. For this reason, if for no other, they were more determined than ever to extinguish the Irish as a nation. We know now that Charles was an admirer and correspondent of that Alexis Romanoff, who, after swearing to uphold them, had destroyed such germs of representative Government as then existed in Russia, and which the Russian people are still vainly striving to recover. After bearing with the King's tyranny, vacillation, and faithlessness through many years, the time was now rapidly approaching when the conflict between the principles of autocracy and those of popular government would have to be decided by the sword.

Of the religious intolerance shown by all parties in these dissensions, it can only be said that men's minds were yet quite unprepared to accept, or even understand, anything like toleration, and when opposing creeds met in

open hostilities, both sides were often disgraced by cruelties that showed they were little influenced by such Christian principles as they were supposed to hold in common.

The Executive Government in Dublin Castle was, during most of the period with which we are concerned, in the hands of the Lords Justices in the absence of Lord Leicester, who had been appointed Lord Lieutenant, but who, already inclining to the popular side in England, never took up his office. The Lords Justices were, nominally, Sir William Parsons and Sir John Borlase. Parsons, from a needy and vulgar adventurer, by the grasping chicanery then, and long after necessary to the establishment of a great position in Ireland, had wormed his way into his present eminence. Sir John Borlase, the Commander of the Ordnance, was an old soldier, well stricken in years, and practically a nonentity by the side of his powerful colleague. The English garrison in Ireland, already largely imbued with Puritan principles, was under the command of the Earl—afterwards Marquis—of Ormond.

The character of Ormond has been viewed from so many standpoints, that it is difficult to decide impartially between the extremely different views given of it. He was originally a Catholic, but taken to England by the Court of Wards in his youth, had been brought up a Protestant. By birth, the head of one of the greatest Catholic Anglo-Irish families of the Pale, amongst whom he had many relatives and connections, he naturally sympathised with them in their troubles, but he also shared with them the firm belief that they were not Irish, but merely English colonists in Ireland. A fervent Royalist, devoted to the King and his interests, as long as there was any chance of helping him, he was distrusted by the Lords Justices, especially Parsons, “the guiding spirit of confiscation and destruction,” to such an extent, that even on such military expeditions as he undertook against the insurgents by their orders, he was constantly thwarted, interfered with, and even recalled when he had gained some success, lest, by his means, the King’s party should grow too strong for that of the Parliament. He was in a most difficult position, and it always seemed to me an error to denounce Ormond as a traitor to the Irish cause. He entered into no engagements to serve it, though he was disposed, as far as possible, to favour his kinsmen and dependents of the Pale, but he was, first of all, an English colonist, a soldier in the King’s service, with no pretensions to any

feeling of Irish nationality, which, as a matter of fact, far from having displaced the narrower ties of clanship, was even then, only approaching the throes of birth.

For some years, the Catholic Anglo-Irish proprietors, especially of the Pale, had been endeavouring, but in vain, to come to some accommodation with the King, heedless of what might befall their hereditary enemies, the Old-Irish. They had addressed petitions and remonstrances to Charles, but these, for the most part, had been suppressed by the Lords Justices. It would be impossible, in this rapid sketch to trace the course of these earlier negotiations. The passing of the Acts of Confiscation were a rude awakening for the Anglo-Irish. They were at once made to feel that for all their claims to English descent, they were looked on by those in power in England not as Englishmen, not even as “merely Englishmen with bad accents,” but purely and simply as Irish Papists, fomenters and favourers of rebellion and murder, whom it would be meritorious to exterminate.

They were accordingly forced, though, as they truthfully declared, most reluctantly, to ally themselves with the Old-Irish. This they did in a half-hearted way, being, most of them, rather inclined to temporise with the King through Ormond than to boldly adopt the policy of their allies, and by securing with their help the command of the country, be in a position to dictate terms. At a Synod of the Clergy of the Province of Armagh, in March, 1642, it was decided that an Assembly, representative of the whole of Ireland, should be convened. In May, a meeting of the clergy and principal laity took place at Kilkenny, and a Supreme Council of nine members was chosen as a Provisional Government to arrange the convention of the General Assembly. When the Lords Justices heard of the establishment of the Catholic Confederacy, they and the Irish House of Commons took steps to prohibit all intercourse with Catholics, and the House resolved that no one refusing the Oaths of Supremacy should be allowed to sit. The General Assembly of the Confederation held its first meeting on October 24, and the Rev. Father Meehan, in his *History of the Confederation of Kilkenny*, draws a glowing picture of the scene in St. Canice's, where, for the first time probably since the battle of Clontarf, the representatives of the Irish nation assembled together for a common national object. Every county and every borough had chosen its representatives, and the body thus deputed was practically an Irish

Parliament, though out of respect for the King, not having been summoned by his writs, it disclaimed that title. Its first business was to elect a new Supreme Council of twenty-five members. There were also Provincial and County Councils. The cumbrous procedure adopted, whereby every member of the Supreme Council had to be consulted in all important matters, did much to hamper its action, and was productive of delays in a time when rapid decision was most needful, and this contributed in some measure to its ultimate failure to effect the objects for which it was called into being.

Amongst the most important of the first declarations of the Assembly, was their resolution to maintain the rights and immunities of the Catholic Church agreeably to the Great Charter. They commanded all persons to bear faith and allegiance to the King, and to maintain his just prerogatives, while they denied and renounced the Irish Government administered in Dublin Castle by “a malignant party to his Highness’s great disservice and in compliance with their confederates, the malignant party of England.” The Church was to re-enter on its ancient rights, all ecclesiastical property was to be vested in the Bishops, but Abbey lands were not to be restored by the lay possessors, many of whom were sitting in the Assembly itself. This question of the Abbey lands at once became a bone of contention between the Religious Orders and some of the most powerful of the laity, and was a potent factor of the disunion which followed. The Assembly did not enter into the question of the ownership of land, beyond refusing to recognise the results of the insurrection. Land was to be considered the property of those who were in possession on October 1, 1641. On this point Gardiner says: “The land policy proclaimed was a policy of land owners, and was unlikely to conciliate those who had formed the strength of that agrarian revolution which had well nigh swept the English out of Ulster. It is, however, impossible to doubt that if the efforts of the Assembly had been crowned with success, it would have found itself powerless to reinstate the English and Scottish colonists in the lands which they had recently lost, and it is not very probable that Catholic Ireland would have granted to Protestants, a toleration which was denied to Episcopalians in Presbyterian Scotland, and had lately, when Charles’s authority was supreme, been denied to Presbyterians in Episcopalian England.” On this point of Gardiner’s, it may be remarked that where questions of religion alone were concerned, and apart from temporal considerations, Catholic Ireland has always shown an

example of tolerance even in ages when tolerance was unknown in countries supposed to be more advanced in modern civilization.

While the land question threatened to divide the Old-Irish of Ulster from their co-religionists of the South, the Assembly deliberately—perhaps because it could not help itself—adopted a scheme of military commands which from the outset made for disunion. Owen Roe O'Neill was chosen General for Ulster; Preston for Leinster; Garret Barry for Munster, and Colonel John Burke for Connaught, the last with the title of Lieutenant-General, as it was hoped the Earl of Clanricarde would take the chief command in that province. No Commander-in-Chief was appointed, and nothing like concerted action between the various armies was ever seriously attempted. O'Neill had, moreover, little friendship for the Supreme Council, and was on bad terms with the Leinster General, Preston, who was father-in-law of Phelim O'Neill, Owen's rival, who had but lately claimed the chieftainship of the O'Neills on the ground of lawful heirship, while Owen Roe, though possessing incomparably greater personal merit, was sprung from an illegitimate branch. Of the continued state of war which existed, it is impossible to give any detailed account here. It was a series of skirmishes and petty sieges, in which one side harassed the other without either gaining a decisive victory. The Royalists, under Ormond in Leinster, and the other English General, Murrough O'Brien, Lord Inchiquin in Munster, were in the greatest distress for want of provisions, pay, and munitions, and concerted action by the Irish forces under a skilled commander like Owen Roe, for instance, would soon have forced them to terms, but no such united effort was made. The Scottish army, which had landed in Ulster under Leven and Monroe, remained under the command of the latter, and possessed itself of the greater part of the province and extended its raids and forages as far as Sligo, but for the most part afterwards remained inactive, and was only distinguished by some massacres of the unarmed peasants. Of the general conduct of the war, Gardiner says: "There was no strategy on either side, it was an affair of skirmishes and sieges, of raids over the wide expanse of pasture-land, for the purpose of sweeping off the herds of cattle which were the main wealth of the people. Wherever an English force could penetrate, its track was marked by fire and the gallows. Exasperated at the Ulster murders, and seeing in every Irishman a murderer or a supporter of murderers, the English soldiery rarely gave quarter, and, unless the accounts of their enemies are entirely devoid of truth, when they did give it, it was

often violated. The peasants retaliated by knocking stray soldiers on the head, and by slaughtering parties too weak to resist. Yet, whenever ... the Irish forces were commanded by officers of rank and authority, they were distinguished for humanity under circumstances of no slight provocation. The garrisons of fortified posts captured by the Irish, were uniformly allowed to find their way in safety to a place of refuge. On the whole, the balance of advantage was on the Irish side.”

The history from now until the arrival of Rinuccini is almost entirely that of a long series of tedious negotiations between Ormond, acting for the King, and the Supreme Council, for a cessation of arms. Ormond had recently been made a Marquis, and his commission as Commander-in-Chief of the English troops had been enlarged, so as to leave him independent of the nominal Lord Lieutenant, the Earl of Leicester. Parsons still remained Lord Justice, and the King, did not venture to interfere with him. Leicester had got as far as Chester on his way to Ireland, but Charles, foreseeing that he would side with Parsons and make him still more powerful, summoned him to Oxford, this being practically the recall of his commission as Lord Lieutenant. The English interest in Ireland therefore remained in the hands of the Lords Justices, nominally acknowledging the King, but in reality, devoted to the Parliament and the policy of confiscation, and in those of the Marquis of Ormond, entirely devoted to the King, but with some sympathy for the Catholic nobility and gentry, especially those of the Pale, as he saw they had been driven through despair at the threatened confiscation, to join the Old-Irish in their uprising.

Reynolds and Goodwin had been sent over by the Parliament with £20,000, to attempt to win over the English garrison. The King, when he heard of their presence at the sittings of the Privy Council, denounced them as rebels, and severely reprimanded the Lords Justices. Soon after, he sent warrants for the arrest of Reynolds and Goodwin, but they had fled to England.

Charles, by this time at his wits' end for forces to check the growing strength of the insurrection in England, had turned his thoughts to Ireland, and determined to enter into negotiations with the Confederates for a cessation so as to enable him to withdraw the English garrison from Ireland. He had proposed to make Ormond Lord Lieutenant, but left it to him to accept or decline the office. Ormond, however, advised him “to delay the

sending him an authority to take that charge upon him,” and proceeded to the treaty with the Confederates as Commander-in-Chief of the Forces. Amongst the reasons other than the King’s wish, which influenced Ormond in seeking a cessation, were the almost complete exhaustion of supplies of money and food for his troops. The £20,000 brought by Reynolds and Goodwin were spent, having for only a short time barely sufficed, as Carte pithily puts it, “to give soldiers twelve pence a week to keep them from drinking water.” Though Ormond had defeated Preston at Ross, he had no provisions to enable him to keep the field, and was at once obliged to return to Dublin with a starving army clamouring for food and pay. The Lords Justices besought the English Parliament to send money, but the Parliament wanted all the money they could lay hands on, including that subscribed by the Adventurers for the Irish War for their own war against the King, so that it may be truly said that the liberties of the English people were literally paid for by the spoliation of the Old-Irish and Anglo-Irish proprietors.

In January, 1643, Charles issued a commission to Ormond, Clanricarde, and others, to treat with the Catholic leaders, and this step was, of course, at once resented by the Lords Justices. The officers of the English garrison made some protest, but weary of waiting for supplies, which the English Parliament was unable to send, Ormond succeeded in getting them to place their hopes in the King’s power to satisfy their complaints. The King’s Commissioners and those of the Confederation met at Trim on St. Patrick’s Day, 1643, and the latter presented their Remonstrance of Grievances. In that document they described the disabilities they were under on account of their faith, the exclusion of their sons from University education and public employment, the tricks and chicaneries of the Puritan officials striving to make fortunes out of their unhappy position, Parsons being the worst of these; the boast of Parsons and others, that Catholics would be forced to change their faith, and the intention of the English Parliament to pass Acts for the extirpation of the Catholic religion in the Three Kingdoms. It denounced the misconduct of the Lords Justices, their dependence on the English Parliament, the Confiscation Acts passed at their instigation, which had forced the Anglo-Irish to take up arms in self-defence. It declared the Irish Parliament completely independent of that of England, and that the latter had no right to legislate for Ireland. That the Irish Parliament had sunk under the Lords Justices to be a mere section of their own partisans, where the majority of the members of the House dare not appear. The document

concluded by praying for a Free Parliament, in which all matters affecting Ireland might be discussed irrespective of Poynings' Act, and that no Catholic should be, on any account, excluded from sitting and voting. If these favours were granted to them, the Confederates were ready to send an army of 10,000 men to England to defend the King's prerogative.

Against this remonstrance, the Lords Justices sent a strongly-worded protest to the King against his entering into any treaty with the Irish. They recalled the events of the first rebellion; the Irish did not really care for their religion, but were so ungrateful for the care the English had taken of them as to massacre 150,000 men, women and children of that nation.

"Astounding as this statement was," says Gardiner, "there was one point in the argument of the Lords Justices which had been passed over entirely by the Irish Commissioners. If the Irish, after all that had passed, were suffered to consolidate their power, would they allow the English to live on an equality with themselves?... Cynicism, however, has seldom gone further than the cool anticipation of slaughter which followed. They remember, say the writers, 'that in the best of former times the Irish did so exceed in number, as that the Governors never cared or durst fully execute the laws for true reformation for fear of disturbance, having some hope always by civil and fair entreaty to win them to a civil and peaceable life; so if peace should now be granted them before the sword or famine have so abated them in number as that in a reasonable time, English colonies might overtop them.' 'No peace,' the Lords Justices repeated, 'could be safe or lasting till the sword have abated these rebels in number and power.'"

Ormond, while considering the proposals of the Confederates as totally inadmissible, condemned the representations of the Lords Justices as tending to countenance a scheme of extirpation iniquitous in the attempt, and impossible to be executed.

Charles was desirous of coming to terms with the Catholics without giving them any real power, so that he might strengthen his army in England. Though the manner in which even the rumour of an Irish Catholic army was received in England showed how dangerous it was for Charles even to think of it, still, by entering into negotiations he might gain time in Ireland, and be enabled to withdraw the English garrison—at any rate, temporarily. He first dismissed Parsons, and appointed Sir Henry Tichborne

Lord Justice in his place, while Borlase, too old and inefficient to be of consequence, was allowed to remain. The King next authorized Ormond to treat for a cessation of arms for a year, and privately wrote to him to bring over the Irish garrison to Chester as soon as the cessation was agreed on.

The cessation was not, however, so speedily arranged as the King desired, and the Confederates were not so anxious to see Charles enter London in triumph as to forego the interests of religion and country. The earlier negotiations were broken off on Ormond's refusal of the free Parliament asked for in the Remonstrance of Grievances. Nevertheless, delay was favourable to the Confederates, and their power was still extending over the country. In June, 1643, Ormond, conscious of his desperate military position, "and," as Gardiner thinks, "perhaps willing to establish beyond dispute, the necessity of coming to terms with the insurgents, told the Lords Justices that he was ready to break off the negotiations if they could find any possible way of maintaining the troops." They were unable to help him in any way, and Ormond set out once more, this time with the reluctant consent of the Castle Government, to attempt to come to terms with the Confederates, but after nearly three weeks of fruitless effort, he resolved to attack Preston once more. Preston wisely avoided a battle, and Ormond's army in a starving condition, was obliged to retreat to Dublin.

Ormond and the Lords Justices had now no alternative but a cessation, and knowing that the King was willing to treat for a free Parliament, he prepared to resume negotiations. Some of the irreconcilables of the Privy Council bitterly opposed any cessation, but on the King's order, Parsons, Sir John Temple, and others, were arrested as traitors to the King for having sided with "my rebels of England."

Amongst the Confederates, the nobility and gentry of Norman or English extraction were willing to accept such terms as would restore to the Catholic Church its former jurisdiction, and would give them, through Parliament, the control of the Government and the assistance of the King's troops against the Puritan army under Monroe. They foolishly believed that if the King "gained the victory over his enemies in England (he) would have either the will or the power to support in England the system which found favour at Kilkenny."

The Old-Irish, especially of Ulster, and the clergy took a more accurate view of the situation, and were against any cessation, as it would only give time for the enemy to regain strength, and for disunion to spread in their own ranks. In these opinions they were strongly supported by Father Scarampi, who had recently arrived as Papal Legate. His views are embodied in a document drawn up by those of the Old-Irish most in his confidence, which is worth quoting at some length, as it is the whole case of the national party as distinguished from those who thought more of the King's and the English interest, than that of their country. "We should undoubtedly," they say, "carry on our work to establish the Catholic Faith, the authority of Parliament, and the security of our country by arms and intrepidity, not by cessations and indolence. For this there are the following reasons: That peace will ever be made between the King and the Parliament is improbable, nor would it be to our advantage, for if they combined, we should be necessitated to surrender. It is likely, however, that before long one side will become powerful enough to dictate to the other. If the Parliament prevail—which God forbid—all Ireland will fall under their arbitrary power; the swords of the Puritans will be at our throats, and we shall lose everything except our faith. Should the King triumph, we may expect much from his goodness and kindness, and much from the Queen's intercession. It is uncertain, however, what laws or terms may be imposed on us in such circumstances. The King, should he succeed by the aid of the Protestants, would be in a manner engaged to them. They, as usual, would oppose freedom of religion in Ireland, and insist on the punishment of our 'rebellion,' as they style it, to enable them to seize our properties and occupy our estates. It would probably be thought a sufficient concession to the Queen to allow us to return to the miserable position in which we were before the war. On the other hand, if we now adopt proper measures, the party eventually triumphing in England will find us in arms, well provided, with increased territories, and stronger in foreign succours. Thus they would not so readily invade us, or swallow us up, so as to leave us without the free exercise of our faith, or some share in the administration of the kingdom."

"It was the banner of Irish nationality," says Gardiner, "which was here unfolded, and those who upheld it were at least not afraid to look in the face the stern fact that no English party would willingly tolerate the organisation of the Roman Catholic Church in Ireland, or the organisation of a purely Irish Government. If the opportunity of England's divisions was to be

seized to any profit, Ireland must become a nation strong enough to hold its own. To gain for itself the sentiment of patriotism, to cherish, in defiance of all assailants, its own traditions and its own beliefs, would be worthy many a struggle and many a defeat, if only, through suffering, it might be attained.”

The national party were not strong enough in the Assembly or the Council to successfully oppose the cessation; Ormond was permitted to resume negotiations, and the Articles for a Cessation for a year were signed on September 15, 1643. A narrow district on the East Coast, another round Cork, and such fortresses as were held by the Royal troops, were to remain in the hands of the English Commanders. All the rest of Ireland, outside Ulster, was in the power of the Confederates. If Monroe’s troops accepted the Cessation, they were to share its advantages; if not, Ormond’s army was to remain neutral, whilst the whole force of the Confederates was to march against them, and the King was even to be asked to allow Ormond to co-operate.

On these conditions, the Supreme Council agreed to pay £800 to relieve the garrison of Naas and £30,000 in money or beeves for the use of the regiments withdrawn to England in support of the King. The Confederates were also to send Commissioners to Oxford to discuss with Charles the terms of a permanent peace.

Such in brief was the Cessation, and from its very articles which prove the Confederation not only masters of almost the whole of Ireland, but so well provided with money and supplies as to be able to come substantially to the assistance of the King, we can estimate their folly in voluntarily throwing away a position they were never able to regain. Ormond’s diplomacy had triumphed. He had prepared the ground for the future sowing of dissensions in their ranks. He could now look forward to helping the King with the Irish garrison whose cause with this addition might triumph, and before the time expired, they could be back in Ireland flushed with victory, replenished in every way, and easily able to overcome the disunited insurgents. The Confederates had gained nothing, but had placed themselves in danger of losing all. An Irish writer declares “that the Puritans in Dublin did swear that if the Irish did hold out for one month more all the Parliamentarians would have deserted Leinster.... The enemy had no commander of any repute but Ormond, Tichborne, Hume and Monk,

while the Irish had O'Neill's victorious army ... ranging at pleasure in the counties of Meath and Dublin and Castlehaven taking the garrisons whereunto he marched, the enemy not daring to relieve any for fear of the Ulster (O'Neill's) army. All the Irish got by this bargain was the release of a few prisoners."

It is necessary only to allude to the attempt made by Randal McDonnell, Earl of Antrim, to raise by his own efforts 10,000 Irish soldiers for the service of the King, as it had no effect on the course of events.

In March, 1644, the Confederates' Commissioners arrived at Oxford to treat with Charles for a permanent peace. Amongst the first conditions submitted, they required that no standing army should be maintained in Ireland, that all offices should be vacated whereby any titles to lands were found for the Crown since the first year of Elizabeth, that all attainders since that period and all grants and leases from the Crown should be revised in a free Parliament in which they would form the large majority. These conditions were found to be inadmissible by the King, as practically meaning the extinction of his authority in Ireland, and it is difficult to see how they could have been put before any English King, and especially one in the difficult position of Charles, with any hope of success. They accordingly modified their demands, and now asked for the freedom of their religion, the repeal of the penal laws which prevented them from holding public appointments, a free Parliament, and the repeal of Poynings' Law during its session, the annulling of all Acts of the Irish Parliament since the prorogation of 7th August, 1641, to which they imputed the subsequent troubles, the vacating of all outlawries and attainders against Catholics since that date and of all offices found for the King's title to lands since the year 1634. They also demanded the establishment of an Inn of Court and Catholic Colleges, a free and indifferent appointment of all Irish natives without exception to places in the public service, that an Act should be passed formally declaring the independency of their Parliament on that of England. If these conditions were accepted by the King, they were ready to send 10,000 men to his assistance, as well as money and supplies. Though unwilling to agree to most, if not all, of these conditions, Charles accepted the memorial for consideration as the basis of a future treaty.

Agents were also nominated at the desire of the King to represent the Irish Privy Council and the Protestant Royalists. These, headed by

Archbishop Usher, set out for Oxford, but before they could arrive, Sir Charles Coote headed a Commission sent by the extreme Puritan party in Ireland, and hastened to the King with a memorial praying that he “would abate his quit rents and encourage and enable Protestants to re-plant the Kingdom, and cause a good walled town to be built in every county for their security, no Papist being allowed to dwell therein.” That he should “continue the penal laws and dissolve forthwith the assumed power of the Confederates, and banish all Popish priests out of Ireland, and that no Popish recusant should be allowed to sit or vote in Parliament.”

Archbishop Usher protested against the intolerant demands of these fanatics, but he desired that all the penal laws should be enforced and all Papists disarmed. The King vainly represented to them how useless it was to expect the Confederates, superior in power, and possessed of more than three-fourths of the Kingdom, to resign themselves disarmed to the mercy of those whom they have provoked by their resistance. Even in time of peace, he said, the penal laws were too odious to be strictly executed. It was, therefore, plain that no treaty with the Confederates could be made “on the terms proposed by the Protestants, and it was scarcely less evident that the most violent of this party,” in the interests of the English Parliament, “laboured to obstruct a treaty upon any terms whatever.”

However, Charles was keenly aware of his own necessities, and seeing that of the three Irish parties, that of the Confederates alone had the means to help him if they could be won over, treated their agents with particular attention, and as Leland says somewhat disparagingly, “answered their propositions with that courtesy and condescension which he had been taught by his misfortunes.” He was willing to refer the great difficulty of the independence of the Irish Parliament to be temporarily decided by both Parliaments. He agreed to pass an Act for removing the incapacity of Catholics to purchase lands and hold public offices, and to allow them places of education. Instead of reversing Acts of Parliament and attainders, he proposed to grant a general pardon, and to assent to such an Act of Oblivion as should be recommended by the Lord Lieutenant and Council. He was willing to summon a new Parliament in Ireland, but without the suspension of Poynings’ Act. With regard to the penal laws, he contended that as they had never been rigorously enforced, so his recusant subjects, in

returning to their duty, should have no cause of complaint that they were treated with less moderation than in the two last reigns.

Though the negotiations were interrupted, the agents of the Confederation were conciliated by these declarations of the King, and said they confessed that, placed as he was, he could not well make further concessions at present, and hoped that when their General Assembly was aware of his situation they would modify their demands, though they themselves had no authority to recede from them. The King dismissed them with an admonition that would have had some weight from a man of firmer and more trustworthy character, but even as he was, his words were in a sense prophetic. He advised them to bear in mind his circumstances and their own, “that the existence of their nation and religion depended on the preservation of his just rights and authority in England, that if his Catholic subjects of Ireland would consent to such conditions as he could safely grant and they accept, with security to their lives, fortunes, and religion, and hasten to enable him to suppress his enemies it would then be in his power to vouchsafe such grace to them as should complete their happiness, and which he gave them his royal word he would “then dispense in such a manner as should not leave them disappointed of their just and full expectations. But if, by insisting on particulars which he could not in conscience grant, nor they in conscience necessarily demand, and such as though he might concede, yet, at present, would bring that damage on him which all their supplies could not countervail ... if they should thus delay their succours until the power of the rebels had prevailed in England and Scotland then they would quickly find their power in Ireland but an imaginary support for his interest or their own; and that they (the English rebels) who with difficulty had destroyed him, would without opposition root out their nation and religion.” The Confederate Commissioners returned to Kilkenny, and Ormond was empowered by the King to treat with the Supreme Council on the basis of the amended memorial. Meanwhile the war dragged on between the Confederates and the Scots and other adherents of the Parliament who refused the truce, while Ormond’s garrisons remained neutral. In the South, Lords Inchiquin and Broghill continued ravaging the country and capturing posts from the Confederates. They expelled the Catholic inhabitants of Cork, Youghal, and Kinsale, and wrote to the King asking him to proclaim the Confederates as rebels “and that they were resolved to die a thousand deaths rather than consent to any

peace with them.” Supported now by the Parliament which sent a fleet into the Shannon, and disappointed at the King’s refusal to make him Lord President of Munster, Inchiquin soon after openly joined the Parliamentarians, and adopting a canting style, declared that “he was acting for the Gospel, and that if he died for it he should be held as a perfect martyr.”

The negotiations for the peace with the Confederates were resumed by Ormond in September, 1644, but it was soon evident that even if the political articles could be rendered acceptable to both parties, the religious ones promised to upset everything. The Irish demanded not only the repeal of all laws that hindered their freedom of worship, but those against appeals to Rome, and the portion of the Act of Praemunire against Papal jurisdiction. Though Charles would agree that the penal laws should not be enforced, he still would not consent to their repeal, and was absolutely resolved not to alter the Acts of Appeals and Praemunire. In this resolution he was strengthened by the action of the Ormondist faction in the General Assembly headed by Lord Muskerry and Geoffrey Browne. These declared privately to Ormond that they would accept the King’s terms on sufficient guarantee being given that the lives and properties of the Irish would be safe. They would not press for the repeal of the penal laws which they thought would fall into abeyance when Charles was restored to power. The King now yielded somewhat and ordered Ormond to promise that the penal laws should be suspended as soon as peace was made, and that if restored to his rights by Irish aid, they should be absolutely repealed, “but all those against appeals to Rome and Praemunire must stand.”

Ormond, feeling the difficulty of his position as a Protestant native of Ireland with many connections amongst the gentry of the Pale, and, perhaps, also, through a belief that the King would conduct the negotiations without him, wrote offering to send his resignation, but Charles would not hear of it, and urged him to complete the treaty. While so many estimates have been formed of Ormond’s conduct and capacity at this juncture by Irish partisans, it may be useful to quote an English opinion. Gardiner, reviewing his conduct in these transactions says: “Of all living men Ormond was perhaps the least fitted to conduct that negotiation even to the temporary sense of which it was alone capable. His virtues and his defects alike stood in his way. He was too loyal to throw off his shoulders the load

which Charles had placed upon them, but he was at the same time so completely wanting in initiative power that he never thought—as Strafford under similar circumstances would assuredly have thought—of suggesting a policy of his own, or even of criticising adversely the one imposed on him by his master. Yet it ought to have been evident to Ormond that an Irish army was not to be gained by haggling over the privileges to be accorded to the true Irish Parliament, and the true Irish Church.” Even if the 10,000 men had been really forthcoming, they would have been of little avail unless those Irishmen were heartily engaged in the King’s cause.

Before the Oxford negotiations were broken off Charles had had an opportunity of winning their confidence. The English Parliament urged Monroe to break the Cessation and sent him a commission as Commander-in-Chief of all the English as well as the Scottish forces in Ulster. He complied with their orders, seized Belfast, and defeated Castlehaven’s army sent against him by the Supreme Council, who offered to place all their forces under Ormond’s command if he would unite with them against the Scots. Ormond refused to do so without the King’s positive order, and at that time, Charles withheld. No doubt he was afraid to take a step which would have cost him most of his army in England; “But what,” says Gardiner, “is to be thought of a policy which based itself on the co-operation of an Irish army in England when it was impossible to grant to the Irish the co-operation of an English army in Ireland?”

The King was apparently also sensible that some other intermediary than Ormond would be needed to bring about the only end he had in view—the strengthening of his army by any means against the Parliament. He soon found, or, rather, had ready to his hand, one far more likely than Ormond to come to speedy terms with the Confederate Catholics, and we accordingly approach the consideration of a series of transactions in which the King’s conduct has provided a fertile theme for discussion. Whatever may be thought of his mode of conducting these negotiations, there is no doubt that nothing in his whole career injured him so much in English opinion or contributed more certainly to his tragic end.

When the Irish agents were at Oxford Charles had already been discussing his chances of Irish aid with Lord Herbert of Raglan, the Catholic son of the Marquis of Worcester. He and his father had generously placed their great wealth at the disposal of the King who had but lately

acknowledged having received no less than £250,000 from them. He now conferred on Lord Herbert the title of Earl of Glamorgan by warrant, but in order to keep the whole transaction private, though the warrant was presented at the Signet Office, no steps were taken to render it valid by patent. Glamorgan offered—and his offer was eagerly accepted by the King—to induce the Confederates to enter into a private treaty for bringing over the 10,000 men on terms more liberal than Ormond was authorized to grant, he was also to bring 6,000 from Wales, and as many as he could get from Lorraine and the Low Countries to Lynn in Norfolk, where the Parliament's Commander was ready to betray his post. Glamorgan, sanguine of success, was to be the Commander-in-Chief of the whole of this Catholic army. He chiefly relied on the Pope and other Catholic princes whom he expected to eagerly support a scheme from which the Church was to reap many advantages. The Commission to Glamorgan was issued without the Great Seal, but he soon overcame that difficulty. Any seal was good enough to show to Irish Confederates and foreign courts, and it is believed that he and Endymion Porter cut off a genuine seal from some other document. Charles, completely won over by the assurances of Glamorgan that he would soon be furnished with the means of overcoming all his difficulties, was ready to confer the highest honours. He offered the hand of the Princess Elizabeth to Glamorgan's eldest son, and conferred on Glamorgan the higher title of Duke of Somerset, though in the case of this title also, the legal formalities were for the present avoided. Though Charles so highly appreciated Glamorgan's enthusiasm, he apparently did not credit him with much discretion. In writing to Ormond that Glamorgan was about to visit Ireland on his own private affairs, he added, "His honesty or affection to my service will not deceive you, but I will not answer for his judgment."

Ormond was fully aware of the King's resolve to conclude peace with the Confederates on Muskerry's conditions, and it was for this reason he had tried to shift the responsibility for complying with them to some one directly from England. Charles, as we have seen, refused to accept his resignation, but he now sent Glamorgan to persuade those of the Confederates who were opposed to peace on Muskerry's terms, and to assure them that the penal laws, though unrepealed, would never be enforced. Charles desired that Glamorgan should be guided in everything by the advice of Ormond, but so desperately resolved was he on getting help from the Confederates, that he actually gave "the feather-brained

Glamorgan a commission to succeed Ormond as Lord Lieutenant in the event of the death or misconduct of the latter; in other words, in the event of his persisting in his refusal to carry out the negotiation on the lines indicated by his last instructions.” At the same time it is evident that Charles did not think there was any likelihood of Ormond being replaced by Glamorgan, and that he counted rather on their working heartily together. “You may engage your estate, interest and credit,” he instructed Glamorgan, “that we will most readily and punctually perform any our promises to the Irish, and as it is necessary to conclude a peace suddenly, whatsoever shall be consented unto by our Lieutenant the Marquis or Ormond, we will die a thousand deaths rather than disannul or break it; and if upon necessity anything to be condescended unto, and yet the Lord Marquis not willing to be seen therein or not fit for us publicly to own, do you endeavour to supply the same.” Taken in conjunction with the instructions to Ormond, it is plain that Glamorgan was to act with him, but with powers to give the Confederates those assurances which Ormond as a Protestant Royalist might not feel himself free to give, that the penal laws would be suspended until peace was declared and repealed as soon as Charles’s restoration to power would make it safe for him to do so.

On January 6, 1645, Charles issued a Commission under the Great Seal to Glamorgan to levy troops not only in Ireland but on the Continent, and this was followed on the 12th by a letter to him in which the King said, “So great is the confidence we repose in you, as that whatsoever you shall perform, as warranted under our signature, pocket signet, or private mark, or even by word of mouth, without further ceremony, we do on the word of a King and a Christian, promise to make good to all intents and purposes as effectually as if your authority from us had been under the Great Seal of England, with this advantage that we shall esteem ourselves the more obliged to you for your gallantry in not standing upon such nice terms to do us service, which we shall, God willing, reward.... Proceed, therefore, cheerfully, speedily, and boldly, and for your doing so this shall be your sufficient warrant.”

These commissions and instructions of Charles can only be viewed as the words of a desperate gambler willing to promise anything that would provide him with another stake to hazard in the game. He was not, however, dependent only on Glamorgan for Irish and Continental assistance. His

Queen, Henrietta Maria, had escaped to France, and was actively engaged in procuring troops. She had been kindly welcomed by the Queen-Regent, Anne of Austria, but the Prime Minister, Mazarin, looked on her coldly. France, exhausted by her long but victorious struggle with the Emperor for those Rhine Provinces she was again destined to lose, was not in a position to make any effort from sentimental motives to help Charles. Mazarin had also no interest in seeing those troubles ended which prevented England from interfering with his designs on the Continent. He therefore received favourably Father O'Hartigan, the Confederate agent at Paris. His plans were such as to lead to the practically complete independence of Ireland. Mazarin, however, would not help unless everything was done in the name of Charles, and with the approval of the Queen of England. O'Hartigan was soon able to report that he had her support. A joint committee of English and Irish Catholics had been formed in Paris and had resolved that the Catholic Church should be first established in Ireland as a step to its establishment in England. By this resolution it was hoped to obtain considerable help in money from the Pope and other Catholic princes, but it was not so much of the interests of the Church in England O'Hartigan was thinking, as of Irish independence. Sir Kenelm Digby was to go to Rome to solicit the help of the Pope. O'Hartigan, writing privately to the Supreme Council at Kilkenny, recommended that after the enemy had been expelled from Ireland, the long talked of Irish army might be despatched to England to replace Charles on the throne. There was another scheme in which the Duke of Lorraine was to play the leading part. He had been deprived of his Duchy by Richelieu, and as a Catholic prince of the Empire, had fought against France. Mazarin was anxious to give his energies some other outlet, and told the Queen that if the Duke could be induced to lead his troops into England, money would not be wanting. The Duke engaged to enter England with 10,000 men, and the Prince of Orange was asked to supply the ships to carry them, as well as 5,000 the Queen was assured would be raised in France.

These projects—for they were never more than projects—show why Glamorgan had a commission to raise troops abroad as Charles placed no faith in O'Hartigan. O'Hartigan's letter, in which he expressed his real hopes, had been captured by a Parliamentary cruiser and sent to Ormond. Charles therefore warned the Queen that O'Hartigan was a knave, and in a letter to Ormond mentioned that the Prince of Orange had consented to

supply the ships for the continental troops. He urged Ormond to conclude peace, and said that he would consider the Irish army a good bargain even if he had to consent to Poynings' Law being suspended, and to Ormond's joining the Confederates against the Scots; he would make no further concession regarding the penal laws than he had already promised. A month later, when his position in England had become still more critical, he wrote "If the suspension of Poynings' Act for such Bills as shall be agreed on between you there, and the present taking away of the penal laws against Papists by a law will do it I shall not think it a bad bargain, so that freely and vigorously they engage themselves in my assistance against my rebels in England and Scotland." But even now Ormond was to make a better bargain if possible, and not to mention these greater powers except in the last extremity.

Even if Ormond were as willing as the King to make these concessions, he had to carry on his negotiations with the help of a Privy Council that would not be likely to view them favourably. For this reason the King decided that Glamorgan should now start for Ireland with powers not only as commander, but to enable him to treat with the Confederates "not indeed without Ormond's knowledge, but in substitution for him if it proved to be necessary." Charles gave Ormond a further commission with full powers to treat with the Confederates in such matters as had to be agreed to "wherein our Lieutenant cannot so well be seen in, as not fit for us at present public to own." He urged him to proceed with all secrecy, and promised on the word of a King and a Christian, to ratify whatever Glamorgan should grant to the Confederates, "they having by their supplies testified their zeal to our service."

In the meantime the King's cause had grown much weaker, and it was doubtful even if the Irish army could be landed in England, or, if landed, whether it could be of any help. Not only was Charles severely defeated at Naseby, but his private papers were captured at Sherburne, and his instructions to Ormond made known to the Parliament. Glamorgan on his arrival in Ireland found that a new factor had been introduced into the negotiations by the General Assembly's adoption of the demand of the Catholic clergy that they should be confirmed in the possession of the churches actually in the hands of the Confederates with the property appertaining thereto as well as all derelict churches. The Confederate

Commissioners had been instructed to yield nothing on this point, and as Charles refused to concede anything more than he had done already, and as Ormond concealed his powers with regard to the penal laws, the treaty again broke down. Glamorgan seeing that he could do nothing with Ormond, accompanied the disappointed Confederate Commissioners to Kilkenny, where he privately resumed the negotiations, and acting on the very loosely-worded and wide instructions given him by Charles on March 12, he concluded a secret treaty with the Confederates.

By this instrument, which comprised what were called the Religious Articles, and which was signed on August 25, 1645, he agreed on behalf of the King to the free and public exercise of the Catholic religion. This, though set forth more definitely than Ormond would probably have agreed to, may be looked on as not exceeding the terms Ormond was authorized to grant. But in two other clauses Glamorgan's treaty was far in advance of anything Ormond would grant or to which indeed Charles had consented, unless we regard the secret commission as empowering Glamorgan to promise anything as long as he could get the troops Charles so sorely needed. Glamorgan agreed that all churches fallen into the hands of the Catholics since the rising in Ulster, and the derelict churches "other than such as are now actually enjoyed by his 'Majesty's Protestant subjects,' were to remain in their possession." Next, he agreed that the Catholics were to be exempt from the jurisdiction of the Protestant clergy, and their own clergy were not to be "molested for the exercise of their jurisdiction over their respective Catholic flocks in matters spiritual and ecclesiastical." This naturally left open the question of appeals to Rome, since there must be some authority over the clergy to decide what were civil and what were spiritual cases, and it was scarcely likely that the Confederates could consent to its being vested in the King.

Charles had not heard of the question of the churches before Glamorgan started, but when he did he wrote to him on July 31, and said he would consent only to the Catholics building chapels for themselves, and absolutely refused to allow them to retain any of the churches.

It seems probable that the King was sincere when he declared that he would look on the giving up of the churches as the abandonment of his religion, and that Glamorgan, eager to obtain the 10,000 men from the Confederates, had exceeded his instructions, but hoped to have his fault

overlooked by Charles in view of the great assistance the Irish soldiers would be to his cause. At the same time, Gardiner, who has discussed this question very freely in his *History of the Great Civil War*, and in a special article in the *English Historical Review*, does not make sufficient allowance for the shifty vacillating character of Charles, and it is quite permissible to assume that when he gave his general instructions in such vague terms to Glamorgan, he contemplated the possibility of having to disavow any action he might take under them, while, if such action were not questioned by his enemies, he was quite ready to profit by it. It would, however, seem that Glamorgan knew he was acting in a way the King would very likely not agree to; for when he signed the treaty he handed the Confederates another document called a *defeasance*, in which he declared that he did not intend to bind the King to consent to anything “other than he himself shall please, after he hath received these ten thousand men being a pledge and testimony” of the loyalty of his Irish Catholic subjects. This document was not to be disclosed to Charles until Glamorgan had done all in his power to induce him to agree to the religious articles.

On this point Gardiner says, “It was hardly within the bounds of possibility that Glamorgan’s action should prove beneficial either to his master or to the Irish people; but he was surely right in thinking that if a military alliance was to be formed with the Confederates it could only be by the acceptance of their own terms. It was childish to expect the hearty co-operation of the Irish if their Church was to be maintained in the position of a merely tolerated sect, the organisation of which was in constant danger of a sudden application of the Statutes of Appeal and Præmunire; and if the ecclesiastical lands and buildings set apart for religious use by their ancestors, and now recovered after a deprivation of less than a century, were to be forcibly torn from them, and restored to the professors of an alien creed, from whom they had nothing but persecution to expect.”

The Supreme Council of the Confederates at once proceeded to test the new alliance they thought they had formed, and on August 29, asked Ormond to join his forces with theirs against the Scots under Monroe in Ulster, but Ormond gave no reply though pressed by Glamorgan, who assured him that the Confederates would now send the 10,000 men to England, and would resume the treaty for the political articles with Ormond. Glamorgan begged Ormond to grant as much as possible and let

the Confederates appeal to the King for the rest. Ormond was, of course, kept in the dark as to the secret treaty for the religious articles by which the Confederates had been persuaded that they would get all they wanted from Charles, so that they were willing to accept such instalment as Ormond would offer.

The Confederates accordingly once more sent Commissioners to Dublin, and the discussion with Ormond continued for another two months, but Ormond refused absolutely to exceed his instructions or to yield anything in matters of religion. On November 20, a few days after Rinuccini arrived there, Glamorgan went to Kilkenny. He found the Supreme Council agreed that if Ormond persisted in refusing the terms they demanded as to religion, the political treaty should be published by itself whilst the religious articles should be kept secret until ratified by Charles. They also promised that the 10,000 men should be sent without waiting for the King's ratification, but Glamorgan was to swear not to employ them in the King's service until the religious articles were agreed to, and if refused, he was to either compel his consent by force of arms or bring the whole force back to Ireland.

We are now able to take up in its proper order the consideration of Rinuccini's mission. In the winter of 1644 the Confederates had sent their Secretary Bellings to solicit help in money from the Pope and other Catholic princes. He was favourably received by the new Pontiff Innocent X, and was greatly surprised at hearing that the Pope would send a nuncio who would act directly in his name and report to him concerning the position of Irish parties. In the first instance the Pope selected Luigi Omodei, but as he being a Milanese was a Spanish subject, and his employment might give offence to France, and as the Pope wished to be perfectly impartial between France and Spain, he selected Giovanni Battista Rinuccini, Archbishop of Fermo, who, as a subject of the Duke of Tuscany, could be regarded as neutral. Bellings, in after years, when his thoughts were perhaps embittered by disappointment, said it was a job to please the Duke of Tuscany. Rinuccini was born in 1592, a member of a noble Florentine family, and at the time we speak of was in his forty-third year. His father was Camillo Rinuccini, and his mother Virginia, daughter of Pier Antonio Bandini, sister of Cardinal Ottavio Bandini. He was educated first by the Jesuits in Rome and afterwards went to the University of Bologna in his eighteenth year. Then he studied law at Perugia, and took his doctor's

degree at Pisa, and distinguished himself so remarkably that he was elected a member of the Cruscan Academy though only in his twenty-first year. His first appointments by the Roman Court were those of Chamberlain to Gregory XV, and Secretary to the Congregation of Rites. When Urban VIII became Pope he continued his advancement, and made him Civil Lieutenant to the Cardinal Vicar, and soon after Archbishop of Fermo in 1625. At Fermo Rinuccini seems to have found his most suitable sphere of work, for he proved in all respects an excellent Archbishop, and was so loved by the people and felt so true an interest in them that he declined the metropolitan See of Florence in his native Duchy in 1631. In a religious sense he appears to have been an eminently holy and good man, though perhaps more than ordinarily imbued with the intolerant opinions of the age he lived in. He had, moreover, but small knowledge of the ways of men who live wholly in the world, and was absolutely ignorant of the feelings of people in political matters who had always possessed representative government of which he, as an Italian brought up amongst the despotic courts of the Peninsula, had no experience. The Pope, it must be remembered, was then a great temporal prince, and his government was as despotic in practice as any in Europe. He, too, appears to have shared the belief of Rinuccini, that it was only necessary to gain over the Sovereign of a country, and that no regard need be paid to its other inhabitants, heedless of the fact that where free institutions exist, a king who is disliked or distrusted by his subjects soon ceases to have any authority whatever. England was then leading the way in that struggle for popular liberty which was to continue in revolutions and bloodshed until our own time; but on the Continent at that epoch the great mass of any population simply did not count in political matters. To this ignorance and inexperience of Rinuccini's of the feelings of men like the Irish who had lived under representative institutions however limited, and were striving to regain and extend them, must be attributed much of his failure in dealing with Irishmen of various parties. He was too autocratic in his methods, and being a man of resolute and inflexible character, determined to bend others to his will utterly regardless that such a course might cause him to lose many whom it was his interest to conciliate. He had, moreover, an exaggerated sense of his own dignity, and a fondness for details of etiquette, dress, and ceremonial, which, though to some extent natural to one brought up in the most ceremonious court of a ceremonious period, was carried by him to a point

bordering on the ridiculous. It must be said of him, however, that though he had the ecclesiastical patronage of Ireland in his hands for some years, his appointments were made in the interest of the Church, and no charge of favouritism can be made against him. His object was the restoration of the Church in Ireland “in its full splendour,” and with this before him he did not pause to consider local feelings or local experience of the difficulties in his way in an age and in circumstances when such an enterprise could only be considered Quixotic. From these characteristics it may be inferred how well fitted he was to strike the final blows that broke up the newly-formed union of the Irish nation.

For a hundred years the Catholic Church had been conducting the counter-Reformation, and had already recovered the allegiance of a great part of Europe. To Innocent X it appeared that the time was ripe for restoring his spiritual authority in England. The Catholics there were still a numerous and wealthy body and comprised amongst their leaders many of the most ancient and most highly placed of the nobility, and would afford a solid foundation for such a reconstruction. The difficult position in which the King was placed seemed to render him a peculiarly suitable object for overtures, and if he could be restored chiefly by the aid of the Catholics and the Pope it was hoped that the Church might gain great advantages if not complete re-establishment. We find in the secret instructions given by Innocent to Rinuccini that these expectations are clearly expressed, and show, moreover, how badly informed the Pope was as to the true state of feeling regarding the Catholic Church in England. In the concluding paragraph the Pope says: “In fine, this rebellion in England has already caused so many divisions in religion and so many disputes amongst the Protestants themselves, that all who have some belief in a future life are beginning to waver, and would become Catholics if they were not restrained by the fear of losing their property and temporal comforts. If, then, by means of this Catholic army, you can obtain from His Majesty the revocation of the penal laws against the Catholics, the abolition of the proposed Oath of Fidelity and freedom in religion, that is that the Catholics be able to hold all appointments in the Kingdom and in Parliament like his other subjects, we may hope in a few years for the conversion of the whole Kingdom—a most important step towards the eradication of heresy from the whole North, and without which the Irish can never hope to enjoy in peace the conditions granted in favour of the true faith in Ireland.”

The Catholic army here referred to was to consist chiefly of the troops who had for the past three years formed the subject of negotiation between Charles and the Confederates. It is well to bear in mind the Pope's instructions with regard to this army as showing that both in his eyes and in Rinuccini's, the Irish were to be merely the convenient instruments of the greater design. He says: "To ensure success in these negotiations two points remain to be well considered; first, that the requisite conditions be well weighed so that the services we hope from this Catholic army be efficacious; the second, to facilitate by every means the agreement between the King and the Irish." The first of these conditions may be reduced to the following articles:—

"1. That the Irish army shall never agree to land in England with less than ten or twelve thousand effective men, that they may be able to defend themselves without danger of being cut to pieces by the English who serve under the King.

"2. That two sea ports be placed in their hands to disembark their troops in England, and that those places be under the command of persons in their confidence.

"3. That the generals of the army and all the officers ... besides the governors of the said places be appointed by the Irish.

"4, 5. The fourth and fifth articles are unimportant and need not be quoted.

"6. That permission and authority from the King be accorded to the English Catholics to form themselves into a body of cavalry proportionate in strength to join them when and where appointed by the Irish general to serve in his army and under his command....

"7. That the Catholic general of this cavalry be a person whom the Irish can entirely trust, and must, therefore, be first accepted by their own general."

That the political freedom of the Irish people, the independence of their Parliament, the right of Catholics to sit therein, in fact the political articles which the Confederates had demanded and which Charles was willing to concede were altogether a secondary consideration in the eyes of the Pope is evident from the following:—

"To facilitate the agreement between the King and the Irish, that articles must be so framed that nothing essential to the full establishment of the Catholic religion in Ireland be omitted; matters of less moment may be remitted, in particular those tending to changes in the Political Government, as they would, without any doubt, retard the agreement." This passage illustrates the inexperience of the Pope of the power of a people with free institutions, and that he had yet to learn that a people politically free may follow any religion they please. It was scarcely likely that the Catholics, possessing, as they inevitably would, a large majority in the Irish Parliament, would long submit to the disabilities under which they laboured in religious matters.

As to any aspirations for the complete independence of Ireland, the Pope promptly threw cold water on them. In his letter of June 3, 1645, before Rinuccini left Paris, the Cardinal

Secretary writes: "Nor is he (the Pope) too well pleased with the rumours which are spread by some Irish Catholics, that they desire to throw off their allegiance to the King because he has not chosen to grant the concessions they demand; and his Holiness would also desire that they should speak with greater moderation of the articles of peace. And, further, he wishes them to understand that he desires to see them continue obedient to the royal power, hoping, however, that from the King himself and from the protection of the Queen, they may gain all they desire. To this end your Excellency's persuasions and warnings must be directed; His Holiness rests securely on your prudence, whenever you can convey news to him of the Irish, whether it be of rebellion or refusal of submission to the King, and that you will warn your followers in this matter."

It cannot, however, be doubted that the Pope was entirely within his rights as head of the Catholic Church in endeavouring to promote its extension and well-being, and, however ill-chosen the time and circumstances, that this was his only object is plain from the following passage in the same letter, as well as from his more formal instructions: "Your Excellency is aware that the intentions of His Holiness respecting the affairs of Ireland do not go beyond the limits of pure benefit to the Catholic religion, and that your mission never had, and has no other aims than to procure its free exercise, to restore ecclesiastical discipline, and to reform the habits of the Catholics relaxed by a long course of free living. In all that touches on the civil government your instructions have been so framed as by no possibility to excite the jealousy of either the King or Queen of England; nor does the Holy Father work to any other purpose in spirit, since he concerns himself solely in the propagation of the Catholic religion without a single thought of prejudicing the temporal power of anyone whatsoever."

Unfortunately for the good intentions of the Pope, he was, by attempting to seize this imaginary opportunity for an extension of his spiritual authority, taking the most certain course to further prejudice the already shaky temporal dominion of Charles I.

Rinuccini left Rome towards the end of March, 1645, and reached Genoa on April 15. He was received with much honour by the Doge and Senate, and writes to the Pope evidently with great pleasure of the ceremonies that took place and the honours paid to him. "I was escorted from my house by a cortège of almost all the nobility.... At the foot of the stairs four Procurators met me, placed me in the midst of them, and conducted me to the presence chamber, where the Doge waited. He descended four steps from the raised

part of the room ... and conducted me to the canopy on his left hand, but to a seat a little lower than his own.”

Having left Genoa he proceeded by Marseilles and Avignon to Paris, where he arrived towards the end of May, and was cordially received by the Queen Regent, Anne of Austria, for whom he had a Golden Rose sent by the Pope. This Rose was the subject of much correspondence, as there seems to have been some doubt as to whether the Queen would receive it with sufficient gratitude. He seems to have at once constituted himself an extra Nuncio at Paris and entered on a lengthy correspondence on French and Spanish affairs without the knowledge of the resident Nuncio. He has been accused by Bellings and others of not wanting to go to Ireland, and of intriguing to replace the Nuncio then at Paris. Mazarin evidently suspected or accused him of some such design, for we find that though Rinuccini's letter is missing, the Private Secretary's reply points out that “no one can answer Cardinal Mazarin with greater force than Your Excellency when he complains that His Holiness sent you to France, not merely on your way to Ireland, but that you should adroitly contrive to establish yourself as Nuncio in Paris,” and supplies him with the reasons to be advanced in refutation of this charge. Some grounds were doubtless given for Mazarin's suspicions through the Pope as he afterwards explained having inadvertently omitted to give Rinuccini letters for the Nuncio at Paris.

Rinuccini had also been favourably received and encouraged by Gaston Duke of Orleans, and by Condé, but nothing practical resulted from the politeness of these princes. Mazarin, from whom he hoped considerable help in money and ships, was very cautious, and his influence over the Queen Regent was very great. The news of Naseby had completely damped any ardour there may have been for the Irish cause as a means of keeping England weak. Rinuccini found that the Queen Henrietta Maria of England would not receive him publicly as Nuncio, because it was contrary to law in England, and through fear of the harm it might do her husband in the eyes of his Protestant subjects. He is much concerned about this, and whether he should go to a private audience and if there uncover his head. The Pope taking a larger and more sensible view of the matter tells him:—“However, if the Queen either for fear of injuring the King her husband, or for any private reason, does not think it well to receive you at a public or private audience, His Holiness does not wish her Majesty to have any trouble about

the matter, since he will be satisfied with any resolutions of a Queen so pious and so zealous for the Catholic faith. I am, however, to add that should your Excellency not be disposed to accept private audience, that you may not put in doubt the prerogative of the Nuncio to appear covered before all queens (even if in France at similar audiences a Nuncio does not appear covered) still we do not see how any doubt can rest on the prerogative whilst at all public audiences the right to be covered is established.”

With Secretary Bellings the Nuncio was on very friendly terms, but perhaps because he was desirous to keep him with him so that he should not reach Ireland first as he considered that Bellings would put the interests of Charles I before those of the Pope. Scarampi, the Papal Legate in Ireland, writing at this time says that if peace were concluded between the English royalists and the Catholic Confederation without Rinuccini’s consent, it would be fatal to the Church’s interests.

Rinuccini prolonged his stay at Paris over three months. He had some excuse for this delay, since in his letter of 3rd July, 1645, the Pope says: —“A fortnight ago your Excellency was told if by chance the Queen of France should give you any motive for remaining in that country, Your Excellency might, under some pretext, prolong your stay in that country; but since His Holiness sees that this has not happened ... he has resolved that Your Excellency shall proceed on your journey in the manner first arranged.” However, this hint was lost on Rinuccini, who was evidently in no hurry to exchange Paris even for Kilkenny. It is true he had, or at any rate made, many excuses on the score of difficulty in finding shipping. However, the Pope became impatient, and there is a marked change of tone in the succeeding letters. 14th August—“Let Your Excellency go on your way rejoicing with the blessing of the Holy Father upon you.” 21st—“Your Excellency will hasten your going to Ireland; every day’s delay may produce the worst effects.” 28th—“If you have not already done so, you must set out.” 11th September—“We await with much anxiety news of your Excellency’s arrival in Ireland.” 18th September—“The displeasure of His Holiness increases at your Excellency’s delay in your departure for Ireland, and he laments to see that all the negotiations, missions and provisions which Your Excellency has continued to introduce, tend still more to retard it. He commands, therefore, that Your Excellency with all promptitude, shall set out at once for that island, that you do not delay in any part of

France in expectation of letters or information from Spinola, whom you have sent on before, much less wait until the frigates which were to be provided by Invernizzi in Flanders to accompany you shall be put in order.... The General Assembly, if they had known of Your Excellency's presence, would not perhaps have dissolved without coming to some conclusion, and God knows from what they have lately done, if Your Excellency be not there, whether they may not precipitately form some revolution as little beneficial to the Catholic religion as to its free exercise." This seemed to have its due effect, for the Pope's next letter found Rinuccini in Ireland. It is an important document as setting forth the view that must necessarily be taken by any person of sound judgment of Charles's negotiation through Glamorgan. The Pope refers to a letter received from the Legate in Ireland describing the powers possessed by Glamorgan and the conclusion of the secret treaty, and goes on to say, "Father Scarampi having become aware of this agreement, he remonstrated by letter not only with the Bishops, but also with the Council ... on the small foundation they had in any negotiations with the Earl, whilst the mandates which he had produced were subscribed by the King and his secretary only, signed with the small seal, and in consequence deprived of the necessary authority, the King having no power in himself to dispose of the political affairs of these kingdoms. The whole foundation of the negotiation, therefore, rested on the Earl, which being made by another, could not bind the King if he did not choose to be bound; moreover, being a convention made with the Bishops, it would scandalise the world to see that in the published articles of peace no mention was made of the Church, of ecclesiastical property, or of the authority and jurisdiction of the Bishops, which all remained at the mercy of the King, should he not wish to make peace or observe it; and inasmuch as the Catholic laity when satisfied with the articles which had reference to themselves, would not care to make a stand for others however important, in which their own interest was not involved, would have abandoned them. Although these reasons appeared very strong to the Council and the Bishops ... yet they had remitted the whole affair to the Earl, had declared themselves satisfied on their part with his proposals on ecclesiastical matters, and consented to the publication of the treaty of peace.... His Holiness commands me to say that if by letter from Father Scarampi or from others to be relied on, you are convinced that the peace between the Catholics of Ireland and the King of England is

established with the articles and in the manner described, he will be content that you do not prosecute your journey to Ireland, and that you shall wait for further orders from His Holiness; but if the intelligence your Excellency receives does not convey the assurance that the peace is certainly concluded, then you will at once pursue your journey. But should the peace be established with these same articles and in the manner described, then His Holiness desires that neither Your Excellency nor Father Scarampi shall do anything to express approval or disapproval, but remain, so to say, entirely passive.”

It is a curious thing that notwithstanding the Pope’s clear view of the powerlessness of Charles’s position, he should have been willing to treat with him at all.

Rinuccini writing from Limerick on October 25, gives an exciting account of his voyage. He sailed from the island of St. Martin or Isle de Ré, on Monday the 18th, and the wind being favourable, expected to reach Waterford on Thursday. On Thursday, however, there was a fog, and owing to its being full moon, the sea was so rough that it was thought better to keep out to sea. In the grey of the morning on Friday they saw a large vessel in full sail and a small frigate giving them chase. These were commanded by Plunket, an Irishman, who, having joined the Parliament, had been ordered to watch the approaches to Ireland. The Irishmen with the Nuncio and Secretary Bellings in particular, knowing the fate awaiting them if captured, immediately armed, resolved to resist to the last. The Nuncio was ill in bed, the sea being no respecter of persons, “my illness greatly aggravated, and already for two whole days without any attendance whatever from my servants, as they were prostrated by sea-sickness, and as little able to hear as to obey any order.” Nevertheless, he felt his courage rise to a higher pitch than ever before, and prepared in his own heart to give up life and liberty in whatever way God should dispose of him, even if it seemed to him necessary that he and those in his care should be carried captives to London. However, his fortitude was not put to this test, for the chase ended at nightfall. He attributes their escape to a miracle obtained for him by St. Peter, whose image formed the figurehead of the ship; but Father Meehan sententiously remarks, “that he must have subsequently learned that the escape of his pursuers was still more wonderful, for Plunket’s cooking galley having caught fire, and being alarmed for his magazine, he

was obliged to shorten sail and thus suffer the San Pietro to escape.” The chase had driven them a long way to the west and they had some difficulty in making the land, but they succeeded next day in reaching Kenmare Bay, where they landed on the 21st of October, 1645. His first lodging was in a shepherd’s hut, and he remained there two days “not so much to repose after our trial as to return thanks for our safety.”

Before leaving Paris he drew upon the Pope for 15,000 dollars; Cardinal Antonio Barberius gave him 10,000, and Mazarin 25,000, altogether 50,000. 20,000 were spent for arms and munitions, and these were now landed. The rest of the money was brought in specie. From Kenmare he started for Limerick with an escort furnished by the Supreme Council and the surrounding gentry. “On his journey he was much pleased at the fine appearance, hardihood, and activity of the men and the beauty and modesty of the women. He was amazed at the fecundity of the latter. There were married couples, he reported with astonishment, which were blessed with no fewer than thirty children still living, whilst he had been told families of fifteen and twenty were quite common.” He was hospitably received at Ardtully Castle by Donough M’Carthy and his wife, a sister of Lord Muskerry and niece of the Marquis of Ormond. At Macroom Castle he was received by the Lady Helena Butler, sister to Ormond and wife of Muskerry, who was then in Dublin. These names are mentioned to show incidentally the close connection between Ormond and the Anglo and Old Irish proprietors. At Dromsecane he was met by Richard Butler, Ormond’s brother, a member of the Supreme Council, at the head of two troops of horse, thence by Clonmeen and Kilmallock to Limerick. Limerick, hitherto neutral, had been persuaded by Scarampi to join the Confederation, and the Nuncio was received with full honours by the clergy, corporation, and the garrison. On November 12th he halted within three miles of Kilkenny, and received a deputation of welcome from the Council. Next day he entered his litter surrounded by a vast concourse of people and set out for the city. He left the litter on approaching the gate, and donning the Pontifical hat and cape mounted a richly caparisoned horse. A canopy was held over him by leading citizens, bare headed in spite of the rain which fell in torrents. At the Market Cross, a beautiful structure erected in 1400 and destroyed in 1771 during the oppression of the penal laws, he halted, and listened to a Latin oration, and then on to the cathedral of St. Canice, where he was

received by the Bishop of Ossory. Here from the high altar he bestowed the Pontifical Benediction and the *Te Deum* was intoned by all present.

Having rested for two days he visited Lord Mountgarret and the Supreme Council who then occupied the ancient castle of the Ormonds. "At the head of the hall was seated Lord Mountgarret, President of the Council, who rose as I approached, but received me without moving at all from his place." Rinuccini concludes his complaint to the Pope by saying that the reception was arranged by Bellings as one acquainted with Italian etiquette. The Pope replied that a hint should be conveyed to Mountgarret in the shape of an account of the Nuncio's reception by the Doge of Genoa, who advanced four steps to meet him. Possibly Mountgarret knew it already, but thought the representative of the Irish nation should not condescend so much as the head of a small Italian Republic. The Nuncio addressed the President and Council in Latin, and assured them that the object of his visit was to assist the King as well as procure for the people of Ireland the free and public exercise of their religion and the restoration of the churches and church property. The Council made a grateful acknowledgment in an address to the Pope.

Muskerry and the other Confederate agents were still in Dublin and did not return to Kilkenny until the day after the Nuncio arrived. They found that the old Irish had resolved to rely entirely on the Nuncio, and the Pope, and such other Catholic princes on the Continent as might be induced to help them. The two parties in the Confederation grew daily more estranged, and henceforth were called "Ormondists" and "Nuncioists." Rinuccini had no trouble in persuading the Old Irish to stand by him. They believed that notwithstanding his protests, he came to form a grand Pontifical army, and that they could rely on the Pope and through him on all Catholic princes for support and aid in throwing off the yoke of England completely. The Nuncio's comparison of the intelligence of the two parties is not very flattering to the Old Irish. "Nature even," he says, "seems to widen the breach of difference of character and qualities, the new party being for the most part of low stature, quick-witted and of subtle understanding, while the old are tall, simple-minded, unrefined in their manner of living, generally slow of comprehension, and quite unskilled in negotiation." And yet it was these simple-minded men whom Rinuccini encouraged in breaking up the Confederacy and in setting aside those whom from his own

account by their greater knowledge of affairs, and especially of England, were more likely to justly estimate the chances for and against the success of the Nuncio's projects. Well has it been remarked of Rinuccini that "With hazy notions as to the meaning or strength of party divisions in Ireland, he made little allowance for local conditions in pursuing his aim of securing the full predominance of the Roman Catholic religion."

Glamorgan was courteously received by the Nuncio, who, taking him and his credentials at once at their proper value, distrusted him and his power to induce the King to ratify the religious articles. Glamorgan, on the contrary, thought the Nuncio would throw no obstacles in the way of either treaty, and wrote to the Lord Lieutenant that the political treaty would be signed in a day or two. "I am morally certain," he adds, "a total assent from the Nuncio shall be declared to the propositions for peace, and in the very way your Lordship prescribes."

Rinuccini finding the Council on the point of coming to terms with Ormond for the political articles, while the religious ones were to be reserved under the secret treaty for the King's acceptance, protested against the action of the Council. He then set to work to gain control of Glamorgan, who became as wax in his hands, and promised on behalf of the King that even if Ormond accepted the political treaty, it should not be published until Charles had confirmed his own secret treaty of August 25th, and that he would demand their ratification as soon as he landed with the Irish army in England. Rinuccini further induced him to make what was practically a second treaty, by which the King was to bind himself to never again appoint a Protestant Lord Lieutenant, that he would admit the Catholic Bishops to sit in the Irish House of Peers, pass an Act for a Catholic University, and grant the Catholics the churches and ecclesiastical revenues, not only those re-captured by the Confederates before the date on which Ormond's treaty was signed, but all those taken after that signature and up to the confirmation of the religious articles by the King. Glamorgan, eager to lead 10,000 Irishmen to the help of the King, was ready to promise anything, and as Chester, the only port at which they could now be landed, was threatened by the Parliamentarians, the Supreme Council agreed to allow him take an advanced guard of 3,000 men there at once. But Glamorgan could not do so until he had Ormond's consent to his appointment as commander of this force, and to the arrangement with Rinuccini by which

the political treaty was not to be published until the religious articles, of which Ormond knew nothing as yet, had been ratified. To obtain Ormond's consent Glamorgan set out for Dublin on the 24th December. On the 26th he was summoned before Ormond and the Privy Council on the demand of Lord Digby. On October 17th the Catholic Archbishop of Tuam had been killed at the siege of Sligo. On his body was found a copy of Glamorgan's treaty, which was at once sent by the Scots to London and was thence forwarded to Ormond. Ormond at once saw that this revelation of the King's duplicity would be fatal to his cause with the English people, and making a desperate effort to save the credit of Charles, had Glamorgan arrested on a charge of treason in exceeding his instructions. Charles took Digby's advice and brazenly denied his instructions to Glamorgan, and declared his "amazement that any man's folly and presumption should carry him to such a degree of abusing our trust." The comedy was sustained by Glamorgan's declaration that he had made the concessions on his own initiative through excess of zeal, and that what he had done was in no way binding on the King. Charles, moreover, disavowed Glamorgan in a letter to the Parliament, "That the Earl of Glamorgan having made offer unto him to raise forces in the Kingdom of Ireland, and to conduct them to England for his Majesty's service, had a commission to that purpose and to that purpose only. That he had no commission at all to treat of anything else without the privity and directions of the Lord Lieutenant, much less to capitulate anything concerning religion or any propriety (*i.e.* property) belonging either to church or laity."

Of this disavowal Gardiner says, "It can be no matter of surprise that Charles should have acknowledged what he could not help acknowledging, and should have sought to cast a discreet veil over that which could not be concealed. His really unpardonable fault was that after engaging on such a negotiation with the Irish Catholics he should now have announced his 'resolution of leaving the managing of the business of Ireland wholly to the Houses, and to make no peace there but with their consent.' What sort of peace the Houses would establish in Ireland he knew full well. Rinuccini had looked into his heart and estimated his motives to more purpose than Glamorgan."

Nevertheless, in spite of the perspicuity with which Rinuccini had examined the stuffing of this Stuart puppet he had urged the Supreme

Council to hold out for conditions which he should have known very well Charles had no more chance of being able to grant than if he were an inhabitant of another planet.

The Confederates had demanded the release of Glamorgan who had himself made strong representations to Ormond that his imprisonment was a great disservice to the King. He was released on bail and returned to Kilkenny where he pressed the Council to complete the political treaty with Ormond on which all parties were agreed, and to give him at once the 3,000 men for the relief of Chester. On the 29th September he wrote to Ormond that the Council was only awaiting the meeting of the General Assembly to be empowered to conclude the peace, and that the men were ready to sail when the treaty was signed.

It is difficult to believe that Rinuccini could have had any real belief in the King's powers or those of anyone acting in his name; but whatever the amount of his faith in the dwindling royal authority, it had at last received a rude shock, and he accordingly passed into an opposite phase of distrust. He now thought that Glamorgan by acting as agent between Ormond and the Council had played him false, and that his whole object had been merely to get the Irish regiments into England, leaving the Irish to content themselves with the political articles. He endeavoured, therefore, to prevent any agreement between Ormond and the Confederates, the more so that he had received a copy of the Pope's treaty with the Queen, in which she had agreed to much more than anything Ormond or even Glamorgan would have conceded. Sir Kenelm Digby had signed with the Pope on behalf of the Queen a treaty by which the entire liberty of Catholic worship and a completely independent Parliament were to be granted to Ireland. Dublin and other towns garrisoned by the King's troops were to be handed over to Irish or English Catholics, while the forces under Ormond were to join the Confederates against the Scots and English Parliamentarians. As regards England the King was to concede everything required by the Pope's instructions to Rinuccini already quoted, and to revoke all laws placing the Catholics in an inferior position to the Protestants. This was to be confirmed by the next Parliament, and meanwhile the Supreme Council was to send into England 12,000 infantry under an Irish commander, and these were to be supported by 2,500 or 3,000 English Catholic cavalry. The Pope was to send 100,000 crowns, about £36,000, on ratification of the treaty by the

King, a similar amount on the landing of the Irish in England, and the same payment annually for two years if required.

Rinuccini therefore protested against any treaty with Ormond until it should be known whether the Queen's treaty was accepted by the King. "Preposterous as these terms were," says Gardiner, "Rinuccini was, from his point of view, perfectly right in adopting them." It is, however for adopting such a point of view at all that Rinuccini is to be blamed. How could he possibly place reliance on the desperate promises of a poor fugitive wife eager to save her husband by any means when he had been unable to trust her husband when his power was not so reduced as it had since become! Glamorgan, now completely in the hands of Rinuccini, wrote to Ormond urging him to accept the Queen's treaty, and referring to the expenses he had in equipping the troops which would come to £100,000. He says "How cold shall I find Catholics bent to this service if the Pope be irritated I humbly submit to your Excellency's better judgment? And here I am constrained ... absolutely to profess not to be capable to do the King that service which he expects at my hands unless the Nuncio be civilly complied with and carried along with us in our proceedings."

This was an extraordinary letter to a man who if anything was anti-Papal. Ormond replied that he did not know what was meant by the advantageous peace to be obtained of the King by the Queen's entreaties. "My lord," he continued, "my affections and interest are so tied to his Majesty's cause that it were madness in me to disgust any man that hath power and inclination to relieve him in the sad condition he is in; and, therefore your lordship may securely go on in the ways you have proposed to yourself to serve the King without fear of interruption from me, or so much as inquiring the means you work by. My commission is to treat with his Majesty's Confederate Catholic subjects here for a peace upon conditions of honour and assistance to him and of advantage to them; which accordingly, I shall pursue to the best of my skill, but shall not venture upon any new negotiation foreign to the powers I have received."

Glamorgan thereupon delivered himself up entirely to the Nuncio and wrote a long Latin oath by which he swore him unlimited obedience. An agreement was drawn up between the Nuncio and Glamorgan on the one hand and the Council on the other, by which the cessation with Ormond was to be extended to May 1, 1646, the extension being for the purpose of

allowing the Nuncio to obtain the originals of the Queen's treaty, as the Council had refused to support the new demands on the King merely from the copy. Rinuccini agreed that if he could not produce the original within the time he would be contented with whatever terms Glamorgan might get from Charles.

In view of this temporary agreement between the Nuncio and the Supreme Council, it seemed as if the troops could now start for Chester. On February 24, 1646, Glamorgan wrote to Ormond that not 3,000 but 6,000 men would be sent, and that he was going to Waterford to hasten the shipping. On March 8 bad news arrived. Chester had surrendered to Brereton and the port was closed against Charles's Irish army. Still more ominous things happened at home, for a Parliamentary fleet had sailed up the Shannon and seized Bunratty Castle, thus showing that the Parliament felt itself so sure of overcoming the King it was at last in a position to commence active measures in Ireland. The Supreme Council wrote to Ormond that unless he would join forces with them they would neither make peace at Dublin nor send an army to England. Still they could not abandon the negotiation with the Lieutenant of a King who had not the power, and probably not the will, to fulfil the engagements made in his name. They now proposed to Ormond that the conclusion of peace should be postponed to the middle of June, so that Glamorgan should get ships together to carry the army to some port in Wales. In the meantime Glamorgan would send his brother to get a confirmation of his own treaty as to the religious articles from the King. If these were accepted, and if Ormond would agree to join forces with them against the Scots and Puritans, the Council would give him £3,000 for the pay of his troops.

On these terms Ormond signed on 28th March the peace on the understanding that it was to be kept secret until the 1st May. The articles which related to the civil government included some much-needed reforms, especially the admission of Catholics and Protestants to office on equal terms. Religious matters were postponed pending Charles's answer. The Confederates agreed to send the 10,000 men, of whom 6,000 were to start on 1st April, and the remainder on 1st May. Ormond gave them a written promise that if the Confederates were attacked before the latter date he would join them against their assailants. It was too late. Like Chester, South Wales had now been occupied by the Parliament, Cornwall as well, and

there was not a foot of English ground on which the army could land with any chance of maintaining itself. Officers and men refused to leave Ireland. Charles himself wrote that “the foot was to be kept back, as it would be lost if it should now attempt to land, we having no horse nor ports in our power to secure them.”

In May Rinuccini went to Limerick to support the Confederate army besieging Bunratty, and took credit for having, as he says, “adroitly prevented” the despatch of 10,000 Irish infantry to Charles. It was not much to boast of, helping the destruction of the man on whose continuance of power both he and the Pope were relying for the attainment of their religious aims. The original cessation of arms, when the still united Confederates could have made themselves masters of the whole country and treated with King or Parliament was a fatal error; but having decided to back the King and prevent the rise of the power that was destined to destroy them both, they should have helped him quickly. By insisting on conditions which would only tend to make him more unpopular in England, they had wasted valuable time and allowed their intended ally to be weakened and their common enemy to gain strength. The only merit Rinuccini had was that his delays prevented a useless waste of Irish lives; but it is evident that was not in his thoughts when pressing for the acceptance of the Queen’s treaty, as had that been accepted he would have consented, would have been bound by the Pope’s instructions to consent to the despatch of the troops. Charles, to do him justice, was the only one to warn the Irish against starting on account of the danger and uselessness of such a proceeding.

It has been necessary to enter into such a detailed account of these important negotiations that space does not admit of more than a brief reference to the chief events during the remainder of Rinuccini’s mission.

He now set himself to work to annul the lately concluded peace, and found a strong supporter in Owen Roe O’Neill, who with his followers persisted in the belief that the Pope would help the Irish to shake off the yoke of England. While we must sympathise with O’Neill’s true-hearted and enthusiastic patriotism, we must remember the Pope’s positive instructions to Rinuccini on that point. Rinuccini, moreover, warned O’Neill against nourishing such hopes, and expressed his annoyance at his calling his force the “Pontifical Army.” At the same time the Nuncio was only too glad to make use of O’Neill to overthrow the Confederation. After

Owen Roe's brilliant victory over the Scots at Benburb, on the 5th June, Rinuccini supplied him with funds and accompanied him to the siege of Bunratty, which surrendered in July. Ormond's peace was proclaimed in Dublin on 30th July and at Kilkenny, but Rinuccini and the majority of the clergy procured its rejection at Limerick, Clonmel, Waterford, and other places. The Nuncio held a convocation of some of the clergy at Waterford, and on 12th August declared that the Confederate Catholics supporting the peace were perjured for having failed to obtain for the Church first of all such terms as they had sworn to obtain by their Oath of Confederation. He also issued an interdict against the places that had accepted it, ordered their churches to be closed, and the sacraments refused to the inhabitants. This exercise of his powers cost him a severe snub from Rome. The Cardinal Secretary wrote: "Moreover, having seen a printed paper, in which the authors and supporters of the peace between Ireland and the Marquis of Ormond are pronounced to be perjurers and a protest which the Ecclesiastical Congregation has made in these precise [Latin] words, 'For these and other reasons moved only by our conscience and having only God before our eyes, that it may be known to all and singular both in Ireland and abroad, we have not given and should not give our consent to any such peace unless according to our oath it contains conditions for Religion, for King, and for Country, etc., etc.' And this paper is subscribed first by your Excellency and then by the Archbishops, Bishops, and ecclesiastics of Ireland. It appears to His Holiness and to us that in this your Excellency has departed from your instructions, because it never was intended to maintain the Irish as rebels against the King, but simply to assist them in obtaining the assurance of the free exercise of the Catholic religion in Ireland.... From the specimen which I have taken from this printed document, in which occurs the Latin words I have quoted, your Excellency will be able to regulate your conduct on such other occasions as may present themselves, and thus observe the tenor of your instructions."

All the same Rinuccini returned to Kilkenny in triumph, imprisoned most of the Supreme Council, and formed another entirely subservient to him, of which he constituted himself the President. He next excommunicated all adherents of the peace, though eight of the Bishops, including his own nominee De Burgo, Archbishop of Tuam, and the Jesuits and Carmelites, in fact all the regular clergy except the Dominicans and Capuchins, held the censures to be invalid, and appealed against them to Rome.

A plot was now formed for the escape of Charles from the Scots to Rinuccini and the clerical party and the joint armies of O'Neill and Preston, who were now reconciled by the Nuncio, marched to besiege Dublin.

Rinuccini must now have not only a Supreme Council but a Lord Lieutenant of his own. Glamorgan when first he arrived had brought a document sealed with the King's private signet appointing him Lord Lieutenant in the event of Ormond's death or misconduct, and Glamorgan now qualified himself for the office of Viceroy by swearing complete submission to the Nuncio. He would do no act without his approval, and would be ready to resign his office at any time into Rinuccini's hands. Rinuccini thought the opportunity of installing him would soon occur.

Ormond's position was indeed now desperate. The defences of Dublin were dilapidated, and he had neither provisions nor ammunition. The King had been surrendered to the Parliament by the Scots, his cause was hopeless, and Parliamentary cruisers swarmed on the Irish coasts. Ormond accordingly, having been always in the English interest, appealed to the Parliament for help, and offered to surrender to them. Meanwhile O'Neill and Preston quarrelled outright, and on a false alarm that Parliamentary troops had arrived, the siege was raised. O'Neill and the Nuncio retired to Kilkenny, while Preston remained and commenced still another negotiation with Ormond. The Parliament had refused Ormond's conditions of surrender, and he was now willing to make a treaty which should unite the English Royalists with the moderate Catholic party on the basis of toleration under the King's authority against Rinuccini on the one hand, and the Puritans on the other. Rinuccini threatened Preston with excommunication, and Preston who had boasted of being "excommunication proof," hastened to Kilkenny. Ormond then put an end to his anomalous position by surrendering Dublin to the agents of the Parliament on July 28, 1647, and joined the other Royalist refugees in France.

Rinuccini's supremacy in the Council did not remain long undisputed. The moderate party were crushed only temporarily. On the meeting of the General Assembly the old Council were released from prison, and the feud between the two parties was more furious than ever, swords being drawn in the council chamber. The Parliamentary commander of Dublin, Michael Jones, marched to the relief of Trim and defeated Preston with a loss of five

thousand men and all his guns and baggage. In the South, Inchiquin, at present for the Parliament, had taken Cahir, and attacked Cashel, which he burnt, shooting hundreds of the inhabitants and twenty priests who had crowded into the cathedral, and when attacked in his turn by the Munster army under Lord Taaffe at Knockanos, the Confederate forces were completely routed and their camp and artillery captured.

And now the whole scene became still more confusing, all parties seeming to change into new and kaleidoscopic combinations. Inchiquin who thought he had not been rewarded sufficiently by the Parliament, and having after all more sympathy with Irish than English proprietors, made overtures to Preston. Ormond was approached in Paris and a coalition was formed against the Parliament between the moderate Confederates and the Royalists. Rinuccini issuing excommunication against all who countenanced this arrangement, fled to O'Neill's camp at Maryborough. Preston and O'Neill joined forces and there was civil war between the Confederates. Jones, who suspected many of his own troops of loyalty to Charles, was delighted at this, and so bitter was the hatred between the clerical party and the moderate Catholics that O'Neill and the Nuncio actually went so far as to treat with the Puritan commander for help against their co-religionists at Kilkenny. In October, Monnerie the French agent thought Rinuccini about to fly from Ireland. "Your Eminence," he wrote to Mazarin, "knows the Nuncio's inclinations"—doubtless his desire to be in Paris—"and I will merely say that now he receives as many curses from the people as he formerly did plaudits." In September Glamorgan, now Marquis of Worcester, sailed from Galway to France, and the Nuncio's troubles were increased by the appearance in October of O'Mahony's *Apologetic Discussion* of his conduct. The Nuncio had the book condemned by the magistrates. He returned to Kilkenny only to hear of the defeat at Knockanos. Rinuccini found he had now but little authority, "being now," says Bellings, "better known, and his excommunications by his often thundering of them grown more cheap." He retired in disgust to Waterford in January, 1648. Inchiquin took Carrick-on-Suir for the Parliament in February, but declared for the King in April, and endeavoured to come to terms with the Confederates on the basis of the *Status quo ante*, until Ormond should return. Rinuccini, and in this case he was perfectly right, refused to treat with such a blood-stained traitor to every party, but the Supreme Council fearing the growing strength of the English Parliament, in

spite of the Nuncio's protests and threats, made a truce with Inchiquin. Rinuccini at Kilkenny and supported by a majority of the Bishops, then excommunicated all who adhered to the truce, and put the terms concerned under an interdict. The Council appealed to Rome. Rinuccini escaped by night from Kilkenny to O'Neill's army at Maryborough and thence to Athlone and Galway, where he convened a National Synod, while the clergy opposed to him at Kilkenny declared his censures null and void. The Jesuits, Barefooted or Discalced Carmelites and cathedral clergy were opposed to him, while he was supported by the Franciscans and Dominicans. He bitterly complained of the conduct of the Jesuits, and charged them and their Provincial, Malone, with the greater share of the blame for the loss of Ireland. He even went so far as to declare the Irish people were Catholics only in name. In his instruction to Father Arcamoni, who was to represent him in the appeal to Rome, he says, "It may be, therefore, by the will of God that a people Catholic only in name and so irreverent towards the Church should feel the thunderbolt of the Holy See and draw down upon themselves the anger which is the meed of the scorner."

Ormond landed at Cork on Michaelmas Day, 1648, and on the 16th of January, 1648-9 concluded a peace with the Supreme Council, consolidating the Royalist interests in Ireland. The Council finally renounced Rinuccini at the beginning of the negotiations, and ordered him to "intermeddle not in any of the affairs of this kingdom." The Carmelites of Galway having resisted the interdict by which their church was closed, Rinuccini ordered their bell to be pulled down. John De Burgo, a nominee of Rinuccini to the Archbishopric of Tuam, supported the Carmelites, and demanded the Nuncio's warrant. "*Ego non ostendam*," said Rinuccini; "*Et ego non obediam*," retorted De Burgo. The Nuncio was blockaded in Galway by the Catholics Clanricarde acting with the new Royalist Confederation, he being determined that no Synod should be held in Galway in support of the censures. Rinuccini, who had kept a frigate ready, seeing how useless it was to remain longer where he had worn out his welcome, sailed for Havre on 23rd February, 1648-9. He did not proceed to Rome until November. His agents had been supporting his cause against Father Rowe, Provincial of the Carmelites, on the part of the Supreme Council. Rinuccini was received with all the usual honours by the Pope; but Innocent is said to have reproached him in private with rash conduct. In

March, 1650, the Pope granted power to certain Bishops to absolve those who had fallen under the Nuncio's censures, but a general absolution was refused, as it would seem to make the Pope decide that the censures were unjust. Rinuccini was warmly welcomed on his return to Fermo, where he died of apoplexy in 1653.

We have now followed as far as possible within the limits allowed us the history of this most distracting period, and before concluding it may be well to glance back and survey its most distinctive features.

We have seen how the rising of the dispossessed clansmen in the North furnished a pretext for the confiscation of practically the whole of Ireland, irrespective of its share in the rebellion, and how the Parliament was thus enabled to raise money for an invasion to extinguish the Irish nation and put the Subscribers in possession of their security. The Parliament diverted these funds to carrying on its own war against the King. The Confiscation Acts united the hitherto discordant Anglo-Irish and Old-Irish elements in a great national movement for common defence against further religious persecution and further spoliation by a wealthy and powerful neighbouring, but not neighbourly, people. While they acted loyally together they had extended their authority throughout the greater part of the country, and were so near a complete conquest that the English power was brought so low that its representatives were reluctantly compelled to sue for a cessation. A section of the Anglo-Irish Confederates imagining themselves still English, looking only towards England, and never dreaming that a day might come when they with the poet Spenser's grandsons would be forced to transplant to Connaught as Irish Papists, urged the granting of a truce, and though the Old Irish protested against this throwing away of their advantages, they respected the Oath of Confederation too much to make any violent opposition. By granting the truce, by negotiating at all, the Confederates committed the fatal error from which their future ruin followed. It is all very well to blame Ormond, but he was only doing his duty to his sovereign and his party; the Irish had beaten him to his knees, and their trusted representatives should have kept him there until their position in Ireland at any rate was secured. Had they, disdaining Ormond's overtures, relentlessly pursued the war to an entirely successful issue—and that they could have done so is evident from O'Neill's brilliant victory over Monroe at Benburb when their strength was almost exhausted—they would have been in a

position to treat with King or Parliament; and, moreover, that Continental assistance they vainly sought when through the Cessation their stability had become doubtful, would not have been withheld. The Parliamentarians in their struggle with the King showed better judgment. When their early efforts for an accommodation with him failed, they destroyed him and came to terms with his son. The Confederates should have avoided all treaties until they were in a position to treat on their own terms with either King or Parliament. On the whole, it might have been better had they been in a position to treat with the latter; but whichever prevailed, Ireland, even without foreign help, but with the prestige of an armed and united nation like the Scots, would have been able to enter into a confederation of the three Kingdoms on honourable conditions, instead of being dragged in, gagged and bound, the victim of violence, fraud, and corruption unsurpassed in the history of nations. The Confederates, however, failed to take the tide of victory when it served, and wasted their time in a series of futile negotiations with a man who certainly had not the power, even if he had the will, to grant them what they haggled for. There is nothing more sad in all Irish History than to read that when Cromwell with a comparatively small army had subjugated Ireland in a few months, 40,000 Irish “swordsmen” took service in foreign countries. They had missed their chance.

Three things, says an Arab proverb, cannot be recalled: “The sped arrow, The spoken word, The lost opportunity.”

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